

**UNITED STATES OF AMERICA
BEFORE THE
FEDERAL ENERGY REGULATORY COMMISSION**

Interconnection of Large Loads to the Interstate Transmission System	))))	Docket No. RM26-4-000
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**SUPPLEMENTAL COMMENTS OF THE
SOUTHWEST POWER POOL TRANSMISSION OWNER GROUP**

The Southwest Power Pool Transmission Owner Group (SPP TO Group)¹ respectfully submits the following supplemental comments to the Advance Notice of Proposed Rulemaking (ANOPR) to memorialize in the record recent developments pertinent to this proceeding. Specifically, the SPP TO Group has attached, as Attachments A and B respectively, the Commission’s orders accepting the High Impact Large Load (HILL)² and Consolidated Planning Process (CPP)³ reforms recently filed by Southwest Power Pool Inc. (SPP). Those orders provide convincing support for the SPP TO Group’s position that the Commission should avoid issuing an overly prescriptive rule, but should instead provide broad latitude for transmission providers and their stakeholders to develop their own solutions to the challenges posed by large load interconnections.

¹ The SPP TO Group consists of American Electric Power Service Corporation, Evergy Kansas Central, Inc., Evergy Metro, Inc., Evergy Missouri West, Inc., Oklahoma Gas and Electric Company, and Xcel Energy Services Inc. on behalf of Southwestern Public Service Company.

² Submission of Tariff Revisions to Add the High Impact Large Load Processes and High Impact Large Load Generation Assessment, Docket No. ER26-247 (Oct. 24, 2025), *order*, 194 FERC ¶ 61,031 (Jan. 14, 2026) (HILL Order) (accepting tariff revisions).

³ Submission of Revisions to the SPP Open Access Transmission Tariff to Implement the Consolidated Planning Process, Docket No. ER26-414 (Nov. 3, 2025), *order*, 194 FERC ¶ 61,192 (Mar. 13, 2026) (CPP Order) (accepting tariff revisions).

To underscore this point, the SPP TO Group explains how a series of integrated SPP market reforms already engage with each of the fourteen ANOPR principles to accomplish the Administration’s goals in a manner that is legally durable and overwhelmingly supported by SPP stakeholders. Those reforms often conform to the ANOPR’s recommendations, but sometimes achieve the Administration’s intent through alternative means. The Commission has already accepted CPP and HILL, while the Commission continues to examine SPP’s pending Conditional High Impact Large Load Service (CHILLS) proposal.⁴

At bottom, the SPP TO Group believes that it is less “necessary to standardize interconnection procedures,”⁵ than it is to accomplish the ANOPR’s fundamental objective “to ensure the timely and orderly interconnection of large loads to the transmission system.”⁶ Standardization is merely a tool to achieve that end; it is not an end in itself. A final rule in this proceeding should not undermine the extraordinary progress the SPP region has made by disturbing the carefully balanced consensus reforms that SPP, its public and investor-owned Load Serving Entities, and state regulators have collaborated to develop.

I. THE HILL AND CPP REFORMS SHOW THE NEED FOR REGIONAL FLEXIBILITY

In their initial comments on the ANOPR, the SPP TO Group asked that the Commission “expressly state that RTOs and ISOs will have broad flexibility to seek variations from any *pro forma* tariff adopted by the Commission under the independent entity variation standard.”⁷ Many

⁴ See Deficiency Letter, Docket No. ER26-1323 (Mar. 30, 2026).

⁵ *Interconnection of Large Loads to the Interstate Transmission System*, Advance Notice of Proposed Rulemaking, Docket No. RM26-4 at P 15 (Oct. 27, 2025) (ANOPR).

⁶ *Id.* P 1 (footnote).

⁷ Comments of the Southwest Power Pool Transmission Owner Group, Docket No. RM26-4 at 3 (Nov. 21, 2025) (Initial Comments).

commentors shared similar perspectives.⁸ The reasoning behind those requests is straightforward: individual transmission providers and their stakeholders know the specific needs of their regions and are best-suited to address those needs.

The HILL and CPP reforms show the value of permitting stakeholder-driven reforms to meet the ANOPR's core objectives. The HILL and CPP reforms are pathbreaking innovations that serve as models for how transmission providers and their stakeholders can adopt solutions to the question of large load interconnections without a nationwide rule that imposes a one-size-fits-all solution. The HILL reform "enable[s] SPP to efficiently identify new large loads, expedite the interconnection of new generation needed to serve them, and protect the reliability of the bulk power system."⁹ As for CPP, it is a "revolutionary proposal,"¹⁰ "one of the most innovative, common-sense proposals presented to the Commission since the inception of open access

⁸ See, e.g., Comments of the Indicated PJM Transmission Owners, Docket No. RM26-4 at 18 (Nov. 21, 2025) ("The Commission should avoid the temptation to craft a one-size-fits-all approach, which may limit the ability of transmission owners to best serve a variety of large load customers."); *id.* at 19-20 ("[T]he goals of the ANOPR would best be served by allowing regulators, utilities, and large load customers to continue to develop and implement appropriate retail mechanisms to ensure adequate protections for retail customers rather than enforcing a one-size-fits-all cost allocation rule that clashes with longstanding Commission policy."); Initial Comments of the MISO Transmission Owners, Docket No. RM26-4 at 17 (Nov. 21, 2025) ("The MISO Transmission Owners also emphasize the importance of permitting flexibility in any reforms and how they are implemented. Relatedly, the MISO Transmission Owners encourage the Commission to permit deviations from any final rule consistent with (1) Order Nos. 888, 890, 2003, 2006, 845, and 2023 where the Commission applied the 'consistent with or superior to' standard when considering proposals from non-RTO/ISO transmission providers to deviate from the requirements of the final rule; and (2) Order Nos. 2003, 2006, 845, and 2023 where the Commission permitted the use of the 'independent entity variation' standard when considering proposals from RTOs/ISOs.").

⁹ HILL Order at P 1 (Rosner, Comm'r, concurring).

¹⁰ FERC Commission Meeting, March 2026 Open Meeting at 14:51 (Mar. 19, 2026), <https://www.ferc.gov/news-events/events/march-19-2026-open-meeting-10082025> (FERC Monthly Meeting).

transmission service,” and will “help[] to make energy more reliable and affordable in the SPP region.”¹¹

SPP’s reforms already address the goals of the ANOPR even while diverging from some of the specific guidance therein. As Commissioner Rosner noted in his concurrence to the Commission’s HILL order,

SPP’s [HILL] proposal is another step towards realizing the goals of Secretary Wright’s Large Load ANOPR proposal in three important ways: first, it pairs new large loads and new generation to connect them to the grid rapidly and reliably; second, it minimizes costs borne by other customers; and third, it does so through an FPA section 205 filing, rather than waiting on the Commission to require such action.¹²

Moreover, both HILL and CPP “address[] the core issue that has been delaying the interconnection of new generation: transmission upgrade cost uncertainties.”¹³ However, SPP’s reforms demonstrate that individual transmission providers and their stakeholders can innovate to create feasible and efficient solutions to the challenge of large load interconnections even while not following every recommendation in the ANOPR. For example, the HILL mechanism categorizes

¹¹ CPP Order at P 1 (Rosner, Comm’r, concurring). In addition to the strong concurrences of Commissioners Rosner and Chang filed in support of CPP and Commissioner Rosner’s concurrence in support of the HILL reform, the Chairman and each of the Commissioners provided enthusiastic support for CPP in the Commission’s March 19, 2026 monthly meeting. *See* FERC Monthly Meeting at 6:16-7:24 (Swett, Chairman) (calling CPP a “watershed” proposal), 14:40-16:55 (Rosner, Comm’r), 22:28-23:50 (See, Comm’r), 29:05-32:21 (Chang, Comm’r), 48:24-57 (LaCerte, Comm’r).

¹² HILL Order at P 4 (Rosner, Comm’r, concurring) (emphasis added) (citing U.S. Department of Energy, Secretary of Energy, Direction that the Commission Initiate Rulemaking Procedures and Proposal Regarding the Interconnection of Large Loads Pursuant to the Secretary’s Authority Under Section 403 of the Department of Energy Organization Act at PP 20, 25, 32 (Oct. 23, 2025)).

¹³ CPP Order at P 4 (Chang, Comm’r, concurring); *see* HILL Order at P 27 (“SPP contends that any upgrade costs required under the HILLGA process will be specific to the generating facility’s injection for the local support of the HILL and will have limited impacts on other requests.”).

load according to the voltage level at which it connects to the transmission system rather than using the inflexible 20 MW threshold proposed in the ANOPR.¹⁴

Individual Commissioners have made clear that HILL and CPP are models to be followed. In his HILL Order concurrence, Commissioner Rosner encouraged transmission providers “to take note of the innovative approach SPP proposed ... and to consider proposing similar solutions *tailored to meet the needs within their own footprints.*”¹⁵ He repeated that point in his concurrence to the CPP Order and again “strongly encourage[d] other transmission providers to take note of the innovative approach the CPP promises, and to consider developing similar integrated solutions tailored to meet the pressing needs within their own footprints.”¹⁶ Commissioner Chang likewise encouraged other RTOs/ISOs to “explore similar reforms to break the pernicious cycles that undermine generation development and lead to inefficient transmission system buildout.”¹⁷ The Commission should further encourage the creation of region-specific solutions to large load interconnections comparable to HILL and CPP in parallel with its consideration of the proposed rulemaking in this docket.

¹⁴ Compare HILL Order at P 10 (“A new commercial or industrial load, or increase in commercial or industrial load, at a single site connected through one or more shared Points of Interconnection (POIs) or delivery points, where such load is either (1) 10 MW or more if connected to the Transmission System at a voltage level less than or equal to 69 [kilovolts (kV)]; or (2) 50 MW or more if connected to the Transmission System at a voltage level greater than 69 kV.”) with ANOPR at P 19 (“the reforms should only apply to new loads greater than 20 MW and, for hybrid facilities, where the load is greater than 20 MW”).

¹⁵ HILL Order at P 5 (Rosner, Comm’r, concurring) (emphasis added).

¹⁶ CPP Order at P 8 (Rosner, Comm’r, concurring).

¹⁷ *Id.* P 7 (Chang, Comm’r concur.).

II. SPP HAS ALREADY ADDRESSED THE ANOPR PRINCIPLES

The ANOPR states fourteen principles the Administration proposed “to ensure the timely and orderly interconnection of large loads to the transmission system.”¹⁸ Below, the SPP TO Group explains how SPP engaged with each of those principles through CPP, HILL, and its pending CHILLS reform. Those reforms often conform to the ANOPR’s recommendations, but sometimes achieve the Administration’s intent through alternative means. SPP has good reasons for those deliberate departures,¹⁹ which the SPP TO Group believes will be more effective in the SPP region than the standardized recommendations in the ANOPR.

A. Principle 1

The ANOPR first proposes that “to avoid even arguably affecting the States’ jurisdiction over generation facilities, facilities used in local distribution or only for the transmission of electric energy in intrastate commerce, or transmissions consumed by the transmitter,” the Commission’s jurisdiction be “limited to interconnections directly to transmission facilities, consistent with the Commission’s seven-factor test.”²⁰

Neither the CPP nor the HILL reforms encroach on state jurisdiction. In particular, CPP unified the interconnection of load and generation in one process with the unanimous support of its stakeholders, including the states in its region. SPP’s Regional State Committee—comprised of retail regulatory commissioners from Arkansas, Iowa, Kansas, Louisiana, Minnesota, Missouri,

¹⁸ ANOPR P 1 (footnote omitted).

¹⁹ The submissions in the HILL and CHILLS dockets often cross reference the ANOPR, and vice versa. *See, e.g.*, Motion to Intervene and Supporting Comments of ITC Great Plains, LLC, Docket No. ER26-1323 at 4-5 (Mar. 4, 2026); Comments of the Southwest Power Pool Transmission Owner Group, Docket No. ER26-247 at 13 (Nov. 13, 2025); Comments of Enchanted Rock, LLC, Docket No. ER26-247 at 2-3 (Nov. 14, 2025).

²⁰ ANOPR at P 18.

Nebraska, New Mexico, North Dakota, Oklahoma, South Dakota, and Texas²¹— unanimously supported CPP.²² By contrast, representatives from nearly all of those states filed comments opposing a generic ANOPR.²³

The success of CPP and the unanimous support received from SPP’s stakeholders provides an excellent example of collaboration bridging the divide between federal and state jurisdiction. CPP shows that stakeholders wish to, and are capable of, designing interconnection solutions that work for their specific regional needs without encroaching on state jurisdiction. By allowing transmission providers to develop their own region-specific interconnection solutions, the Commission can avoid the jurisdictional minefield that an overbroad rule might create.

B. Principle 2

Principle 2 suggests that the ANOPR’s reforms “should only apply to new loads greater than 20 MW and, for hybrid facilities, where the load is greater than 20 MW.”²⁴ As mentioned above, the threshold SPP adopted in its HILL reform varies by voltage. Specifically,

²¹ SPP, *Regional State Committee*, <https://www.spp.org/stakeholder-groups-list/organizational-groups/regional-state-committee/>.

²² See CPP Order at P 13.

²³ See, e.g., Motion for Leave to Submit Comments Out-of-Time and Initial Comments of the Kansas Corporation Commission, Docket No. RM26-4 at 9 (Nov. 25, 2025) (“Stated another way, FERC should ensure that any reforms are narrowly tailored to avoid an improper (and unnecessary) expansion of jurisdiction over load, the generation and local distribution facilities required to serve retail load, or the design of retail rates paid by load.”); Initial Comments of the New Mexico Public Regulation Commission, Docket No. RM26-4 at 4 (“FERC should ensure that any final rule respects the FPA’s jurisdictional boundary and preserves New Mexico’s sovereign authority to regulate retail service, resource decisions, and economic development consistent with state law and legislative priorities.”); Initial Comments of the Arkansas Public Service Commission, Docket No. RM26-4 at 3 (Nov. 21, 2025) (“Rather than imposing new standards, the APSC urges FERC to support the state regulatory authorities by establishing voluntary best practices, establish backstop authority only in instances of demonstrated delay or discrimination, and avoid any implication that the federal government is asserting jurisdiction over retail-level obligations.”).

²⁴ ANOPR at P 19.

A new commercial or industrial load, or increase in commercial or industrial load, at a single site connected through one or more shared Points of Interconnection (POIs) or delivery points, where such load is either (1) 10 MW or more if connected to the Transmission System at a voltage level less than or equal to 69 [kilovolts (kV)]; or (2) 50 MW or more if connected to the Transmission System at a voltage level greater than 69 kV.²⁵

Straying from the 20 MW threshold definition of “large load” makes sense in SPP due to the prevalence of 69 kV lines in the Eastern Interconnection portion of SPP’s region and because “the size of the load may impact SPP’s transmission system differently at different voltage levels.”²⁶ While a 20 MW threshold may work for other regions, it would not work for SPP. However, transmission providers outside of SPP should be left to define “large loads” as they see fit with their stakeholders and according to their region’s unique circumstances. The Commission need not dictate what the limit is, although it should direct all transmission providers to designate and justify an appropriate threshold.

C. Principle 3

The ANOPR also provides that, “to the extent practicable, load and hybrid facilities should be studied together with generating facilities” in order to “minimize the need for costly network upgrades.”²⁷ This is the entire purpose of the CPP, HILL, and CHILLS reforms. CPP “eliminat[es] the silos between the transmission planning process and the generator interconnection process, synthesizing and streamlining them into one recurring three-year planning cycle.”²⁸ To avoid expensive network upgrades, under CPP, SPP publishes a one-time

²⁵ HILL Order at P 10.

²⁶ *Id.* P 11.

²⁷ ANOPR at P 20.

²⁸ CPP Order at P 1 (Rosner, Comm’r concurring).

upfront entry fee in the form of the GRID-C²⁹ *before* interconnection requests are submitted annually. SPP then further reduces the cost of upgrades by identifying Planned Interconnection Locations—areas where transmission capacity has already been proactively developed and where an Interconnection Customer will not be responsible for additional upgrade costs beyond its one-time, upfront GRID-C charge.³⁰

Likewise, the purpose of the HILL reform is to link large loads to generating facilities, hybrid or otherwise, in order to allow for the efficient siting of both. It does this through its HILLGA study process, an expedited study process designed to promptly interconnect new generating facilities or approve changes to existing generating facilities. Any upgrade costs required under the HILLGA process are specific to the generating facility’s injection for support of a specific HILL.³¹

D. Principle 4

The ANOPR recommends that load and hybrid facilities should be subject to standardized study deposits, readiness requirements, and withdrawal penalties and that these requirements should be designed to “deter speculative projects and provide transmission providers with more useful information to more accurately forecast demand on their systems.”³²

SPP’s reforms satisfy this principle. The HILL reform imposes a \$10,000 non-refundable application fee, a \$100,000 deposit to perform an HDPS study, a \$200,000 fee for an EMT analysis

²⁹ Capitalized terms used but not defined herein are defined in the SPP Tariff, Operating Agreement, or CHILLS proposal.

³⁰ See SPP Tariff, Attach. AY § IV.3.

³¹ Submission of Tariff Revisions to Add the High Impact Large Load Processes and High Impact Large Load Generation Assessment, Docket No. ER26-247 at 32 (Oct. 24, 2025).

³² ANOPR at P 21.

if necessary, and increased deposits for requests to study and interconnect HILLs³³ and HILLGAs.³⁴ CPP likewise imposes substantial withdrawal penalties equal to any unused portion of a study deposit plus two times the actual allocated cost of all studies performed for an interconnection customer's interconnection request up until the point of withdrawal.³⁵ The withdrawal penalty framework SPP has embraced satisfies Principle 4, and the Commission should not impose a new rule that interferes with what SPP and its stakeholders have accomplished. The SPP TO Group remains agnostic as to the appropriate size of withdrawal penalties in other regions so long as they accomplish the ANOPR's intent to deter speculative projects.

E. Principle 5

The ANOPR provides that “utilities serving large loads, including those at hybrid facilities, should be responsible for transmission service based on their withdrawal rights, as that value amount reflects the quantity of capacity and energy that will be transmitted across the transmission system to the load.”³⁶ Under HILL, SPP treats large loads and co-located generation as distinct for tariff and metering purposes and assesses transmission service on the load's gross withdrawals, not net of on-site generation at the same bus.³⁷ This ensures that the transmission system is planned and funded to meet a large load's full reliability needs. This also avoids implicit cost shifts when an on-site generator is unavailable and the grid must stand ready to serve all of the large load's needs.³⁸ The HILL reform also assists with resolving issues surrounding the matching of load with

³³ See SPP Tariff, Attach. BA § 2.1.3.5.

³⁴ See *id.*, Attach BB § 8.2.

³⁵ *Id.*, Attach. AY §§ V.3.7.1.-7.2.

³⁶ ANOPR at P 28.

³⁷ See SPP Tariff, Attach. AE § 2.22.2; *id.*, Attach. BB, Appx. 2 §§ 7.1, 7.3.

³⁸ Cf Supplemental Comments of WIRES, Docket No. RM26-4 (Mar. 30, 2026) (presenting Concentric whitepaper that explains why direct assignment of network upgrade costs to large loads

generation by permitting new large loads to be served by both co-located generation and electrically proximate generation.

Of course, the new CPP regime greatly improves the transmission planning process by simultaneously solving both load and generator interconnection requirements, which allows SPP to develop plans that already reflect the value of “the capacity and energy that will be transmitted across the transmission system to the load.”³⁹ An important innovation in CPP is the designation of Planned Interconnection Locations, which bring upfront cost clarity to generators, especially when paired with the HILL innovations.

F. Principle 6

Principle 6 proposes to require hybrid interconnection customers to install system protection facilities in order to prevent unauthorized injections or withdrawals that exceed their injection and withdrawal rights.⁴⁰ The HILL reform more than satisfies this requirement. Specifically, a “HILLGA Customer must, at its expense, install, operate and maintain System Protection Facilities as a part of the Generating Facility or Interconnection Customer’s Interconnection Facilities.”⁴¹ SPP’s Tariff defines System Protection Facilities as “the equipment, including necessary protection signal communications equipment, required to protect (1) the Transmission System from faults or other electrical disturbances occurring at the Generating Facility and (2) the Generating Facility from faults or other electrical system disturbances occurring on the Transmission System or on other delivery systems or other generating systems to

may not adequately reflect their contributions to the system and result in indirect cost shifts to retail ratepayers over time).

³⁹ ANOPR at P 28.

⁴⁰ *See id.* P 23.

⁴¹ SPP Tariff, Attach. BB, Appx. 2 § 9.7.4.1 (System Protection Facilities)

which the Transmission System is directly connected.”⁴² Each party to a HILLGIA will have the right to inspect another party’s tests and/or inspection of any of its System Protection Facilities, review the settings of their System Protection Facilities, and review System Protection Facility maintenance records.⁴³ A HILLGA Customer bears responsibility for protecting the Generating Facility and its other equipment from certain conditions.⁴⁴

G. Principle 7

The ANOPR proposes that “the interconnection study of large loads that agree to be curtailable and hybrid facilities that agree to be curtailable and dispatchable should be expedited.”⁴⁵ SPP has taken this principle seriously as evidenced by the HILL reform and SPP’s pending CHILLS proposal. The HILL reform provides a 90-day expedited review process for generation projects in close electrical proximity to the load they are meant to serve.⁴⁶ SPP’s pending CHILLS proposal is similarly designed to provide non-firm, long-term transmission service to enable HILLs to receive transmission service “on an expedited basis” until the HILL’s Transmission Customer is able to obtain enough Designated Resources to support Long-Term Service and/or until necessary Network Upgrades are completed to provide Long-Term Service.⁴⁷ CHILLS is currently pending while SPP responds to clarifications recently requested by the

⁴² *Id.*, Attach. V § 1 Definitions: System Protection Facilities.

⁴³ *Id.* Attach. BB, Appx. 2, 3 § 6.4 (Right to Inspect).

⁴⁴ *Id.* Attach. BB, Appx. 2, 3 § 9.7.5 (Requirements for Protection).

⁴⁵ ANOPR at P 24.

⁴⁶ *See* SPP Tariff, Attach. BB; HILL Order at P 28 (“To allow for more rapid study and decision-making, SPP proposes to conduct a system impact study for HILLGA Requests within 90 calendar days of the HILLGA Review Period.”).

⁴⁷ Submission of Tariff Revisions to Add Conditional High Impact Large Load Service, Docket No. ER26-1323 at 8-9 (Feb. 10, 2026).

Commission.⁴⁸ The SPP TO Group strongly support CHILLS and recommends that the Commission approve that proposal as a valuable, region-specific means of expediting curtailable load interconnections.

H. Principle 8

The ANOPR proposes that “load and hybrid facilities should be responsible for 100% of the network upgrades that they are assigned through the interconnection studies” and “seek comment on whether such costs should be offset through a crediting mechanism and, if so, over how many years.”⁴⁹ The SPP TO Group believes it is important that new large loads pay for their share of the system’s imbedded costs, of which system upgrades are a part. For example, under the CPP and HILL framework, as well as the pending CHILLS framework, load and hybrid facilities will be responsible for the cost of upgrades. SPP, however, takes an additional step by actually reducing the need for upgrades through its identification of Planned Interconnection Locations.

Further, the SPP Tariff already provides a variety of crediting mechanisms applicable to large load interconnections. The SPP TO Group supported the HILL reform in part because it gives customers using the expedited interconnection process for large loads the same opportunity to receive transmission credits for network upgrades as it authorized for network upgrades associated with SPP’s Definitive Interconnection System Impact Study process.⁵⁰ And, under CPP, if an interconnection customer withdraws its interconnection request after the Decision Point,

⁴⁸ See Deficiency Letter, Docket No. ER26-1323 (Mar. 30, 2026).

⁴⁹ ANOPR at P 25.

⁵⁰ Compare SPP Tariff, Attach. BB, Appx. 2, 3 § 11.5 with *id.*, Attach. V § 4.2(1)(c); *id.*, Appx. 6 § 11.5. See also *id.*, Attach. BB, Appx. 2, 3 §§ 5.17.3 (detailing when a gross-up for the cost consequences of any tax liability would apply under a HILLGIA), 5.17.8 (providing for the remitting of certain tax payments and interest).

that interconnection customer forfeits a portion of its GRID-C, which is then credited to its transmission customers.⁵¹

I. Principle 9

The ANOPR proposes that “to the extent the interconnection customer is not the transmission owner, the interconnection customer shall be afforded the same (or equivalent) option to build as currently provided to generator interconnection customers.”⁵² Neither the HILL nor the CPP reform have provided generator interconnection customers an option to build in SPP. As the SPP TO Group explained in its initial comments, “large load interconnection customers are not similarly situated to generator interconnection customers and should not be afforded the same option to build interconnection facilities and stand-alone network upgrades” because they lack experience constructing or developing those facilities.⁵³

J. Principle 10

The ANOPR proposes that “an existing generating facility that seeks to enter a partial suspension to serve a new load at the same location must go through a system support resource (SSR)/reliability must run (RMR) type study.”⁵⁴ In addition, the ANOPR proposes that “[t]he partial suspension can only proceed after any network upgrades needed to ensure reliability are placed into service” and that any necessary “network upgrades shall be the responsibility of the generating facility.”⁵⁵

⁵¹ *Id.*, Attach. AY § 3.5.

⁵² ANOPR at P 26.

⁵³ Initial Comments at 9.

⁵⁴ ANOPR at P 27.

⁵⁵ *Id.*

Because SPP is primarily served by vertically integrated utilities and not Independent Power Producers (IPPs), Principle 10 is not relevant to SPP. Unlike IPPs, vertically integrated utilities are public utilities required to serve *all* of their customers. They do not have a reason—nor the ability—to divert their generation away from their customers. In other regions where that is an issue, the relevant transmission providers have already addressed it through their existing tariffs, as the SPP TO Group explained in its initial comments.⁵⁶ Those regional variations illustrate why the Commission should avoid a broad, overly prescriptive rule.

K. Principle 11

The ANOPR proposes that “utilities serving large loads, including those at hybrid facilities, should be responsible for transmission service based on their withdrawal rights, as that value amount reflects the quantity of capacity and energy that will be transmitted across the transmission system to the load.”⁵⁷ To the extent that “their withdrawal rights” refers to the withdrawal from the transmission system by the load, the HILL reform already adopts that framework. The HILL reform treats large loads and co-located generation as distinct for tariff and metering purposes and assesses transmission service on the load’s gross withdrawals, not net of on-site generation at the same bus.⁵⁸

L. Principle 12

The ANOPR proposes that “utilities serving large loads, including those at hybrid facilities, should be responsible for ancillary services based on peak demand, without consideration of any

⁵⁶ Initial Comments at 10 (citing PJM Interconnection, L.L.C.’s use of Necessary Studies, and Midcontinent Independent System Operator, Inc.’s use of SSR studies).

⁵⁷ ANOPR at P 28.

⁵⁸ See SPP Tariff, Attach. AE § 2.22.2; *id.*, Attach. BB, Appx. 2 §§ 7.1, 7.3.

co-located generation.”⁵⁹ It also proposes that “any co-located generating facilities will similarly be fully compensated for the provision of ancillary services.”⁶⁰ As with Principle 11, the HILL reform addresses this principle by treating large loads and co-located generation as distinct for tariff and metering purposes.

M. Principle 13

The ANOPR requires there be a transition plan to implement its proposed reforms.⁶¹ CPP provides that carefully-curated transition plan in SPP.⁶² The first CPP planning cycle will be limited to two years, and the initial GRID-C rates will be calculated in a specific “transition study” meant to “align technical assumptions between the previous ITP Assessment processes, the 20-Year Assessment, and the new CPP.”⁶³

N. Principle 14

Compliance with “all NERC reliability standards and OATT provisions” is a general background requirement underlying every point of SPP’s operations.⁶⁴ The CPP and HILL reforms comply with all applicable NERC requirements as demonstrated by the Commission’s acceptance of those reforms.

⁵⁹ ANOPR at P 29.

⁶⁰ *Id.*

⁶¹ *Id.* P 30.

⁶² *See* CPP Order at PP 143-44 (explaining SPP’s proposed transition to CPP).

⁶³ *Id.* P 143.

⁶⁴ ANOPR at P 31.

III. CONCLUSION

For the reasons set forth above, the SPP TO Group respectfully requests that the Commission carefully consider the above comments and decline to impose an overly-prescriptive nationwide rule.

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April 6, 2026

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CERTIFICATE OF SERVICE

I hereby certify that I have on this day caused to be served a copy of the foregoing comments upon all parties on the service list in these proceedings in accordance with the requirements of Rule 2010 of the Commission's Rules of Practice and Procedure, 18 C.F.R. § 385.2010 (2025).

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April 6, 2026

ATTACHMENT A
HILL ORDER

194 FERC ¶ 61,031
UNITED STATES OF AMERICA
FEDERAL ENERGY REGULATORY COMMISSION

Before Commissioners: Laura V. Swett, Chairman;
David Rosner, Lindsay S. See,
Judy W. Chang, and David LaCerte.

Southwest Power Pool, Inc.

Docket No. ER26-247-000

ORDER ACCEPTING TARIFF REVISIONS, SUBJECT TO CONDITION

(Issued January 14, 2026)

1. On October 24, 2025, pursuant to section 205 of the Federal Power Act (FPA)¹ and Part 35 of the Commission's regulations,² Southwest Power Pool, Inc. (SPP) submitted proposed revisions to its Open Access Transmission Tariff (Tariff) to add a High Impact Large Load (HILL) study process and High Impact Large Load Generation Assessment (HILLGA) process. As discussed below, we accept the proposed Tariff revisions,³ effective January 15, 2026, as requested, subject to condition, and direct SPP to submit a compliance filing within 30 days of the date of this order.

I. Background

A. Order No. 2003

2. In Order No. 2003,⁴ the Commission required public utilities that own, control, or operate transmission facilities to file standard generator interconnection procedures and a standard agreement to provide interconnection service to generating facilities with a capacity greater than 20 megawatts (MW). To this end, the Commission adopted the

¹ 16 U.S.C. § 824d.

² 18 C.F.R. pt. 35 (2025).

³ See Appendix for tariff records accepted in this order.

⁴ *Standardization of Generator Interconnection Agreements & Procs.*, Order No. 2003, 104 FERC ¶ 61,103 (2003), *order on reh'g*, Order No. 2003-A, 106 FERC ¶ 61,220, *order on reh'g*, Order No. 2003-B, 109 FERC ¶ 61,287 (2004), *order on reh'g*, Order No. 2003-C, 111 FERC ¶ 61,401 (2005), *aff'd sub nom. Nat'l Ass'n of Regul. Util. Comm'rs v. FERC*, 475 F.3d 1277 (D.C. Cir. 2007).

pro forma Large Generator Interconnection Procedures (LGIP) and *pro forma* Large Generator Interconnection Agreement (LGIA) and required all public utilities subject to Order No. 2003 to modify their tariffs to incorporate the *pro forma* LGIP and *pro forma* LGIA.⁵

3. The Commission permitted transmission providers to seek variations from the *pro forma* LGIP and *pro forma* LGIA if those variations were “consistent with or superior to” the terms of the *pro forma* LGIP and *pro forma* LGIA.⁶ In addition, the Commission indicated that it would allow regional transmission organizations and independent system operators (RTO/ISO), such as SPP, to propose independent entity variations for pricing and non-pricing provisions, stating that RTOs/ISOs have different operating characteristics due to their sizes and locations and that an RTO/ISO is less likely to act in an unduly discriminatory manner than a transmission provider that is also a market participant.⁷ The Commission found that RTOs/ISOs “shall therefore have greater flexibility to customize [their] interconnection procedures and agreements to fit regional needs.”⁸ Under the independent entity variation standard, an RTO/ISO must demonstrate that proposed variations from the Commission’s *pro forma* LGIP and *pro forma* LGIA are just and reasonable and not unduly discriminatory or preferential and accomplish the purposes of the Commission’s final rules on generator interconnection, including Order Nos. 2003 and 2023.⁹

B. Overview of SPP’s Attachments AQ, AX, and V Processes

4. SPP evaluates a transmission customer’s request to add or modify delivery point facilities associated with load additions under existing Attachments AQ (Delivery Point

⁵ Order No. 2003, 104 FERC ¶ 61,103 at PP 1-2.

⁶ *Id.* PP 825-826. The Commission also permitted transmission providers to justify a variation from the *pro forma* LGIP or *pro forma* LGIA based on regional reliability requirements and required transmission providers to submit these regional reliability variations to the Commission for approval under the relevant reliability standard. *Id.* PP 824, 826.

⁷ *Id.* P 827.

⁸ *Id.*

⁹ See, e.g., *Midcontinent Indep. Sys. Operator, Inc.*, 185 FERC ¶ 61,084, at P 11 (2023) (citing Order No. 2003, 104 FERC ¶ 61,103 at PP 26, 827); *Improvements to Generator Interconnection Procs. & Agreements*, Order No. 2023, 184 FERC ¶ 61,054, at P 1764, *order on reh’g*, 185 FERC ¶ 61,063 (2023), *order on reh’g*, Order No. 2023-A, 186 FERC ¶ 61,199, *errata notice*, 188 FERC ¶ 61,134 (2024).

Assessment Process) and AX (Provisional Load Process) of SPP's Tariff.¹⁰ Under the Attachments AQ and AX processes, SPP studies the impacts of the requested delivery point addition or modification on the transmission system and determines what, if any, network upgrades are required to accommodate the request. The Attachment AQ process is available to a transmission customer that has sufficient existing Designated Resources to serve its forecasted load, while the Attachment AX process is available to a transmission customer that lacks sufficient existing Designated Resources.¹¹

5. Under SPP's current generator interconnection procedures, contained in Attachment V (Generator Interconnection Procedures (GIP)) of its Tariff, SPP conducts its interconnection study process, the Definitive Interconnection System Impact Study (DISIS), for which the Commission has granted an independent entity variation.¹² The DISIS is divided into a two-phased system impact study in DISIS Phase One and DISIS Phase Two, which is followed by an interconnection facilities study. The system impact study is a cluster study that evaluates the impact of each proposed interconnection request on the reliability of SPP's transmission system. DISIS Phase One and DISIS Phase Two are each followed by an interconnection customer decision point (Decision Point One and Decision Point Two, respectively). The decision points provide interconnection customers opportunities to evaluate study results and decide whether to proceed with or withdraw their interconnection requests, including posting of financial security to continue.

II. Filing

A. Overview

6. SPP states that it is experiencing an unprecedented surge in requests for large-scale load interconnections to its transmission system from data centers, cryptocurrency mining operations, electrification of industrial processes, and other energy-intensive

¹⁰ SPP, Tariff, attach. AQ, § 1 (1.0.0); *id.* attach. AQ, § 2 (2.0.0); *id.* attach. AQ, § 3 (2.0.0); *id.* attach. AX, § 1 (0.0.0); *id.* attach. AX, § 2 (0.0.0).

¹¹ Transmittal at 14 n.26; *Sw. Power Pool, Inc.*, 193 FERC ¶ 61,018, at PP 3-5 (2025). Under Attachment AX, SPP will consider the transmission customer's planned generation, in addition to its existing Designated Resources, that will be used to serve its forecasted load. *Sw. Power Pool, Inc.*, 193 FERC ¶ 61,018 at PP 5, 41.

¹² SPP, Tariff, attach. V, § 8 (Definitive Planning Phase) (25.0.0), §§ 8.4, 8.10, 8.11; *see Sw. Power Pool, Inc.*, 191 FERC ¶ 61,230, at P 71 (2025); *Sw. Power Pool, Inc.*, 193 FERC ¶ 61,171, at P 4 (2025).

facilities.¹³ Specifically, SPP explains that in every year since 2021, transmission customers, specifically large loads of over 100 MW, have submitted requests to interconnect, in the form of Attachment AQ requests, in SPP totaling multiple gigawatts (GW). SPP notes that this growing trend in large load interconnection request submissions peaked in 2022 at nearly 11 GW, but since that peak, there has been a relative drop to approximately 6 GW in 2024, which, according to SPP, could be due in part to SPP's inability to study and interconnect large loads quickly enough to meet their commercial needs.¹⁴

7. SPP contends that the emergence of large load developments, which frequently request transmission service within months rather than years of their intended commercial operation, strain the legacy regulatory frameworks, planning processes, and market mechanisms that were originally designed for incremental and predictable load growth.¹⁵ SPP explains, for example, that large load customers are requesting faster deployment timelines for generating facilities supporting the load compared to typical interconnection study timelines.¹⁶ In addition, SPP states that large loads are highly energy intensive and concentrated and pose unique challenges to maintaining the reliable and economic operation of the bulk electric transmission system.¹⁷ SPP explains that these challenges will continue to grow absent additional processes to address the reliability and operational impacts of large loads.¹⁸ SPP further contends that load-serving entities and states in the SPP region have stressed the need to expedite the process of interconnecting and serving large loads.¹⁹

8. SPP states that, to address these challenges, it proposes additional study and operational tools to integrate large loads into SPP's transmission system and to provide a limited pathway for the expedited interconnection of generating facilities that are limited and targeted to serve individual large loads. Specifically, SPP proposes to add two new

¹³ Transmittal at 1.

¹⁴ *Id.* at 8-9, figs. 2, 3.

¹⁵ *Id.* at 9-10.

¹⁶ *Id.* at 11.

¹⁷ *Id.* at 4. SPP explains that large loads present unique operational and reliability challenges because they may exhibit nonconforming load profiles, the ability to ramp rapidly and flutter, and sensitivity to power quality issues. *Id.* at 10.

¹⁸ *Id.* at 4.

¹⁹ *Id.* at 3.

processes to its Tariff: (1) the HILL study process, set forth in new Attachment BA, which includes studies and operational requirements for large loads to interconnect to SPP's transmission system; and (2) the HILLGA process, set forth in new Attachment BB, which establishes an expedited study process and new limited interconnection service for generating facilities that support a HILL.²⁰

B. HILL Study Process

9. To assess and reliably manage the challenges associated with interconnecting large loads to its transmission system, SPP proposes to: (1) establish a new category of load, termed a "HILL;" (2) establish enhanced study requirements for HILLs to enable SPP to assess the load's reliability impacts on the transmission system; and (3) establish additional, on-going operational requirements for HILLs to ensure continued reliability of the transmission system.²¹

1. Definition of HILLs

10. SPP proposes to establish a new category of load, a HILL, which will be subject to the study and operational requirements of proposed Attachment BA. SPP proposes to define a HILL as:

A new commercial or industrial load, or increase in commercial or industrial load, at a single site connected through one or more shared Points of Interconnection (POIs) or delivery points, where such load is either (1) 10 MW or more if connected to the Transmission System at a voltage level less than or equal to 69 [kilovolts (kV)]; or (2) 50 MW or more if connected to the Transmission System at a voltage level greater than 69 kV. An Electric Storage Resource is not considered a HILL. A load may be categorized as a HILL after the initial effective date of Attachment BA of the Tariff. High Impact Large Loads must register as such in accordance

²⁰ *Id.* at 11.

²¹ *Id.*

with Attachment AE²² of the Tariff and follow the processes specified in Attachment BA of the Tariff.²³

11. SPP states that large loads can differ from traditional load in several ways, but they are primarily a facility requiring a large amount of energy at a single site.²⁴ To determine what qualifies as a “large” quantity of load, SPP consulted information gathered by the North American Electric Reliability Corporation (NERC) Large Load Task Force, which showed that survey participants qualified large load as load greater than 50 MW, though it may be relative to other factors such as the voltage level at the interconnection. To reflect that the size of the load may impact SPP’s transmission system differently at different voltage levels, SPP proposes to also include as a HILL loads that are at least 10 MW that connect at or below 69 kV.²⁵ SPP explains that although the NERC definition of the Bulk Electric System includes only transmission elements of 100 kV or higher, the proposed additional 10 MW threshold is necessary due to the prevalence of 69 kV lines in the Eastern Interconnection portion of SPP’s footprint.²⁶

12. SPP argues that the proposed HILL definition is based on current industry thinking, tailored to address the topology characteristics of the SPP transmission system, and will be used to categorize the specific types of loads that will be subject to the additional studies and requirements discussed above. SPP asserts that loads that do not fall within the HILL definition will be properly excluded from these additional studies and requirements, as will preexisting loads that may meet the definition but are currently operating within the SPP transmission system. SPP argues that the proposed definition is

²² Attachment AE in the Tariff contains provisions for SPP’s Integrated Marketplace, which includes day-ahead and real-time energy and operating reserve markets and a transmission congestion rights market.

²³ SPP, Tariff, pt. I, § 1 (Definitions H) (1.0.0). Existing loads will not be considered HILLs or be subject to the requirements of Attachment BA unless they seek to increase load and otherwise meet the definitional requirements. Transmittal at 12-13.

²⁴ Transmittal at 13. Additionally, SPP asserts that large loads can have high ramp rates and the potential to exhibit sudden and rapid changes at unpredictable times. *Id.* at 12.

²⁵ *Id.* at 13.

²⁶ *Id.* (citing NERC, *Glossary of Terms*, Bulk Electric System (Oct. 1, 2025), https://www.nerc.com/pa/stand/glossary%20of%20terms/glossary_of_terms.pdf).

thus narrowly tailored and targeted to identify those loads that may present a significant operational or reliability risk to the transmission system.²⁷

2. Enhanced Study Requirements

13. SPP states that, under the current Tariff, when a network customer or transmission customer (collectively, Transmission Customer)²⁸ applies for transmission service to serve a load, the load must undergo certain studies, as provided in Attachment AQ or Attachment AX. SPP proposes, in new Attachment BA, to require a series of up to three additional studies for Transmission Customers requesting to add or modify a delivery point associated with a HILL. SPP explains that these additional studies will assess the HILL's impact on SPP's transmission system.²⁹

14. Specifically, SPP states that all requests to add or modify a delivery point to accommodate a HILL will require a HILL Delivery Point Study (HDPS), which is a broader, more rigorous set of analyses compared to those under Attachment AQ or Attachment AX due to the potential for more significant impacts to the transmission system.³⁰ SPP states that the HDPS will assess the impacts of the HILL delivery point on the transmission system using power flow and short circuit analyses, and any other analyses that may be appropriate in accordance with SPP Business Practice 7850.³¹ SPP states that if these additional HDPS analyses identify weaknesses on the transmission system caused by the interconnection of the HILL, then SPP will also perform a supplemental Electromagnetic Transient (EMT) study.³²

²⁷ *Id.* at 21-22.

²⁸ A transmission customer is defined in part as “customers receiving transmission service under Part II and Part III of this Tariff.” SPP, Tariff, pt. I, § 1 (Definitions T) (5.0.0). Part III of SPP's Tariff also refers to these customers as network customers, which is defined as “[a]n entity receiving transmission service pursuant to the terms of the Transmission Provider's Network Integration Transmission Service [(NITS)] under Part III of the Tariff.” *Id.* § 1 (Definitions N) (3.0.0).

²⁹ Transmittal at 13-17.

³⁰ *Id.* at 15.

³¹ *Id.* at 15-16 (citing SPP, Open Access Transmission Tariff Business Practices, Business Practice 7850 (Delivery Point Additions, Modifications, and Retirements Procedures)).

³² *Id.* at 15. SPP explains that an EMT study may include EMT dynamic performance, sub-synchronous oscillation screening, converter-driven stability

15. For all requested HILL delivery point changes, SPP proposes to provide to the Transmission Customer a HILL Delivery Point Study Agreement (HDPS Agreement), and a request for any additional data or information required for the study.³³ SPP states that the Transmission Customer must return the HDPS Agreement, a \$10,000 non-refundable application fee, and a \$100,000 deposit to SPP within 30 calendar days, unless otherwise agreed upon, or SPP will deem the requested HILL delivery point change to be withdrawn.³⁴ Within 90 calendar days of receiving an executed HDPS Agreement, the study data, and deposit, SPP will complete the HDPS and issue a study report.³⁵ If SPP determines that an EMT study is necessary, it will require an additional \$200,000 deposit from the Transmission Customer. SPP states that these deposit amounts reflect the estimated costs of performing the studies under new Attachment BA. SPP explains that it must refund any excess deposit funds to the Transmission Customer, and the Transmission Customer must reimburse SPP for any unpaid study costs in excess of the deposit.³⁶

16. SPP states that the host transmission owner may also require additional analysis through a HILL Supplemental Load Connection Study (HSLCS), which will be coordinated through an agreement between the Transmission Customer and the host transmission owner.³⁷ SPP explains that the host transmission owner may require additional information from the Transmission Customer and an advance deposit of \$25,000 to conduct the study, but the host transmission owner may also determine that the HSLCS is unnecessary due to the Load Connection Study that is already required

assessments, power capability and control studies, emergency power control, fault ride-through, power quality evaluations, and model verification. *Id.* at 15 n.32.

³³ SPP, Proposed Tariff, attach. BA, § 2.1.3.4 (HILL Delivery Point Study) (0.0.0).

³⁴ Transmittal at 15; *see* SPP, Proposed Tariff, attach. BA, § 2.1.3.4 (HILL Delivery Point Study) (0.0.0), *id.* § 2.1.3.5 (Study Costs for HDPS) (0.0.0).

³⁵ SPP, Proposed Tariff, attach. BA, § 2.1.3.4 (HILL Delivery Point Study) (0.0.0). If SPP is unable to complete the HDPS within 90 days, it will notify the Transmission Customer and host transmission owner and provide an estimate of the time needed to reach a final determination. *Id.*

³⁶ Transmittal at 16; *see* SPP, Proposed Tariff, attach. BA, § 2.1.3.5 (Study Costs for HDPS) (0.0.0).

³⁷ Transmittal at 16; *see* SPP, Proposed Tariff, attach. BA, § 2.1.3.3 (HILL Supplemental Load Connection Study) (0.0.0).

under Attachment AQ or Attachment AX, as applicable.³⁸ SPP proposes that the host transmission owner must refund any excess deposit funds to the Transmission Customer, and the Transmission Customer must reimburse the host transmission owner for any unpaid study costs in excess of the deposit.³⁹

17. SPP contends that while the HDPS and HSLCS study procedures are consistent with the current study processes outlined in Attachments AQ and AX, the studies are more complex and detailed to allow SPP and the host transmission owner to study the impacts of the HILL on the transmission system.⁴⁰ SPP states that the additional studies are necessary to capture the unique behaviors of, and risks posed by, large loads and ensure reliable system performance. According to SPP, these additional studies take significantly more time and resources due to their scope, complexity, and computational demands, which, in turn, drives higher study costs compared to traditional load interconnection studies.⁴¹ SPP contends that the proposed study deposits are keyed to the anticipated costs of these HILL studies. SPP argues that the additional requirements also ensure that highly speculative HILLs are discouraged from applying to be studied.⁴²

3. Ongoing Reliability Requirements

18. SPP states that HILLs' unique characteristics necessitate that HILLs comply with certain reliability requirements. With respect to the Integrated Marketplace, SPP proposes that the market participant registering a HILL must: (1) follow all non-conforming load requirements (e.g., additional load forecast requirements, including providing an hourly load forecast value);⁴³ (2) provide load data via telemetry in real

³⁸ Transmittal at 16-17; *see* SPP, Proposed Tariff, attach. BA, § 2.1.3.3 (HILL Supplemental Load Connection Study) (0.0.0); *id.* attach. AQ, § 3 (2.0.0), § 3.1 (Load Connection Study), *id.* attach. AX, § 2 (0.0.0), § 2.1 (Load Connection Study).

³⁹ SPP, Proposed Tariff, attach. BA, § 2.1.3.3 (HILL Supplemental Load Connection Study) (0.0.0).

⁴⁰ Transmittal at 17.

⁴¹ *Id.*

⁴² *Id.* at 22.

⁴³ SPP proposes to define non-conforming load as load that cannot be generally forecasted through a mathematically derived pattern using only weather, time, season, or other normal forecasting methods. SPP, Proposed Tariff, attach. AE, § 1.1N (Definitions N) (5.0.1). SPP explains that the proposed definition distinguishes non-conforming load from load that follows the types of patterns typically used in SPP's load forecasts.

time; (3) have remote capability to disconnect the load from the transmission system made available to the transmission operator; (4) have an up/down ramp rate not exceeding 20 MW per minute unless otherwise directed; (5) include additional information with registration; and (6) not have withdrawals from the transmission system without appropriate transmission service.⁴⁴

19. Further, in order for the HILL to provide load data in real-time, SPP proposes to require the transmission owner, at the Transmission Customer's expense, to install a Phasor Measurement Unit (PMU) or similar equipment on the transmission owner's side of the HILL interconnection prior to the HILL's service commencement date.⁴⁵ SPP asserts that having this data is essential to ensuring reliability of the bulk power system and compliance with reliability standards, because it enhances SPP's ability to identify and respond to forced oscillations, monitor phase angles, assess voltage stability, and conduct post-event analysis. SPP explains that HILLs may have very fast changes in load and, because of their size and concentrated impacts, these changes can impact the transmission system so quickly that they cannot be captured by conventional supervisory control and data acquisition systems.⁴⁶

20. Additionally, SPP proposes that the Transmission Customer will be required to comply with the ride-through requirement guidelines outlined in SPP's "[HILL] Ride-Through Requirements" document, a non-Tariff document that was separately approved by SPP stakeholder working groups.⁴⁷ SPP states that, absent these ride-through requirements, HILLs have the potential to cause disturbances to the transmission system

Transmittal at 19.

⁴⁴ See SPP, Proposed Tariff, attach. AE, § 2.22 (High Impact Large Load Requirements) (0.0.0); *see also* SPP, Tariff, attach. AE, § 2.12 (Non-Conforming Load) (3.0.0) (imposing specific forecasting and data requirements for non-conforming load).

⁴⁵ Transmittal at 19; *see* SPP, Proposed Tariff, attach. BA, § 2.2.4 (Additional Requirements for Phasor Measurement Unit) (0.0.0). According to SPP, PMUs supply high-resolution, time-synchronized measurements that enable SPP to validate models, monitor dynamic performance, and detect disturbances that may otherwise lead to instability or widespread reliability impacts. Transmittal at 19.

⁴⁶ Transmittal at 19.

⁴⁷ *Id.* at 19-20. SPP is developing ride-through requirements for stand-alone HILLs, which include requirements for voltage and frequency ride through. *See* SPP documents, available at: <https://www.spp.org/spp-documents-filings/?id=19845>.

and the entire bulk power system. SPP states it will continue to modify its requirements as more defined requirements from NERC or the Commission become available.⁴⁸

21. SPP argues that the proposed ongoing operational requirements for HILLs are just and reasonable because they will afford SPP the opportunity to maintain reliable operation of the transmission system in light of the addition of HILLs to the system. SPP states that the requirements will ensure that SPP has sufficient visibility into some of the most impactful loads on the system, ensure that the utilities in the RTO footprint can serve load in real time, and ensure that the ability to shed a HILL is available, if needed.⁴⁹

C. HILLGA Process

22. SPP also proposes to implement the optional HILLGA process—a new generator interconnection service and related interconnection process—to facilitate the prompt interconnection of generating facilities that are specifically identified for and limited to serving a HILL.⁵⁰ SPP argues that the HILLGA process is just and reasonable and meets the independent entity variation standard by accomplishing the goals of Order Nos. 2003, 2023, and 2023-A by providing a path to ensure that HILLGA interconnection customers (HILLGA Customers) are able to interconnect to the transmission system, albeit on a limited basis, in a reliable, efficient, transparent, and timely manner.⁵¹

1. HILLGA Eligibility and Requirements

23. As part of the HILLGA process, SPP proposes to accept HILLGA Requests at any time.⁵² SPP contends that this proposed feature of the HILLGA process differs from the DISIS process and encourages more efficient capacity additions, a recognized goal of the

⁴⁸ Transmittal at 21 & n.58.

⁴⁹ *Id.* at 22.

⁵⁰ *Id.* at 23.

⁵¹ *Id.* at 32-33 (citing Order No. 2003, 104 FERC ¶ 61,103 at PP 822-27; Order No. 2023, 184 FERC ¶ 61,054 at P 10).

⁵² SPP proposes to define a HILLGA Request as “an Interconnection Request submitted, in the form specified in Appendix 1 to this Attachment BB, . . . to interconnect a new Generating Facility, or to increase the capacity of an Existing Generating Facility that is interconnected with the Transmission System.” SPP, Proposed Tariff, attach. BB, § 1 (Definitions) (0.0.0).

Commission.⁵³ SPP also proposes to require that all HILLGA Requests include the following: (1) an executed HILLGA Study Agreement and executed HDPS Agreement; (2) a nonrefundable application fee of \$20,000; (3) a study deposit of \$250,000 for HILLGA Requests up to 500 MW and \$500,000 for HILLGA Requests over 500 MW; (4) demonstration of site control; (5) a definitive POI; (6) the nameplate capacity, maximum injection capability, and network resource deliverability of the generating facility; (7) a security deposit equal to \$8,000/MW of the requested maximum injection capability; (8) reasonable evidence that the HILLGA Customer satisfies at least one of the listed development milestones (i.e., executed contracts, attestation that the generating facility is included in a state resource plan, and application for a land use permit); and (9) if applicable, the charging parameters and control technologies of the generating facility. SPP also proposes that the commercial operation date of the new generating facility or increase in capacity of an existing generating facility must be within five years from the execution date of the HILLGA Study Agreement.⁵⁴

24. SPP states that these requirements are similar to, but more stringent than, its existing requirements for the DISIS process. Specifically, SPP states that the application fee and security deposit for HILLGA Requests are double those in the DISIS process, and the study deposit for HILLGA Requests can reach up to \$500,000, whereas the study deposits for the DISIS process are capped at \$250,000 regardless of the size of the generating facility. Further, SPP states that the development milestone requirement for HILLGA Requests is at the beginning of the HILLGA process, whereas for the DISIS it is not until the end of the process.⁵⁵ SPP contends that these more stringent requirements will encourage the entry of commercially viable, shovel-ready generating facilities and deter speculative interconnection requests.⁵⁶

25. SPP further proposes that a HILLGA Customer must submit a separate HILLGA Request for each generating facility associated with a HILL. SPP states that, due to the limited nature of the interconnection,⁵⁷ the POI identified in the HILLGA Request must

⁵³ Transmittal at 24 (citing Order No. 2023, 184 FERC ¶ 61,054 at P 3).

⁵⁴ SPP, Proposed Tariff, attach. BB, § 8 (0.0.0), § 8.2 (Execution of HILLGA Study Agreement).

⁵⁵ Reasonable evidence of having satisfied at least one development milestone is required prior to the end of Decision Point Two in the DISIS process. SPP, Proposed Tariff, attach. V, § 8 (26.0.0), § 8.5.2 (Decision Point Two).

⁵⁶ Transmittal at 24-25.

⁵⁷ See *infra* P 66.

be no more than two substations away from the HILL at most.⁵⁸ In addition, SPP proposes that a generating facility may support multiple HILLs if no more than five substations are involved and no more than two existing transmission line segments are used between each substation. SPP states that these requirements are meant to ensure that the proposed generating facility can support the HILL(s) in a localized area.⁵⁹

26. SPP also proposes to cap the HILLGA Customer's generating facility's projected capacity accreditation MW value, as determined pursuant to Attachment AA of the Tariff,⁶⁰ at the requested MW load amount of the associated HILL, multiplied by the higher of: (1) 110% plus the highest approved Planning Reserve Margin percentage effective at the time of the HILLGA Study Agreement and outlined in the SPP Planning Criteria; or (2) 125%.⁶¹ SPP contends that this requirement will ensure that only the generation capacity necessary to serve the HILL is processed through the HILLGA process, while recognizing the load responsible entities' requirement to secure sufficient resources to cover the Planning Reserve Margin when the HILL receives long-term, firm transmission service.⁶²

2. HILLGA Study Process

27. Under the HILLGA process, SPP proposes to study HILLGA Requests to determine whether any network upgrades are needed to accommodate the generating facility's injection to the local area. SPP proposes that HILLGA Requests, which will be studied serially, will not be considered higher queued than DISIS requests but will be treated like existing generators and incorporated into SPP's Integrated Transmission Planning (ITP) models through the normal process. SPP further notes that HILLGA Requests will not appear in DISIS studies until the DISIS models have been updated to

⁵⁸ If the HILLGA Customer's generating facility is interconnecting to a 765 kV transmission line, the generating facility must be within one substation of the HILL. Transmittal at 27; *see* SPP, Proposed Tariff, attach. BB, § 3 (0.0.0), § 3.1.3 (HILLGA Requirements).

⁵⁹ Transmittal at 26-28.

⁶⁰ New thermal generating facilities in SPP have the option of using either their own design performance projections or a class average forced outage rate. New wind and solar generating facilities must either be submitted in time to be studied for the upcoming season or be assigned a default accreditation value. *See* SPP, Tariff, attach. AA, § 15 (Accredited Capacity) (4.0.0).

⁶¹ Transmittal at 26.

⁶² *Id.*

new ITP models and therefore cannot drive upgrade costs or restudies for those DISIS clusters. SPP contends that any upgrade costs required under the HILLGA process will be specific to the generating facility's injection for the local support of the HILL and will have limited impacts on other requests.⁶³

28. To allow for more rapid study and decision-making, SPP proposes to conduct a system impact study for HILLGA Requests within 90 calendar days of the HILLGA Review Period.⁶⁴ SPP further proposes that if a HILLGA Request requires a restudy due to the withdrawal or modification of a higher-queued HILLGA Request or a change to the applicable HILLGA Request's POI, SPP will notify the HILLGA Customer of the need for a restudy within 30 calendar days and will complete the restudy within 60 calendar days after the notification.⁶⁵ SPP states that the HILLGA process can accommodate this shortened timeline because HILLGA Requests will be handled through a simplified, serial process, and the generating facilities will be studied only for the limited purpose of injecting within the local area of the HILL.⁶⁶

29. SPP proposes to tender a draft HILL Generator Interconnection Agreement (HILLGIA) to the HILLGA Customer at the same time it posts the HILLGA system impact study report. SPP further proposes that the HILLGA Customer, the transmission owner, and SPP will then have 45 calendar days to negotiate the HILLGIA, unless the parties agree to a different timeline. SPP proposes that it will tender a final HILLGIA to the HILLGA Customer within 10 business days after the negotiation process concludes. Within 10 business days of receiving the final HILLGIA, the HILLGA Customer must either execute the HILLGIA or request that it be filed unexecuted with the Commission.⁶⁷

⁶³ *Id.* at 32.

⁶⁴ *Id.* at 30. The HILLGA Review Period is the time following SPP's receipt of the HILLGA Request through the time period allowed for the HILLGA Customer to cure any deficiencies in the request. SPP, Proposed Tariff, attach. BB, § 1 (Definitions) (0.0.0). During the HILLGA Review Period, SPP will validate HILLGA Requests within 15 calendar days. SPP will provide written notice of any deficiencies with the request, and the HILLGA Customer will then have 10 business days to cure any deficiencies. *Id.* § 8 (0.0.0), § 8.3 (HILLGA Review Period).

⁶⁵ SPP, Proposed Tariff, § 8 (0.0.0), § 8.8 (Restudy of HILLGA System Impact Study).

⁶⁶ Transmittal at 30-31.

⁶⁷ *Id.* at 31; *see* SPP, Proposed Tariff, attach. BB, § 11 (0.0.0), §§ 11.1 (Tender), 11.2 (Negotiation), 11.3 (Execution and Filing).

30. Additionally, SPP proposes to coordinate with affected system operators on any studies necessary to determine impacts from a HILLGA Request on an affected system.⁶⁸ SPP also proposes to determine whether a HILLGA Request has an impact on any Joint Targeted Interconnection Queue (JTIQ) upgrades.⁶⁹ If a HILLGA Request is determined to impact one or more JTIQ upgrades, SPP proposes to allocate to the HILLGA Customer a portion of the costs of a portfolio of JTIQ upgrades based on the amount of interconnection service requested in the HILLGA Request.⁷⁰

31. SPP asserts that the proposed HILLGA study process represents a reasonable approach to address large load generation needs without disadvantaging requests in the DISIS queue because the modeling and queue priority of any pending DISIS interconnection requests will not be affected by the HILLGA process. In addition, SPP asserts that the HILLGA study process will not affect the timing of any pending DISIS interconnection requests because the HILLGA process will be predominantly completed by outside consultants paid for by the HILLGA Customer through the required study deposits. SPP also argues that the HILLGA framework is narrowly tailored and targeted to allow additional generating facilities to interconnect faster and more efficiently to the transmission system to support HILLs.⁷¹

3. Load Limited Resource Interconnection Service Available to Serve HILLs

32. SPP proposes to grant HILLGA Customers a new type of interconnection service, called Load Limited Resource Interconnection Service (LLRIS), which grants limited interconnection service solely to support the associated HILL.⁷² Under LLRIS, the maximum economic capacity operating limits of the HILLGA Customer's generating

⁶⁸ Transmittal at 31; *see* SPP, Proposed Tariff, attach. BB, § 3 (0.0.0), § 3.6 (Coordination with Affected Systems).

⁶⁹ The JTIQ process involves a joint study between SPP and the Midcontinent Independent System Operator, Inc. (MISO) that aims to identify transmission network upgrades along the MISO-SPP seam that will enable future generating facilities to interconnect to the transmission grid.

⁷⁰ SPP, Proposed Tariff, attach. BB, § 3 (0.0.0), § 3.6.4 (JTIQ Provisions).

⁷¹ Transmittal at 35-38.

⁷² *Id.* at 29; *see* SPP, Proposed Tariff, attach. BB, § 3 (0.0.0), § 3.2 (Load Limited Resource Interconnection Service). LLRIS is the only "Interconnection Product Option" available to HILLGA Customers in the HILLGIA. *See* SPP, Proposed Tariff, attach. BB, app. 2 (0.0.0), art. 4 (Scope of Service).

facility cannot exceed the hourly load forecast value of the corresponding HILL except when directed by the SPP Reliability Coordinator to mitigate emergency conditions or as specified in the HILLGIA.⁷³

33. SPP proposes that the HILLGIA will automatically terminate under its own terms five years after the commercial operation date of a generating facility, which will correspondingly terminate any LLRIS granted by the HILLGIA.⁷⁴ SPP states that if the HILLGA Customer wishes for its generating facility to remain interconnected to the SPP transmission system beyond the five-year limit of LLRIS, it must submit a separate interconnection request through the DISIS process.⁷⁵ SPP asserts that the limited duration of LLRIS recognizes the importance of SPP's DISIS process and balances use of that process with the desire to interconnect HILLs in an expedited manner.⁷⁶

34. SPP states that LLRIS does not convey any type of transmission service for generating facilities serving a HILL.⁷⁷ SPP states that HILLGA Customers must obtain transmission service outside the HILLGA process to deliver the output from a generating facility to the HILL. SPP explains that, in the short term, HILLGA Customers may obtain short-term service or non-firm point-to-point transmission service, based on available transfer capability, if the delivery point was established under Attachment

⁷³ See SPP, Proposed Tariff, attach. AE, § 2.22.2 (Resource Supporting a HILL) (0.0.0). The maximum economic capacity operating limit, or economic MW level at or below a resource's maximum normal capacity operating limit used for constraining energy dispatch and contingency reserve clearing during normal system conditions, is used within SPP's algorithms when considering a resource's commitment in the day-ahead and intra-day reliability unit commitment executions in SPP's Integrated Marketplace. See SPP, Tariff, attach. AE, § 1.1M (Definitions), *id.* § 5.2.2 (Day-Ahead Reliability Unit Commitment Execution),); *id.* § 6.1.2 (Intra-Day Reliability Unit Commitment Execution).

⁷⁴ Transmittal at 36; see SPP, Proposed Tariff, attach. BB, app. 2 (0.0.0), art. 2.2 (Term of Agreement).

⁷⁵ Transmittal at 5, 29.

⁷⁶ *Id.* at 36.

⁷⁷ *Id.* at 20; see SPP, Proposed Tariff, attach. BB, §1 (Definitions) (0.0.0) (defining LLRIS); see also SPP, Proposed Tariff, attach. BB, app. 2 (0.0.0), art. 4.4 ("The execution of this HILLGIA does not constitute a request for, nor the provision of, any transmission delivery service under Transmission Provider's Tariff, and does not convey any right to deliver electricity to any specific customer or Point of Delivery.").

AX.⁷⁸ SPP explains that, to serve a HILL on a long-term basis, HILLGA Customers must obtain long-term point-to-point transmission service or NITS through the Aggregate Transmission Service Study process under Attachment Z1 of the Tariff.⁷⁹ SPP notes that, to obtain NITS, the HILLGA Customer must also change its generation injection rights from LLRIS to Energy Resource Interconnection Service (ERIS) or Network Resource Interconnection Service (NRIS) through SPP's GIP.⁸⁰

III. Notice of Filing and Responsive Pleadings

35. Notice of SPP's filing was issued on October 27, 2025, with interventions and protests due on or before November 14, 2025 at 5:00 PM EST.

36. Timely notices of intervention were filed by the Louisiana Public Service Commission, the Missouri Public Service Commission, and the Public Utility Commission of Texas. Timely motions to intervene were filed by: American Clean Power Association and Advanced Power Alliance, jointly; American Electric Power Service Corporation (AEP), on behalf of its affiliates Public Service Company of Oklahoma, Southwestern Electric Power Company, AEP Oklahoma Transmission Company, Inc., and AEP Southwestern Transmission Company, Inc.; Arevon Energy, Inc.; Basin Electric Power Cooperative; Calpine Corporation; City Utilities of Springfield, Missouri; Constellation Energy Generation, LLC; EDF Power Solutions, Inc.; Electric Power Supply Association; The Empire District Electric Company; Evergy Companies;⁸¹ Geronimo Power, LLC; GridStor LLC; Kansas Electric Power Cooperative, Inc.; Longroad Energy Holdings, LLC; LS Power Development, LLC; Monitoring Analytics, LLC, acting in its capacity as the Independent Market Monitor for PJM; Natural Resources Defense Council and Sustainable FERC Project, jointly; NextEra Energy Resources, LLC; Oklahoma Gas and Electric Company (OG&E); Omaha Public Power District; Orion Renewable Energy, LLC; Sierra Club; Sunflower Electric Power Corporation; Triple Oak Power LLC; Tri-State Generation and Transmission Association, Inc.; Western Farmers Electric Cooperative; and Xcel Energy Services Inc. (Xcel), on behalf of its affiliate Southwestern Public Service Company (SPS).

⁷⁸ Transmittal at 29.

⁷⁹ *Id.* at 29-30.

⁸⁰ *Id.* at 29-30.

⁸¹ Evergy Companies include the following subsidiaries of Evergy, Inc.: Evergy Kansas Central, Inc.; Every Metro, Inc.; and Evergy Missouri West, Inc.

37. On November 4, 2025, Eolian, L.P. (Eolian) filed a motion for extension of time to submit interventions and comments. On November 7, 2025, the SPP Transmission Owner Group (SPP TO Group)⁸² submitted an answer opposing the motion. On November 12, 2025, the motion for extension of time was denied.⁸³

38. Timely motions to intervene and comments in support of SPP's filing were filed by: Advanced Energy United (Advanced Energy); Eolian; ITC Great Plains, LLC (ITC Great Plains); Solar Energy Industries Association (SEIA); and SPP Market Monitoring Unit (SPP MMU). SPP TO Group filed timely comments in support of SPP's filing. Enchanted Rock, LLC (Enchanted Rock) filed a timely motion to intervene and comments requesting that the Commission accept SPP's filing subject to certain conditions.

39. On November 17, 2025, Electricity Consumers Resource Council filed an out-of-time motion to intervene. On November 24, 2025, Nebraska Public Power District filed an out-of-time motion to intervene.

40. On December 2, 2025, SPP TO Group filed a motion for leave to answer and answer. On December 4, 2025, SPP filed a motion for leave to answer and answer. On December 9, 2025, Eolian filed a motion for leave to answer and answer. On December 10, 2025, Enchanted Rock filed a motion for leave to answer and answer.

A. Comments and Answers

1. Comments

a. General Comments in Support

41. Several commenters argue that SPP's Tariff revisions to implement the HILL and HILLGA processes are just and reasonable and not unduly discriminatory or preferential.⁸⁴ Commenters assert that SPP's proposal provides a faster process for interconnecting large loads and generators serving those loads.⁸⁵ Commenters also

⁸² SPP TO Group includes: AEP, Evergy Companies, OG&E, and Xcel, on behalf of SPS.

⁸³ *Sw. Power Pool, Inc.*, Notice Denying Extension of Time, Docket No. ER26-247-000 (issued Nov. 12, 2025).

⁸⁴ Advanced Energy Comments at 1; Eolian Comments at 3; ITC Great Plains Comments at 2; SEIA Comments at 4; SPP TO Group Comments at 2, 18.

⁸⁵ Advanced Energy Comments at 4, 9; Eolian Comments at 3-4; SEIA Comments

contend that SPP's proposed HILL study process appropriately addresses the unique operating characteristics of HILLs to ensure their reliable interconnection to SPP's transmission system.⁸⁶ In addition, commenters argue that the HILL reliability requirements will avoid adverse reliability impacts after a HILL is interconnected and provide proportionate and transparent tools to manage the risks that large loads pose to the reliability of the transmission system.⁸⁷ Commenters also contend that SPP's proposed higher application fees, study deposits, and financial security requirements will prevent speculative projects and ensure only shovel-ready projects enter the HILL study process.⁸⁸

42. Commenters also assert that SPP's proposed HILLGA process addresses the need for new generation to serve large loads while ensuring that there are sufficient guardrails to avoid undue discrimination and prejudice.⁸⁹ In particular, commenters contend that SPP's proposal treats HILLGA Requests as existing generators and incorporates them into its ITP models, meaning that HILLGA Requests will not be incorporated into the DISIS models until after such models have been updated to reflect the new ITP models, which will prevent a HILLGA Request from increasing costs or restudies for interconnection customers in the DISIS.⁹⁰ Commenters also support SPP's proposed LLRIS because it does not provide transmission service, it is instead a narrower and more temporary interconnection service, and a HILLGA Customer will not be granted NRIS or ERIS unless it applies through SPP's standard interconnection processes.⁹¹

at 6; SPP TO Group Comments at 1-2.

⁸⁶ Advanced Energy United Comments at 4-5; ITC Great Plains Comments at 3-4; SPP TO Group Comments at 13.

⁸⁷ Advanced Energy Comments at 5; SEIA Comments at 4-5; SPP TO Group Comments at 6.

⁸⁸ Advanced Energy Comments at 5; SPP TO Group Comments at 15-17.

⁸⁹ Advanced Energy Comments at 6; SPP TO Group Comments at 18.

⁹⁰ Advanced Energy Comments at 8; SEIA Comments at 5; SPP TO Group Comments at 10, 19.

⁹¹ Advanced Energy Comments at 7; ITC Great Plains Comments at 6-7; SEIA Comments at 5; SPP TO Group Comments at 8-9.

b. Advanced Energy

43. In addition to its general support for the proposal as noted above, Advanced Energy asserts that SPP's proposed geographic requirements in the HILLGA process will minimize impacts on other interconnection customers by requiring the identification of the POI for the proposed generating facility and requiring that it be in close electrical proximity in the same area to the load. Advanced Energy explains that studying the local impacts and requiring that generation only serve the HILL will aim to reduce withdrawals that cause additional restudies.⁹² Advanced Energy argues that SPP's proposed HILLGA process links the generating facility with the HILL, which ensures upgrade costs are associated with that project, rather than passed on to other customers. Advanced Energy explains that these geographic limitations will lead to fewer triggered upgrades and minimal impacts on other interconnection requests, while also minimizing congestion that could have broader adverse impacts.⁹³

c. Eolian

44. Eolian generally supports SPP's proposal as noted above, but states that SPP should clarify that non-HILLGA generating facilities may serve as designated or planned generation to serve a HILL for purposes of Attachments AQ and AX.⁹⁴ Specifically, Eolian requests that SPP clarify that its Tariff revisions do not restrict non-HILLGA generating facilities from specifically serving a HILL for purposes of demonstrating adequate designated or planned generation pursuant to the relevant transmission service study. Eolian asserts that such clarification would remove any doubt that SPP's proposal would result in undue discrimination among HILLGA and non-HILLGA generating facilities that are equally technically capable of serving a HILL's needs and supporting a Transmission Customer's ability to establish transmission service for that load.⁹⁵

d. SEIA

45. While SEIA generally supports SPP's proposal as discussed above, SEIA also urges SPP to actively monitor and periodically report to the Commission and stakeholders on the effectiveness of the HILL and HILLGA processes to meet rising demand and support the reliable integration of new, concentrated large loads and local

⁹² Advanced Energy Comments at 8 (citing Transmittal at 32).

⁹³ *Id.*

⁹⁴ Eolian Comments at 12.

⁹⁵ *Id.*

interconnection of associated generating facilities.⁹⁶ In addition, SEIA contends that it is essential that SPP honor its pledge to dedicate sufficient resources to continue to meet its obligations regarding the standard interconnection process and pending DISIS requests.⁹⁷

e. SPP MMU

46. SPP MMU states that the Commission should accept SPP's filing. SPP MMU explains that it was concerned during the overall development of SPP's proposal that HILLs, whether deemed conforming or non-conforming load, were not incentivized to submit accurate operational load forecasts. SPP MMU explains that an increase in large loads on the system will only increase the current operational needs for accurate load forecasts to be used in the Reliability Unit Commitment process and that SPP should pursue future Tariff changes to address the issue. SPP MMU contends that "requirements for HILLs should either immediately apply to all load meeting [SPP's proposed] criterion; or there should be a reasonable near-term line-of-sight to applying [SPP's proposed] requirements to existing HILLs."⁹⁸ SPP MMU states that it encourages SPP to re-evaluate the grandfathering of HILL requirements after implementation of its proposed HILL and HILLGA processes.⁹⁹

f. SPP TO Group

47. As noted above, SPP TO Group supports SPP's proposal. SPP TO Group argues that interconnecting new large loads raises questions of federal and state jurisdiction. SPP TO Group asserts that SPP crafted its HILL proposal to avoid crossing into state regulation, as the proposal does not dictate terms and conditions for retail sales to end-use customers and, indeed, largely replicates SPP's existing load and generation interconnection procedures, except with stricter requirements.¹⁰⁰

g. Enchanted Rock

48. Enchanted Rock states that it generally supports SPP's efforts to establish HILL and HILLGA Tariff provisions, which facilitate the expedited, flexible, and cost-effective interconnection of large loads. Enchanted Rock, however, requests that the Commission

⁹⁶ SEIA Comments at 6.

⁹⁷ *Id.* at 6-7 (citing Transmittal at 35).

⁹⁸ SPP MMU Comments at 3.

⁹⁹ *Id.*

¹⁰⁰ SPP TO Group Comments at 20.

direct SPP to revise its capacity accreditation limits to instead be the associated HILL's requested load, multiplied by the greater of: "[(1)] 110% plus the Planning Reserve Margin outlined in the HILLGA Study Agreement; or [(2)] 150%, *rather than the currently proposed 125% value.*"¹⁰¹ Enchanted Rock explains that it is standard industry practice for generation facilities to be oversized relative to their associated HILL demand value to build in redundancies for generator failures and that large load customers' targeted availability rates of 99.9% to 99.999% requires significant oversizing of on-site generation, while back-up-only, on-site configurations require approximately 25% excess on-site capacity to ensure reliable service.¹⁰² Enchanted Rock argues that this higher capacity accreditation cap will ensure that many on-site power solutions are not unnecessarily restricted from being able to meet SPP's proposed HILL and HILLGA processes' broader goals, while also recognizing the extent to which many on-site power solutions must be oversized in order to meet large load customers' availability needs in the short term.¹⁰³

2. Answers

a. SPP

49. SPP states that, apart from Enchanted Rock, all commenters support the Commission approving SPP's proposal as just and reasonable and not unduly discriminatory or preferential.¹⁰⁴ SPP contends that while Enchanted Rock's comments request specific modifications to SPP's proposal, Enchanted Rock does not argue that SPP's proposal is unjust or unreasonable.¹⁰⁵ SPP argues that under FPA section 205, it must only show that its proposal is just and reasonable, not that it is the best approach, better than preferred alternatives, or even better than the current Tariff. SPP argues that its proposal is just and reasonable and that the Commission should accept it.¹⁰⁶

50. In response to Enchanted Rock's request to modify the capacity accreditation cap, SPP explains that it limited the size of HILLGA Requests in its proposal to ensure that

¹⁰¹ Enchanted Rock Comments at 6 (citing SPP, Proposed Tariff, attach. BB, § 3.1.3.2) (emphasis in original).

¹⁰² *Id.* at 5.

¹⁰³ *Id.* at 6-7.

¹⁰⁴ SPP Answer at 3.

¹⁰⁵ *Id.* at 3-4.

¹⁰⁶ *Id.* at 4.

the generating facility being studied would only have injection rights, or LLRIS, necessary to support the HILL. SPP asserts that this limitation prevents generating facilities from impacting other pending interconnection requests.¹⁰⁷ SPP states that nothing in its Tariff prevents a HILLGA generating facility owner from having as much redundant generating capacity as it thinks is needed to support reliability.¹⁰⁸ SPP explains, however, that its proposal will limit the injection rights to the quantity that is necessary to support the HILL. SPP argues that its proposal allows sufficient generation to be built to serve the HILL in the near-term and allows sufficient generation to be studied to satisfy the capacity needs of the HILL after it takes firm transmission service.¹⁰⁹

51. SPP further argues that SEIA's requested reporting requirement is not needed.¹¹⁰ SPP contends that it and its stakeholders continuously monitor every service provided under the Tariff and that SPP will monitor the effectiveness of the HILL and HILLGA framework in addressing the exponential growth in large loads.¹¹¹

52. In response to Eolian, SPP states that its Tariff processes remain unchanged other than those proposed in its filing.¹¹² SPP asserts that its proposal does not change the types of resources that are currently eligible to be studied in the processes outlined in Attachments AQ and AX of its Tariff. According to SPP, any generating facility that is eligible to serve load through SPP's transmission service processes today will continue to be eligible if the Commission approves SPP's proposal, which includes loads that qualify as HILLs. SPP asserts that its proposal does not contain any proposed Tariff language to the contrary and that there is no need for SPP to make any clarifications as requested by Eolian.¹¹³

¹⁰⁷ *Id.* at 6.

¹⁰⁸ *Id.* at 6-7.

¹⁰⁹ *Id.* at 7.

¹¹⁰ *Id.* (citing SEIA Comments at 6).

¹¹¹ *Id.* at 8.

¹¹² *Id.* at 9 (citing Eolian Comments at 2).

¹¹³ *Id.*

b. SPP TO Group

53. In response to Enchanted Rock's comments, SPP TO Group argues that accepting Enchanted Rock's proposed condition would not be a "minor modification" to SPP's proposal, would subvert the fundamental understanding of SPP's proposal, and would impose an entirely new rate scheme contrary to *NRG*.¹¹⁴ SPP TO Group states that the entire point of limiting HILLGA generators to LLRIS is to "grant[] limited interconnection rights solely to support the HILL, which limits both the impacts of the generation on SPP's [t]ransmission [s]ystem and potential [n]etwork [u]pgrade costs." SPP TO Group argues that SPP stakeholders supported and voted in favor of SPP's proposal because it was narrowly tailored to limit HILLGA generators to serving a designated HILL.¹¹⁵

3. Answers to Answers

a. Eolian

54. Eolian states that it requested clarification from SPP that its Tariff revisions would not restrict non-HILLGA generating facilities from specifically serving HILLs for the purposes of demonstrating adequate designated or planned resources pursuant to the relevant transmission study.¹¹⁶ Eolian asserts that SPP's answer explained that SPP's proposal does not change the types of generating facilities that are currently eligible to be studied in the processes outlined in Attachments AQ and AX of its Tariff, that any generating facility that is eligible to serve load through SPP's transmission service processes today will continue to be eligible if the Commission approves SPP's proposal, and that SPP's proposal does not contain any proposed Tariff language to the contrary.¹¹⁷ Eolian states that SPP's answer satisfies Eolian's prior request for clarification.¹¹⁸

b. Enchanted Rock

55. Enchanted Rock states that it recognizes SPP's clarification in its answer that the HILLGA process, if approved, would not interfere with a generator's installation of

¹¹⁴ SPP TO Group Answer at 5 (citing *NRG Power Mktg., LLC v. FERC*, 862 F.3d 108 (D.C. Cir. 2017) (*NRG*)).

¹¹⁵ *Id.* at 6.

¹¹⁶ Eolian Answer at 1 (citing Eolian Comments at 12).

¹¹⁷ *Id.* (citing SPP Answer at 9).

¹¹⁸ *Id.*

redundant on-site capacity and, accordingly, requests that the Commission accept SPP's proposal without condition.¹¹⁹

IV. Discussion

A. Procedural Matters

56. Pursuant to Rule 214 of the Commission's Rules of Practice and Procedure, 18 C.F.R. § 385.214 (2025), the notices of intervention and timely, unopposed motions to intervene serve to make the entities that filed them parties to this proceeding.

57. Pursuant to Rule 214(d) of the Commission's Rules of Practice and Procedure, 18 C.F.R. § 385.214(d) (2025), we grant Electricity Consumers Resource Council's and Nebraska Public Power District's late-filed motions to intervene given their interest in the proceeding, the early stage of the proceeding, and the absence of undue prejudice or delay.

58. Rule 213(a)(2) of the Commission's Rules of Practice and Procedure, 18 C.F.R. § 385.213(a)(2) (2025), prohibits an answer to a protest or answer unless otherwise ordered by the decisional authority. We accept the answers filed by SPP TO Group, SPP, Eolian, and Enchanted Rock because they have provided information that assisted us in our decision-making process.

B. Substantive Matters

59. As discussed below, we find SPP's proposed Tariff revisions to establish the HILL and HILLGA processes to be just and reasonable and not unduly discriminatory or preferential and, therefore, accept them, effective January 15, 2026, as requested, subject to condition,¹²⁰ and direct SPP to submit a compliance filing within 30 days of the date of this order.

60. SPP has shown that unprecedented growth in large loads in the SPP region presents significant and unique operational and planning challenges. We find that SPP's proposed HILL and HILLGA processes are a just and reasonable and not unduly discriminatory or preferential approach to addressing these challenges, while maintaining the reliable operation of SPP's transmission system. We also find that SPP's proposed Tariff revisions implementing the HILLGA process accomplish the purposes of the Commission's final rules on generator interconnection, including Order Nos. 2003 and

¹¹⁹ Enchanted Rock Answer at 2-3 (citing SPP Answer at 7).

¹²⁰ See *NRG*, 862 F.3d at 114-15 (discussing the Commission's authority to propose modifications to a utility's FPA section 205 rate proposal).

2023, by helping to ensure that interconnection customers seeking to serve HILLs in SPP are able to interconnect to the transmission system in a reliable, efficient, transparent, and timely manner.¹²¹ Therefore, we find that SPP's proposed Tariff revisions implementing the HILLGA process meet the independent entity variation standard.

1. HILL Process

61. We find that SPP has demonstrated that its proposed HILL process—including the definition of HILLs, study requirements for HILLs, and ongoing reliability requirements for HILLs—is a just and reasonable and not unduly discriminatory or preferential approach for integrating Transmission Customers' new large loads into SPP's transmission system in a manner that enables SPP to maintain reliable operation of that system. We find that it is reasonable to subject HILLs, as SPP proposes to define them, to additional study requirements and the other proposed requirements set forth in Attachment BA given their unique operating characteristics. We also find that the voltage criterion in the proposed HILL definition recognizes that different-size loads may have different impacts on the transmission system depending on the voltage level at which they interconnect and reflects the prevalence of 69 kV transmission lines in the Eastern Interconnection portion of SPP's footprint.

62. Regarding SPP's proposed HDPS, EMT study, and HSLCS, we find that these proposed study requirements for HILLs, in conjunction with the existing study requirements in Attachments AQ and AX of SPP's Tariff, will help to ensure the reliable integration of Transmission Customers' HILLs into SPP's transmission system. We find that the proposed study requirements for HILLs will provide SPP with information about their impact on SPP's transmission system, including the transmission system's ability to withstand and control disturbances by the HILL at the point of interconnection. In addition, we find that the proposed study deposits reflect the estimated costs of the studies to be performed and will help discourage speculative HILL study requests. Further, refunding any excess portion of the deposit ensures Transmission Customers will pay only the actual study amount. We further find that allocating the study deposits and study costs to the Transmission Customer requesting a delivery point modification associated with a HILL is consistent with the Commission's cost causation principle.¹²²

¹²¹ Order No. 2003, 104 FERC ¶ 61,103 at PP 26, 827; Order No. 2023, 184 FERC ¶ 61,054 at P 1.

¹²² The cost causation principle requires costs to be allocated to those who cause the costs to be incurred and reap the resulting benefits. *See S.C. Pub. Serv. Auth. v. FERC*, 762 F.3d 41, 87 (D.C. Cir. 2014) (citing *Nat'l Ass'n of Regul. Util. Comm'nrs v. FERC*, 475 F.3d 1277, 1285 (D.C. Cir. 2007)).

63. We find that the proposed ongoing reliability requirements related to HILLs, including, among other things, non-conforming load forecasting, PMU, and ride-through requirements, are also just and reasonable and not unduly discriminatory or preferential. We find that the proposed requirements will allow SPP to maintain reliable operation of its transmission system by increasing SPP's visibility, providing necessary data, and imposing real-time operational safeguards for HILLs.

2. HILLGA Process

64. As noted above, the Commission applies an independent entity variation standard to evaluate RTO/ISO proposals for deviations from the Commission's *pro forma* LGIP and *pro forma* LGIA.¹²³ Under the independent entity variation standard, SPP must demonstrate that its proposed variations are just and reasonable and not unduly discriminatory or preferential and accomplish the purposes of the Commission's final rules on generator interconnection, including, as relevant here, Order Nos. 2003 and 2023.¹²⁴ We grant SPP an independent entity variation for its proposed HILLGA process because we find that the proposed process is just and reasonable and not unduly discriminatory or preferential and accomplishes the purposes of Order Nos. 2003 and 2023 to ensure that interconnection customers are able to interconnect to the transmission system in a reliable, efficient, transparent, and timely manner.¹²⁵ As discussed further below, we find that SPP's HILLGA process reasonably provides a flexible, expedited, and separate serial interconnection process that will facilitate the prompt interconnection of generating facilities that are limited to serving a HILL in the same local area.

65. We find that the more stringent eligibility requirements for the HILLGA process, compared to the requirements set forth in the Commission's *pro forma* LGIP, are just and reasonable and not unduly discriminatory or preferential because they will help deter speculative interconnection requests from entering the expedited interconnection process. Specifically, we find that the more stringent financial commitments, the obligation to satisfy a development milestone earlier in the process, and the requirement that

¹²³ See, e.g., Order No. 2003, 104 FERC ¶ 61,103 at P 827; Order No. 2023, 184 FERC ¶ 61,054 at P 1764 & n.3346.

¹²⁴ See, e.g., *Sw. Power Pool, Inc.*, 183 FERC ¶ 61,215, at P 30 (2023) ("Under the independent entity variation standard, SPP must demonstrate that its proposed variations are just and reasonable and not unduly discriminatory or preferential, and accomplish the purposes of the Commission's rulemakings establishing the *pro forma* generator interconnection procedures and agreements.").

¹²⁵ See, e.g., Order No. 2023, 184 FERC ¶ 61,054 at P 693 ("This approach achieves the Commission's goals of ensuring that interconnection customers are able to interconnect in a reliable, efficient, transparent, and timely manner.").

generating facilities enter commercial operation within five years of executing the HILLGA Study Agreement, among other requirements, will encourage the submission of more commercially ready and less speculative interconnection requests.

66. We further find that SPP's proposed HILLGA substation and transmission line segment requirements are just and reasonable and not unduly discriminatory or preferential because they help to preserve the local, limited nature of SPP's proposed LLRIS. These requirements help to ensure that a HILLGA interconnection will have limited impacts on SPP's transmission system by providing that the generator's POI must be in the same local area as the HILL that the HILLGA Customer will serve. Similarly, SPP proposes to cap the HILLGA Customer's generating facility's projected capacity accreditation value at the requested load amount of the associated HILL(s), multiplied by the higher of: (1) 110% plus the highest approved Planning Reserve Margin percentage effective at the time of the HILLGA Study Agreement and outlined in the SPP Planning Criteria; or (2) 125%.¹²⁶ We find that SPP's proposed cap on the projected capacity accreditation value helps to ensure that only the generation capacity necessary to serve the HILL is studied through the HILLGA process, while recognizing that the relevant load responsible entity must secure sufficient resources to cover the Planning Reserve Margin that it will be required to carry when the HILL receives long-term, firm transmission service.¹²⁷

67. We also find that SPP's proposal is just and reasonable and not unduly discriminatory or preferential because we agree with SPP that the "HILLGA presents a reasonable approach to address [the] large load generation needs without disadvantaging

¹²⁶ Transmittal at 26.

¹²⁷ In its comments, Enchanted Rock initially requested that the Commission accept SPP's proposal but only on the condition that SPP change the second of the proposed values (i.e., the 125%) to 150%. Enchanted Rock Comments at 6. In its answer, however, Enchanted Rock states that SPP's answer clarifies that the HILLGA proposal would not interfere with an interconnection customer's installation of redundant on-site capacity to support reliability and, therefore, asks the Commission to accept SPP's HILLGA proposal without condition. Enchanted Rock Answer at 1-3. In any event, for the reasons discussed above, we find SPP's proposed cap just and reasonable, and under FPA section 205, SPP need not show that its proposal is the most just and reasonable among all possible alternatives so long as it demonstrates that the proposal is just and reasonable. *See, e.g., Cities of Bethany v. FERC*, 727 F.2d 1131, 1136 (D.C. Cir. 1984) (describing the Commission's authority under section 205 of the FPA as "limited to an inquiry into whether the rates proposed by a utility are reasonable—and not to extend to determining whether a proposed rate schedule is more or less reasonable than alternative rate designs.").

requests in the DISIS queue.”¹²⁸ For instance, SPP proposes to accept HILLGA Requests at any time and complete the entire HILLGA process within 150 days, which is a significantly faster timeline than the current DISIS process, which, as designed, takes 12 months to complete.¹²⁹ At the same time, HILLGA Requests will not be considered higher queued than pending interconnection requests in the standard DISIS queue and will not appear in the DISIS models until such models have been updated to include new ITP models. As a result, the proposed Tariff revisions are designed to not drive increased network upgrade costs or risk of restudies for pending DISIS interconnection requests. In addition, SPP states that the HILLGA process will not affect the timing of any pending DISIS interconnection requests because the HILLGA process will be predominantly completed by outside consultants paid for by the HILLGA Customer through the required study deposits.

68. Regarding LLRIS, we find that SPP’s proposal is just and reasonable and not unduly discriminatory or preferential because it limits a HILLGA Customer to only serving a HILL or HILLs located in the same local area as the POI for its generating facility and, thus, mitigates the generating facility’s impacts on SPP’s transmission system. In addition, we find that it is a reasonable component of SPP’s proposal to limit LLRIS to a term of five years. Because HILLGA Customers with LLRIS have interconnection service that is limited to a five-year term and limited to serving specific HILL or HILLs, we find it reasonable that these customers are only eligible to obtain non-firm point-to-point and short-term point-to-point service without being studied in the Aggregate Transmission Service Study process or obtaining different interconnection service.¹³⁰ We note that the expiration of LLRIS also ensures that any generating facilities that interconnect to the transmission system will eventually go through SPP’s standard interconnection procedures, including all necessary studies, if they are to be interconnected for longer than five years.

¹²⁸ Transmittal at 35.

¹²⁹ *Id.* at 36-37.

¹³⁰ Non-firm point-to-point transmission service includes the transmission of energy on an hourly, daily, weekly, or monthly basis, not to exceed one month’s reservation. *See* SPP, Tariff, Pt. II, § 14.5 (Classification of Non-Firm Point-To-Point Transmission Service). Short-term firm point-to-point transmission service is firm point-to-point transmission service that provides firm deliveries of capacity and energy from the point(s) of receipt to the point(s) of delivery with a term of less than one year. *See also id.*, Pt. I, § 1.1S (Definitions); *id.*, Pt. II, § 13.7 (Classification of Firm Transmission Service); *id.*, attach. P (Transmission Service Timing Requirements).

69. Finally, we find that SPP's proposed HILLGA process accomplishes the purposes of Order Nos. 2003 and 2023 to ensure that interconnection customers are able to interconnect to the transmission system in a reliable, efficient, transparent, and timely manner. We find that SPP's HILLGA-related revisions, taken together, accomplish these purposes because they will help ensure that HILLGA Customers seeking to serve HILLS are able to interconnect to the transmission system in a timely manner and increase the speed of interconnection queue processing.¹³¹ Therefore, we find that SPP's proposed Tariff revisions implementing the HILLGA process meet the independent entity variation standard.

3. Miscellaneous Issues

70. As noted above, SEIA asserts that the "Commission should encourage SPP to undertake ongoing monitoring and reporting commitments regarding its proposed HILLS/HILLGA processes."¹³² We decline SEIA's request because SPP has demonstrated that the proposed HILL and HILLGA processes are just and reasonable for the reasons discussed above.¹³³ Moreover, we note that SPP asserts that it will monitor the effectiveness of the HILL and HILLGA processes just like it continuously monitors every service provided under its Tariff.¹³⁴

71. However, we note that SPP's filing contains several ministerial errors throughout proposed Attachments BA and BB: (1) incorrect usage of the acronym "HSCS" instead of "HSLCS" in Attachment BA section 2.1.3.3; (2) redundant wording in the following sentence in Attachment BA section 2.1.3.4: "The Transmission Provider will perform a supplemental assessment, *in addition to the studies required pursuant to Attachment AQ and AX of the Tariff*, of the impact of a requested HILL delivery point configuration change on the Transmission System for the full requested term, *in addition to the studies required in Attachment AX and Attachment AX of the Tariff*";¹³⁵ (3) failure to specify "90-Calendar Day extension" in the following sentence in Attachment BA, section 2.1.3.4: "The Transmission Provider may grant a 90-day extension for completion of

¹³¹ See, e.g., Order No. 2023, 184 FERC ¶ 61,054 at PP 4, 693.

¹³² SEIA Comments at 7.

¹³³ See *Cities of Bethany v. FERC*, 727 F.2d at 1136.

¹³⁴ SPP Answer at 8.

¹³⁵ SPP, Proposed Tariff, attach. BA, § 2 (0.0.0), § 2.1.3.4 (HILL Delivery Point Study) (emphasis added).

such negotiations”;¹³⁶ (4) inconsistent usage of the term “Transmission Owner” in Attachment BA section 2.2.4 and the term “Host Transmission Owner” in the remainder of Attachment BA; (5) inclusion of the capitalized term “High Impact Large Load Generation Assessment Study Procedures” in the defined term “High Impact Large Load Generation Assessment Request” in Attachment BB section 1, which is not defined or used elsewhere in Attachment BB; and (6) incorrect usage of the acronym “HILGA” instead of “HILLGA” in Attachment BB sections 3.4.4.1 and 4.4. Therefore, we direct SPP to submit, within 30 days of the date of this order, a compliance filing that corrects the ministerial errors listed above.

The Commission orders:

(A) SPP’s proposed Tariff revisions are hereby accepted, effective January 15, 2026, as requested, subject to condition, as discussed in the body of this order.

(B) SPP is hereby directed to submit a compliance filing, within 30 days of the date of this order, as discussed in the body of this order.

By the Commission. Commissioner Rosner is concurring with a separate statement attached.

(S E A L)

Debbie-Anne A. Reese,
Secretary.

¹³⁶ *Id.*

Appendix – Tariff Records

Southwest Power Pool, Inc.
Open Access Transmission Tariff, Sixth Revised Volume No. 1

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- [Attachment O Section I, Attachment O Section I \(8.0.0\)](#)
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- [Attachment V Section 8, Attachment V Section 8 \(26.0.0\)](#)
- [Attachment AE \(MPL\), Attachment AE Integrated Marketplace \(28.0.0\)](#)
- [Att. AE \(MPL\) 1.1 N, Attachment AE \(MPL\) Section 1.1 N \(5.0.1\)](#)
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- [Att. AE \(MPL\) 2.22.2, Attachment AE \(MPL\) Section 2.22.2 \(0.0.0\)](#)
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- [Attachment BA, Attachment BA High Impact Large Load \(0.0.0\)](#)
- [Attachment BA TOC, Attachment BA Table of Contents \(0.0.0\)](#)
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- [Att. BB App 3, Attachment BB Appendix 3 \(0.0.0\)](#)
- [Att. BB App 4, Attachment BB Appendix 4 \(0.0.0\)](#)

UNITED STATES OF AMERICA
FEDERAL ENERGY REGULATORY COMMISSION

Southwest Power Pool, Inc.

Docket No. ER26-247-000

(Issued January 14, 2026)

ROSNER, Commissioner, *concurring*:

1. Today's order accepts SPP's proposal to establish new study processes for new High Impact Large Loads (HILLs) and associated generation through the High Impact Large Load Generation Assessment (HILLGA). Together, these processes will enable SPP to efficiently identify new large loads, expedite the interconnection of new generation needed to serve them, and protect the reliability of the bulk power system. The proposal also encourages "bring-your-own-new-generation" solutions in SPP, which will enable rapid interconnection of new large loads without raising costs or threatening electric reliability for other customers. I concur to highlight SPP's pragmatic steps to support economic growth in its footprint and call on other transmission providers across the country to consider similar proposals through FPA section 205 filings.
2. The HILLs and HILLGA processes work together to pair shovel-ready generation with large loads and allow them to interconnect to the grid in less than half the time typically required for generators to clear SPP's generator interconnection queue. The secret sauce behind SPP's proposal is Load Limited Resource Interconnection Service (LLRIS), a new interconnection service that limits the amount of power a generator can put on the SPP grid to the forecasted hourly load of the nearby large load it serves. Because the generator's output is matched to the large load's demand, the impacts of adding load and generation to the transmission system effectively cancel each other out, which minimizes the need for time-consuming transmission upgrades. SPP's proposal is grounded in physics, takes a harder look at reliability impacts of large loads on the grid than current practice requires, and unlocks large load opportunities while protecting other customers from rising bills.
3. There are also clear parallels between SPP's approach in its HILLs and HILLGA processes and the new transmission services the Commission recently directed PJM to create for load co-located with generation.¹ While the mechanics of these approaches are distinct between the different regions, the practical outcome is similar: they both enable new generation needed to serve new large loads to connect to the grid faster and at lower

¹ See 193 FERC ¶ 61,217 at PP 200-03; 234.

cost. The common thread is a recognition that when generation is paired with load that is physically proximate, the impacts on the transmission system are lower than they are in the status quo, in which large loads and generation are planned separately.

4. I also note that SPP's proposal is another step towards realizing the goals of Secretary Wright's Large Load ANOPR proposal in three important ways: first, it pairs new large loads and new generation to connect them to the grid rapidly and reliably;² second, it minimizes costs borne by other customers;³ and third, it does so through an FPA section 205 filing, rather than waiting on the Commission to require such action.⁴

5. Today's order is a productive step toward facilitating the energy needed to win the AI race, bring back American manufacturing, and deliver the reliable and affordable energy on which families and small businesses depend. I encourage other transmission providers to take note of the innovative approach SPP proposed in this filing, and to consider proposing similar solutions tailored to meet the needs within their own footprints.

For these reasons, I respectfully concur.

David Rosner
Commissioner

² See U.S. Department of Energy, Secretary of Energy, Direction that the Commission Initiate Rulemaking Procedures and Proposal Regarding the Interconnection of Large Loads Pursuant to the Secretary's Authority Under Section 403 of the Department of Energy Organization Act (Oct. 23, 2025) at P 20.

³ See *Id.* at P 25.

⁴ See *Id.* at P 32.

ATTACHMENT B
CPP ORDER

194 FERC ¶ 61,192
UNITED STATES OF AMERICA
FEDERAL ENERGY REGULATORY COMMISSION

Before Commissioners: Laura V. Swett, Chairman;
David Rosner, Lindsay S. See,
Judy W. Chang, and David LaCerte.

Southwest Power Pool, Inc.

Docket Nos. ER26-414-000
ER26-414-001

ORDER ACCEPTING TARIFF REVISIONS, SUBJECT TO CONDITION

(Issued March 13, 2026)

1. On November 3, 2025, as amended on January 12, 2026, pursuant to section 205 of the Federal Power Act (FPA)¹ and part 35 of the Commission's regulations,² Southwest Power Pool, Inc. (SPP) submitted proposed revisions to its Open Access Transmission Tariff (Tariff) to establish a Consolidated Planning Process (CPP) framework to streamline its regional transmission planning and generator interconnection processes.³ As discussed below, we accept SPP's proposed Tariff revisions, effective March 1, 2026, as requested, subject to condition.

I. Background

A. Relevant Commission Rulemakings

1. Order Nos. 890 and 1000 Transmission Planning and Cost Allocation Principles

2. The Commission issued Order No. 890 to address identified deficiencies in the *pro forma* Open Access Transmission Tariff.⁴ Among other reforms, the Commission

¹ 16 U.S.C. § 824d.

² 18 C.F.R. pt. 35 (2025).

³ See Appendix for Tariff records accepted in this order.

⁴ *Preventing Undue Discrimination & Preference in Transmission Serv.*, Order No. 890, 118 FERC ¶ 61,119, *order on reh'g*, Order No. 890-A, 121 FERC ¶ 61,297 (2007), *order on reh'g*, Order No. 890-B, 123 FERC ¶ 61,299 (2008), *order on reh'g*,

required all public utility transmission providers' local transmission planning processes to satisfy nine transmission planning principles, including: (1) coordination; (2) openness; (3) transparency; (4) information exchange; (5) comparability; (6) dispute resolution; (7) regional participation; (8) economic planning studies; and (9) cost allocation for new projects.

3. In Order No. 1000, the Commission included reforms intended to ensure that the transmission planning and cost allocation requirements embodied in the *pro forma* Open Access Transmission Tariff could support the development of more efficient or cost-effective transmission facilities.⁵ The reforms in Order No. 1000 included: (1) regional transmission planning; (2) transmission needs driven by public policy requirements; (3) nonincumbent transmission developer reforms; (4) regional and interregional cost allocation, including a set of principles for each category of cost allocation; and (5) interregional transmission coordination.⁶ Relevant here, the Commission required each public utility transmission provider to participate in a regional transmission planning process that complied with seven of the nine Order No. 890 transmission planning principles.⁷ Moreover, the Commission required public utility transmission providers to amend their tariffs to describe procedures that provide for the consideration of transmission needs driven by public policy requirements in their regional transmission planning processes.⁸ The Commission also required each public utility transmission

Order No. 890-C, 126 FERC ¶ 61,228, *order on clarification*, Order No. 890-D, 129 FERC ¶ 61,126 (2009).

⁵ *Transmission Planning & Cost Allocation by Transmission Owning & Operating Pub. Utils.*, Order No. 1000, 136 FERC ¶ 61,051, at P 3 (2011), *order on reh'g*, Order No. 1000-A, 139 FERC ¶ 61,132, *order on reh'g & clarification*, Order No. 1000-B, 141 FERC ¶ 61,044 (2012), *aff'd sub nom. S.C. Pub. Serv. Auth. v. FERC*, 762 F.3d 41 (D.C. Cir. 2014).

⁶ Order No. 1000, 136 FERC ¶ 61,051 at P 12.

⁷ *Id.* PP 146, 150-151. These seven principles are (1) coordination; (2) openness; (3) transparency; (4) information exchange; (5) comparability; (6) dispute resolution; and (7) economic planning. The Commission excluded the regional participation and cost allocation Order No. 890 transmission planning principles because it “address[ed] interregional transmission coordination and cost allocation for transmission facilities selected in a regional transmission plan for purposes of cost allocation elsewhere in [the] Final Rule.” *Id.* P 151 n.141.

⁸ *Id.* P 203. In Order No. 1000, the Commission defined Public Policy Requirements as requirements established by local, state, or federal laws or regulations (i.e., enacted statutes passed by the legislature and signed by the executive and

provider to have in its tariff a method, or set of methods, for allocating the costs of any new transmission facility selected in the regional transmission plan for purposes of cost allocation.⁹

2. Order Nos. 2003 and 2023 Generator Interconnection Procedures

4. Under the Commission's pricing policy for interconnection-related network upgrades adopted in the Order No. 2003 *pro forma* large generator interconnection agreement, the costs of network upgrades that would not be needed but for the interconnection (i.e., "but for" costs) are funded initially by the interconnection customer as construction costs are incurred, unless the transmission provider elects to fund the construction itself.¹⁰ When the interconnection customer initially funds the network

regulations promulgated by a relevant jurisdiction, whether within a state or at the federal level). *Id.* P 2. In Order No. 1000-A, the Commission clarified that public policy requirements include local laws and regulations passed by a local governmental entity, such as a municipal or county government. Order No. 1000-A, 139 FERC ¶ 61,132 at 319.

⁹ Order No. 1000, 136 FERC ¶ 61,051 at PP 558, 690. In Order No. 1000, the Commission required each public utility transmission provider to demonstrate that its regional cost allocation method satisfies six regional cost allocation principles. *Id.* P 603. Cost Allocation Principle 1 requires that the cost of transmission facilities be allocated in a manner that is at least roughly commensurate with the estimated benefits. *Id.* P 622. Cost Allocation Principle 2 requires that those that receive no benefit from transmission facilities, either at present or in a likely future scenario, not be involuntarily allocated any of the costs of those transmission facilities. *Id.* P 637. Cost Allocation Principle 3 requires that, if a benefit-to-cost ratio is used, it cannot exceed 1.25 to 1. *Id.* P 646. Cost Allocation Principle 4 requires that costs of a transmission facility selected in a regional transmission plan be allocated solely within the transmission planning region. *Id.* P 657. Cost Allocation Principle 5 requires that the cost allocation method and data requirements for determining benefits and identifying beneficiaries for a transmission facility must be transparent, with adequate documentation to allow a stakeholder to determine how they were applied to a proposed transmission facility. *Id.* P 668. Cost Allocation Principle 6 specifies that a transmission planning region may have a different cost allocation method for different types of transmission facilities, but there can be only one cost allocation method for each type and there cannot be a type of transmission facility that has no regional cost allocation method applied to it. *Id.* P 685.

¹⁰ *Standardization of Generator Interconnection Agreements & Procs.*, Order No. 2003, 104 FERC ¶ 61,103, at PP 21, 22 (2003), *order on reh'g*, Order No. 2003-A, 106 FERC ¶ 61,220, *order on reh'g*, Order No. 2003-B, 109 FERC ¶ 61,287 (2004),

upgrades, the interconnection customer is then entitled to reimbursement of the network upgrade costs with interest through credits against the charges at the rolled-in rates for transmission service taken to deliver the output of the generator, subject to full reimbursement within 20 years, and the costs of the network upgrades are included in the transmission owner's rolled-in transmission rates as the transmission owner reimburses the interconnection customer.¹¹

5. Additionally, in Order No. 2003, the Commission allowed an independent transmission provider (i.e., regional transmission organization (RTO) and independent system operator (ISO)) flexibility to propose alternative interconnection pricing mechanisms, subject to Commission approval, under the independent entity variation standard.¹² Specifically, an RTO/ISO could propose to require the interconnection customer to participant fund network upgrades (i.e., to directly assign network upgrade costs to the interconnection customer) in addition to charging the interconnection customer the rolled-in transmission rate, only where well-defined rights to capacity made available by such network upgrades are provided to the interconnection customer.¹³ As relevant here, the Commission has approved the use of participant funding for interconnection-related network upgrades in SPP, with interconnection customers eligible to receive incremental long-term congestion rights (ILTCR)¹⁴ as compensation.¹⁵

order on reh'g, Order No. 2003-C, 111 FERC ¶ 61,401 (2005), *aff'd sub nom. Nat'l Ass'n of Regul. Util. Comm'rs v. FERC*, 475 F.3d 1277 (D.C. Cir. 2007).

¹¹ Order No. 2003, 104 FERC ¶ 61,103 at P 694.

¹² *Id.* P 698.

¹³ *Id.* PP 699-700.

¹⁴ An ILTCR is an instrument that entitles an upgrade sponsor or a Joint Targeted Interconnection Queue (JTIQ) generator interconnection customer to a transmission congestion right that results from the incremental available transfer capability created from the upgrade, which is awarded during SPP's annual ILTCR allocation process. SPP, Tariff, pt.1, I (Definitions) (4.0.1).

¹⁵ See *Sw. Power Pool, Inc.*, 122 FERC ¶ 61,060, at P 30 (2008) (accepting as consistent with participant funding and the Commission's interconnection pricing policy SPP's proposal to provide interconnection customers with reimbursement for funding network upgrades); *Sw. Power Pool, Inc.*, 152 FERC ¶ 61,034, at P 48 (2015) (accepting SPP's proposal to award ILTCRs for transmission upgrades to any party that funds those transmission upgrades).

6. In Order No. 2023, the Commission required all public utility transmission providers to revise their standard generator interconnection procedures and agreements to ensure that interconnection customers are able to interconnect to the transmission system in a reliable, efficient, transparent, and timely manner, and to prevent undue discrimination.¹⁶ In Order No. 2023, the Commission adopted a comprehensive package of reforms in three general categories: (1) reforms to implement a first-ready, first-served cluster study process; (2) reforms to increase the speed of interconnection queue processing; and (3) reforms to incorporate technological advancements into the interconnection process.

B. SPP's Transmission Planning and Generator Interconnection Processes

7. SPP plans and manages the expansion of its transmission system to satisfy reliability, economic, and public policy needs through the Integrated Transmission Planning (ITP) process under Attachment O of its Tariff. SPP conducts an annual ITP Assessment that reviews the transmission system for a 10-year planning horizon, identifies solutions to meet identified criteria, and assesses the cost-effectiveness of proposed solutions.¹⁷ At the conclusion of the process, SPP prepares the annual ITP Assessment report, which includes a list of the proposed transmission projects for review and approval, as well as an explanation of which transmission needs driven by public policy requirements were evaluated for potential solutions and why other transmission needs driven by public policy requirements were not evaluated.

8. SPP allocates the costs of ITP upgrades that are approved for construction by the SPP Board of Directors based on SPP's Highway/Byway cost allocation method.¹⁸ Under this method, SPP allocates the costs of transmission facilities selected in SPP's transmission planning processes (base plan upgrades)¹⁹ to transmission customers in

¹⁶ *Improvements to Generator Interconnection Procs. & Agreements*, Order No. 2023, 184 FERC ¶ 61,054, *order on reh'g*, 185 FERC ¶ 61,063 (2023), *order on reh'g*, Order No. 2023-A, 186 FERC ¶ 61,199, *errata notice*, 188 FERC ¶ 61,134 (2024).

¹⁷ SPP, Tariff, attach. O, § III (ITP Assessment) (14.0.0), § III.2 (Preparation of the Integrated Transmission Planning Assessment).

¹⁸ *Id.*, attach. J, § III (Base Plan Upgrades) (21.0.0).

¹⁹ A base plan upgrade refers to an upgrade “included in and constructed pursuant to the SPP Transmission Expansion Plan in order to ensure the reliability of the Transmission System” and includes upgrades required for new or changed designated resources, upgrades due to retirement of a resource, and upgrades approved as part of SPP's ITP. *Id.*, pt. I, § 1 B (Definitions B) (8.1.0), Base Plan Upgrade.

individual SPP pricing zones, subregions, the entire SPP region, or a combination thereof, based on the voltage level and location of the specific facility.²⁰ Specifically, SPP allocates costs for transmission facilities as follows: (1) for facilities at 300 kV or above (Highway facilities), 100% of the costs are allocated on a regional, postage stamp basis based on load ratio share; (2) for facilities above 100 kV and below 300 kV (Byway facilities), SPP allocates 33% of the costs on a regional, postage stamp basis and 67% of the costs to the subregion in which the facilities are located;²¹ and (3) for facilities at 100 kV or below, SPP allocates all costs to the zone where the facilities are located.

9. In addition to the ITP, SPP is required to perform a 20-Year Assessment at least once every five years with the objective of developing a long-range extra high voltage (300 kV and above) (EHV) transmission road map for the SPP region.²² The 20-Year Assessment produces an informational report of possible transmission upgrades that may be used in future planning studies by looking at a longer planning horizon.

10. In contrast, through SPP's generator interconnection process, SPP studies specific interconnection requests for proposed generating facilities to determine their impacts on the existing transmission system, including identifying any interconnection-related network upgrades and interconnection facilities that are required to interconnect the generating facility reliably.²³ Under SPP's existing generator interconnection procedures (GIP) contained in Attachment V of its Tariff, interconnection customers submit interconnection requests during an annual 11-month open window. SPP conducts a three-stage Definitive Interconnection System Impact Study (DISIS): (1) DISIS Phase One, which involves a cluster study consisting of a steady-state thermal and voltage

²⁰ *Id.*, attach. J, § III (21.0.0); *Sw. Power Pool, Inc.*, 193 FERC ¶ 61,244 (2025).

²¹ The Commission accepted SPP's proposal to modify the cost allocation for future Byway facilities under Schedule 11 of the Tariff by replacing the zonal allocation under the Highway/Byway cost allocation method with a Subregional allocation. *Sw. Power Pool, Inc.*, 193 FERC ¶ 61,244.

²² SPP, Tariff, attach. O, § IV (Other Planning Studies) (11.0.0), § IV.2(a) (20-Year Assessments).

²³ Interconnection facilities include all facilities and equipment located between the interconnection customer's generating facility and the point of interconnection, including any modifications, additions, or upgrades that are necessary to physically and electrically interconnect the generating facility to the transmission system. Network upgrades are additions, modifications, and upgrades to the transmission system required at or beyond the point at which the interconnection facilities connect to the transmission system to accommodate the interconnection of the generating facility. *Id.*, attach. V, § 1 (Definitions) (21.0.1).

analysis; (2) DISIS Phase Two, which involves a cluster study consisting of a steady-state thermal and voltage analysis and a transient and dynamic stability and short-circuit analysis; and (3) the interconnection facilities study, consisting of a refresh of the cluster analysis followed by an individual facilities study.²⁴ DISIS Phases One and Two are each followed by a decision point, which provides interconnection customers with opportunities to evaluate study results and decide whether to proceed with or withdraw their interconnection requests, including posting financial security to continue. Interconnection customers are allocated the cost of system network upgrades necessary for interconnection of their generating facilities, based on a proportional impact analysis,²⁵ and may elect to receive ILTCRs as compensation. Interconnection customers are also directly assigned the cost of any necessary interconnection facilities identified in the study process.

II. Filing

A. Need for CPP

11. SPP explains that its region is experiencing historic load growth and challenges interconnecting generation and load in a timely manner, with fewer generation resources and transmission facilities being built than needed to serve the future needs of the region.²⁶ SPP states that the primary causes of delays in its generator interconnection process appear to be cost and timing uncertainty and, relatedly, the significant costs associated with interconnection-related network upgrades that leads to high rates of withdrawal and slower interconnection.²⁷ SPP explains that there is currently no meaningful signal or requirement for developers to locate generating facilities in optimal locations from a transmission capability perspective, leading to submission of multiple interconnection requests to identify optimal locations and resulting in disruptive withdrawals from the interconnection queue. Furthermore, SPP contends that separate, parallel processes for regional transmission planning and generator interconnection can lead to suboptimal transmission and cost allocation outcomes.²⁸ SPP also argues that these separate processes create an incentive to avoid being the first to cause the need for a

²⁴ *Id.*, attach. V, § 8 (Definitive Planning Phase) (26.0.0).

²⁵ *Id.*, attach. V, § 4 (Interconnection Request Evaluation Process) (13.0.0), § 4.2.2 (Cost Allocation for Interconnection Facilities and Network Upgrades).

²⁶ Transmittal at 15-16.

²⁷ *Id.* at 17-18.

²⁸ *Id.* at 18-19, 43; SPP, Filing, Ex. SPP-0001 (Testimony of Casey Cathey) at 20-23 (Cathey Test.).

network upgrade, which can lead to transmission costs being allocated in a way that does not fully capture all intended beneficiaries, as well as result in load and generation independently funding suboptimal network upgrades.

12. SPP states that as load growth outpaces transmission infrastructure and new generator interconnections, these inefficiencies have the potential to contribute to resource adequacy and reliability risks for the entire SPP region.²⁹ SPP also argues that the piecemeal build-out of the transmission system, as opposed to a holistic approach that proactively plans for the transmission needs of load and generation, can have a compounding effect on transmission rates, ultimately resulting in higher future costs for load.

B. CPP Proposal

13. SPP explains that it developed the proposed CPP framework as an innovative approach to regional transmission planning and generator interconnection to meet the aforementioned challenges.³⁰ SPP explains that the CPP will combine SPP's regional transmission planning and generator interconnection processes into a consolidated, holistic assessment of regional transmission needs to plan for and benefit both load and interconnection customers through the development of a robust regional transmission system to serve combined load and generation needs.³¹ SPP contends that, by streamlining the regional transmission planning and generator interconnection processes under a unified framework, its proposed CPP framework will ensure that the "right" transmission upgrades are built at the "right" time and costs are shared based on the benefits provided by the solutions that emerge from the transmission planning process.³² SPP states that the proposed CPP framework is the product of collaborative efforts by SPP, its Board of Directors, SPP Regional State Committee, and stakeholders and notes that the CPP proposal was unanimously approved by multiple SPP stakeholder working groups as well as the SPP Regional State Committee.³³

²⁹ Transmittal at 19-20.

³⁰ *Id.* at 2-3.

³¹ *Id.* at 2-3, 20-21.

³² *Id.* at 20.

³³ *Id.*; Cathey Test. at 35-36.

14. To implement the proposed CPP framework, SPP proposes revisions to its Tariff to combine SPP's regional transmission planning and generator interconnection processes into a single, integrated process under a new Attachment AY of its Tariff.³⁴ SPP's proposed Attachment AY provides an overview of the CPP and relevant definitions, outlines roles and responsibilities, and contains both the CPP Transmission Assessment Procedures and Generator Connection Procedures (GCP).³⁵

15. SPP explains that the CPP will consist of a series of transmission assessments conducted over a three-year CPP planning cycle, in which SPP will evaluate the transmission system's long-term performance in recognition of regional transmission planning and future generation needs.³⁶ The CPP will consist of two forward-looking planning assessments, a 20-Year Assessment (CPP-20) and 10-Year Assessment (CPP-10). SPP explains that the CPP-20 will be used to determine the generalized rates for interconnection development contribution (GRID-C) and planned interconnection locations (PIL) for the CPP planning cycle, two key CPP features. SPP explains that the Interconnection Cluster Study (ICS) will be performed as part of the annual CPP-10, and the outcomes of the ICS will be considered in the regional planning assessment phase of the CPP-10, which will recommend transmission system upgrades for inclusion in the regional transmission plan for construction. As discussed further below, the proposed GCP Attachment AY, section V contains provisions regarding the ICS process, including *pro forma* study agreements and *pro forma* generator interconnection agreements (GIA) in appendices.³⁷

³⁴ SPP states that once the 20-Year Assessment, ITP, and DISIS sunset, they will be removed from the SPP Tariff. Transmittal at 78, n.280.

³⁵ *Id.* at 78-79; SPP, Proposed Tariff, attach. AY (CPP) (0.0.0).

³⁶ Transmittal at 21-23; SPP, Filing, Ex. SPP-0002 (Testimony of Sarmad Raheem) at 4 (Raheem Test.) (citing SPP, Proposed Tariff, attach. AY, § I (Overview of the Consolidated Planning Process) (0.0.0)).

³⁷ SPP, Proposed Tariff, attach. AY, § V (Generator Connection Procedures) (0.0.0); *id.*, app. 1 (Two-Party Affected System Study Agreement) (0.0.0); *id.*, app. 2 (Multi-Party Affected System Study Agreement) (0.0.0); *id.*, app. 3 (Consolidated Planning Process Generator Interconnection Study Agreement) (0.0.0); *id.*, app. 4 (Compensation Agreement for Interconnection Customer with CPP Generator Interconnection Agreement) (0.0.0); *id.*, app. 6 (CPP Generator Interconnection Agreement (CPP GIA)) (0.0.0); *id.*, app. 7 (Interconnection Procedures for a Wind Generating Plant) (0.0.0); *id.*, app. 9 (Certification Codes and Standards) (0.0.0); *id.*, app. 12 (Consent for Assignment of CPP GIA) (0.0.0); *id.*, app. 13 (CPP Generator Interconnection Agreement (For use when Western-UGP is a Party to the CPP GIA, as the Transmission Owner)) (0.0.0); *id.*, app. 18 (Multi-Party Affected System Facilities

16. SPP also proposes modifications to several existing Tariff sections to transition to the CPP framework, including Attachments J (Recovery of Cost Associated with New Facilities), L (Treatment of Revenues), O (Transmission Planning Process), V (GIP), and AQ (Delivery Point Assessment Process), as well as Schedule 11 (Base Plan Zonal Charge). In addition, SPP proposes revisions to definitions contained in Part I (Common Service Provisions) of its Tariff and to incorporate the CPP into sections 25 (Compensation for Transmission Services) and 34 (Rates and Charges) of the Tariff.

17. SPP requests an effective date of March 1, 2026, for the proposed Tariff revisions.³⁸

C. CPP Benefits

18. SPP states that the CPP is expected to provide wide and broad benefits to load, interconnection customers, other stakeholders, and the entire SPP community.³⁹ Among the specific benefits, SPP identifies reliability benefits through coordinated and timely investment in multi-value transmission upgrades that will enhance the transmission system's ability to support both existing and future load reliably, especially under scenarios with high demand growth and resource addition. SPP also states that the CPP framework creates predictable, equitable cost allocation for interconnection customers, enabling improved financial planning and siting – particularly in regions where existing infrastructure is limited or absent. SPP also asserts that the CPP will enable proactive planning that will support more efficient and cost-effective transmission upgrades, reducing long-term congestion and overall system costs and facilitating cost-effective generation siting. As for transmission planning, SPP states that the CPP is expected to reduce planning process costs by more than \$3 million annually, while creating more equitable cost sharing for transmission upgrades, increasing economic benefits, opening new markets for energy, and enhancing reliability and grid resiliency.

19. Among the benefits to load, SPP states that the CPP aims to support continued regional economic growth and development through increased regional investment.⁴⁰ With more energy and capacity interconnecting in a timelier manner, SPP explains, load is likely to see benefits through reduced overall energy prices, while maintaining resource

Construction Agreement) (0.0.0). SPP proposed to also include appendices 5, 8, 10, 11, 14, 15, and 16 as reserved for future use to accommodate the CPP GIA process. SPP Transmittal at 101.

³⁸ Transmittal at 2.

³⁹ *Id.* at 41-42.

⁴⁰ *Id.* at 42-43.

adequacy margins and reducing the risk of reliability events. SPP also states that load will benefit from the CPP's optimization of transmission solutions that minimize or prevent the risks from piecemeal transmission system build-out.

20. SPP also points to benefits from the CPP that are shared by both load and interconnection customers.⁴¹ In particular, SPP states that process efficiencies from combining transmission planning and generator interconnection will allow SPP to redirect resources to technical analysis and stakeholder collaboration, improving overall process quality and enhancing the transparency and inclusiveness of SPP's planning process. SPP states that more efficient transmission buildouts that serve multiple purposes will reduce overall system costs and minimize the risk of stranded or underutilized assets. SPP also argues that the states within its footprint will see significant economic and competitive opportunities because the CPP is designed to facilitate the interconnection of large and new types of loads to the SPP transmission system through a more robust transmission system and the interconnection of an increasing pool of available generation to serve those new loads.

III. Notice of Filings and Responsive Pleadings

21. Notice of SPP's filing was published in the *Federal Register*, 90 Fed. Reg. 53279 (Nov. 25, 2025), with interventions and protests due on or before November 24, 2025.

22. A notice of intervention was filed by Louisiana Public Service Commission. Timely motions to intervene were filed by: Advanced Energy United; American Clean Power Association and Advanced Power Alliance (APA); American Electric Power Service Corporation, on behalf of its affiliates Public Service Company of Oklahoma, Southwestern Electric Power Company, AEP Oklahoma Transmission Company, Inc., and AEP Southwestern Transmission Company, Inc.; Arevon Energy, Inc.; Calpine Corporation; City Utilities of Springfield, Missouri; EDF Power Solutions, Inc.; Evergy Kansas Central, Inc., Evergy Metro, Inc., and Evergy Missouri West, Inc. (collectively, the Evergy Companies); Geronimo Power, LLC; ITC Great Plains, LLC (ITC Great Plains); Kansas Electric Power Cooperative, Inc.; Kansas Municipal Energy Agency; KPP Energy; Nebraska Public Power District; NextEra Energy Resources, LLC; Northeast Texas Electric Cooperative and East Texas Electric Cooperative, Inc.; Oklahoma Gas and Electric Company; Omaha Public Power District; Savion, LLC (Savion); Sierra Club; Solar Energy Industries Association (SEIA); Sunflower Electric Power Corporation; Sustainable FERC Project and Natural Resources Defense Council; Tri-State Generation and Transmission Association, Inc.; Western Area Power Administration; Western Farmers Electric Cooperative; and Xcel Energy Services Inc., on behalf of its affiliate Southwestern Public Service Company.

⁴¹ *Id.* at 45.

23. Comments were timely filed by: Advanced Energy United; American Clean Power Association; ITC Great Plains; Public Interest Organizations (PIO);⁴² SEIA; and Southwest Power Pool Transmission Owner Group (SPP TO Group).⁴³ APA timely filed a protest.
24. On December 8, 2025, Savion filed a motion for leave to protest out-of-time, protest, motion for leave to answer, and answer to the comments (Savion December 8 Protest). On December 9, 2025, SPP filed a motion for leave to answer and answer in response to the comments and APA's protest.
25. On December 11, 2025, Basin Electric Power Cooperative (Basin Electric) filed a motion to intervene out-of-time.
26. On December 18, 2025, SPP filed a motion for leave to answer and answer to the Savion December 8 Protest. On December 19, 2025, the SPP TO Group filed a motion for leave to answer and answer to the Savion December 8 Protest.
27. On December 23, 2025, a deficiency letter was issued informing SPP that its filing was deficient and that additional information was necessary to process its filing (Deficiency Letter).⁴⁴ On January 12, 2026, SPP filed a response to the Deficiency Letter (Deficiency Response).⁴⁵
28. Notice of SPP's Deficiency Response was published in the *Federal Register*, 91 Fed. Reg. 2343 (Jan. 20, 2026), with interventions and protests due on or before January 26, 2026.

⁴² PIOs consist of Natural Resources Defense Council, Sierra Club, and Sustainable FERC Project.

⁴³ SPP TO Group consists of American Electric Power Service Corporation, the Evergy Companies, Oklahoma Gas and Electric Company, and Xcel Energy Services Inc. on behalf of Southwestern Public Service Company.

⁴⁴ *Sw. Power Pool, Inc.*, Docket No. ER26-414-000 (Dec. 23, 2025) (Deficiency Letter).

⁴⁵ In its Deficiency Response, SPP requested a shortened comment period and waiver of the 60-day prior notice requirement. On January 16, 2026, SPP TO Group filed an answer in support of SPP's request for shortened comment period and waiver of the 60-day prior notice requirement.

29. APA and PIOs filed timely comments in response to SPP's Deficiency Response. Savion filed a timely protest in response to SPP's Deficiency Response (Savion January 26 Protest).

30. On January 29, 2026, SPP filed a motion for leave to answer and answer to the Savion January 26 Protest.

IV. Discussion

A. Procedural Matters

31. Pursuant to Rule 214 of the Commission's Rules of Practice and Procedure, 18 C.F.R. § 385.214 (2025), the notice of intervention and timely, unopposed motions to intervene serve to make the entities that filed them parties to the proceeding.

32. Pursuant to Rule 214(d) of the Commission's Rules of Practice and Procedure, 18 C.F.R. § 385.214(d), we grant Basin Electric's late-filed motion to intervene given its interest in the proceeding, the early stage of the proceeding, and the absence of undue prejudice or delay.

33. Rule 213(a)(2) of the Commission's Rules of Practice and Procedure, 18 C.F.R. § 385.213(a)(2) (2025), prohibits an answer to a protest or answer unless otherwise ordered by the decisional authority. We accept Savion's, SPP's, and SPP TO Group's answers because they have provided information that assisted us in our decision-making process.

B. Substantive Matters

34. We find SPP's CPP proposal to be just and reasonable and not unduly discriminatory or preferential. Moreover, we find that SPP continues to comply with the regional transmission planning and cost allocation requirements of Order No. 1000. We also find that SPP's proposed GCP satisfies the independent entity variation standard for deviations from the requirements of Order No. 2003 and the Commission's subsequent final rules on generator interconnection. Accordingly, we accept SPP's proposed Tariff revisions, effective March 1, 2026, as requested, subject to condition, and direct SPP to submit a compliance filing within 30 days of the date of this order, as discussed further below.⁴⁶

⁴⁶ See *NRG Power Mktg., LLC v. FERC*, 862 F.3d 108, at 114-15 (D.C. Cir. 2017) (discussing the Commission's authority to propose modifications to a utility's FPA section 205 rate proposal).

35. We generally limit our discussion and findings below to aspects of SPP's proposal that are contested. We find that the other aspects of SPP's proposed CPP that are not contested and not specifically discussed herein are just and reasonable and not unduly discriminatory or preferential.

1. CPP Framework

a. SPP Proposal

36. Under the proposed CPP framework, SPP will conduct a CPP-20 transmission assessment, which will assess long-term transmission system needs over a 20-year planning horizon, with a focus on both EHV (i.e., 300 kV and above) and high voltage (HV) (i.e., above 100 kV and below 300 kV) facilities, and a CPP-10 transmission assessment, which will address needs over a 10-year planning horizon, in the first year of the planning cycle. SPP will also perform annual CPP-10 transmission assessments in the second and third years of each planning cycle.⁴⁷ SPP proposes to add Attachment AY, section IV (Transmission Assessment) to its Tariff to contain its Transmission Assessment Procedures for both the CPP-10 and CPP-20.⁴⁸

i. Transmission Assessment Procedures

37. Upon commencement of each transmission assessment,⁴⁹ SPP will post the proposed study schedules and details of the study processes on SPP's website.⁵⁰ Under SPP's proposed Transmission Assessment Procedures, SPP, in consultation

⁴⁷ Transmittal at 21-23. In the first year of each planning cycle, the CPP-20 and CPP-10 will be conducted simultaneously.

⁴⁸ SPP, Proposed Tariff, attach. AY, § IV (The Transmission Assessment Procedures) (0.0.0).

⁴⁹ The term "transmission assessment" refers to either the CPP-20 or CPP-10. *Id.*, attach. AY, § II (Definitions) (0.0.0).

⁵⁰ *Id.*, attach. AY, § IV.1 (Transmission Assessment) (0.0.0), § IV.1.1 (Preparation for the Transmission Assessment).

with stakeholders and in accordance with the CPP Manual,⁵¹ will develop the scope for each transmission assessment, which will be published on SPP's website.⁵²

38. SPP's proposed Tariff provides that the transmission assessment scope and CPP Manual will specify the method, criteria, assumptions, and data to be used, including how transmission needs will be identified and how inputs will be incorporated, as well as an explanation of which public policy requirements will be evaluated for potential solutions.⁵³ Further, proposed Attachment AY, section IV.1.2.1 identifies the seven factors that SPP will consider in each transmission assessment and requires SPP to publish certain information regarding the use of such factors in its futures.⁵⁴ More specifically, in publishing the CPP Manual and/or the transmission assessment scope, SPP must identify: (1) which of the seven factors are included in which future; (2) a description of each factor; (3) an explanation of how each factor is accounted for in each future; (4) a description of any discounting used for factors four through seven; and (5) the list of factors it considered but did not incorporate into its futures.⁵⁵ In addition to the seven factors, SPP's proposed Tariff states that SPP will incorporate, as appropriate, additional requirements into its transmission assessments that are

⁵¹ The CPP Manual is a "business practice manual developed and maintained in coordination with stakeholders" that "details the processes, procedures, methodology, criteria, assumptions and data associated with the [CPP]" and is posted on SPP's website. *Id.*, attach. AY, § II (0.0.0).

⁵² Transmittal at 82.

⁵³ SPP, Proposed Tariff, attach. AY, § IV.1 (0.0.0), § IV.1.2 (Transmission Assessment Scope Development).

⁵⁴ Proposed Attachment AY, section IV.1.2.1 requires that the following factors must be considered in each transmission assessment: (1) federal, federally recognized Tribal, state, and local laws and regulations affecting the resource mix and demand; (2) federal, federally recognized Tribal, state, and local laws and regulations on decarbonization and electrification; (3) state-approved integrated resource plans and expected supply obligations for load-serving entities; (4) trends in fuel costs and in the cost, performance, and availability of generation, electric storage resources, and building and transportation electrification technologies; (5) resource retirements; (6) interconnection requests and withdrawals as considered for PILs; and (7) federal, federally recognized Tribal, state, and local policy goals that affect transmission needs over a 20-year horizon. *Id.*, attach. AY, § IV.1 (0.0.0), § IV.1.2.1 (Future Development).

⁵⁵ *Id.*, attach. AY, § IV.1 (0.0.0), IV.1.2.1.

currently contained in Attachment O, section I.⁵⁶ Additionally, SPP's proposed Tariff provides that each transmission assessment will include long-term capacity forecasts and incorporate generation and demand response resources that can be relied upon for planning purposes.⁵⁷

39. To further develop transmission system planning models, proposed Attachment AY, section IV.1.3 provides for coordination between each transmission assessment and information from other studies.⁵⁸ SPP also details the procedures for stakeholders to submit detailed project proposals in response to the CPP transmission assessments in proposed Attachment AY, section IV.1.6.⁵⁹ SPP explains that the project proposal provisions in sections IV.1.6, and IV.1.7 are generally identical to existing ITP provisions contained in Attachment O.⁶⁰ Detailed project proposals must include descriptions of the project, the identified need, modeling and data identified by SPP, results of economic and reliability modeling analyses, if available, and any other supporting documentation.⁶¹

⁵⁶ Specifically, these additional requirements include: (1) North American Electric Reliability Corporation (NERC) reliability standards; (2) SPP criteria; (3) zonal planning criteria; (4) transmission projects previously approved through Attachment O and Attachment AY processes; (5) approved zonal reliability upgrades developed by transmission owners under Attachment O; (6) long-term firm transmission service commitments; (7) load forecasts, including demand management impacts; (8) existing and planned demand response resources; (9) congestion analysis within SPP and between regions; (10) public policy requirements identified through stakeholder surveys; (11) additional public policy requirements; (12) operational experience and market performance data; (13) persistent operational issues; and (14) other input requirements. *Id.*, attach. AY, § IV.1 (0.0.0), § IV.1.2.2 (Policy, Reliability, and Economic Input Requirements).

⁵⁷ *Id.*, attach. AY, § IV.1 (0.0.0), § IV.1.2.3 (Generation and Demand Response Considerations).

⁵⁸ *Id.*, attach. AY, § IV.1 (0.0.0), § IV.1.3 (Additional Information from Other Studies).

⁵⁹ *Id.*, attach. AY, § IV.1 (0.0.0), § IV.1.6 (Transmission Solution Evaluation Process Including Detailed Project Proposals).

⁶⁰ Transmittal at 81, 84.

⁶¹ SPP, Proposed Tariff, attach. AY, § IV.1 (0.0.0), § IV.1.6.1 (Minimum Information Requirements for DPP Submissions).

40. Proposed Attachment AY, section IV.1.7 specifies the process by which detailed project proposals will then be analyzed.⁶² Specifically, SPP will conduct the requisite studies needed to analyze potential solutions to address the final transmission assessment study scope, including needs driven by asset age and condition, zonal planning criteria, local planning criteria, and alternatives to transmission solutions.⁶³ As part of its transmission project selection process, SPP also proposes to evaluate expected benefits and cost effectiveness of proposed solutions.⁶⁴ The benefits included in SPP's evaluation will include: (1) avoided or deferred reliability transmission facilities and aging infrastructure replacement; (2) reduced loss of load probability or reduced planning reserve margin; (3) production cost savings; (4) reduced transmission energy losses; (5) reduced congestion due to transmission outages; (6) mitigation of extreme weather events and unexpected system conditions; (7) capacity cost benefits from reduced peak energy losses; and (8) other benefit metrics, as appropriate, in accordance with Attachment AY and the CPP Manual.⁶⁵ Further, as part of its evaluation, SPP will assess the cost effectiveness of proposed solutions taking into consideration benefits, sensitivity analysis, and assessment of the impact of the transmission plan on a typical residential customer.⁶⁶ SPP also proposes to include the GRID-C contributions from current and prospective interconnection customers within a CPP planning cycle in the benefit-to-cost analysis for CPP upgrades.⁶⁷

41. As part of the CPP framework, SPP will publish a report summarizing the findings of each transmission assessment including, for the CPP-20, a determination of GRID-C rates.⁶⁸ The report as well as related studies and criteria, assumptions, and underlying

⁶² *Id.*, attach. AY, § IV.1 (0.0.0), § IV.1.7 (Process to Analyze Transmission Solutions and Alternative for the Transmission Assessment).

⁶³ *Id.*, attach. AY, § IV.1 (0.0.0), § IV.1.7.1.

⁶⁴ *Id.*, attach. AY, § IV.1 (0.0.0), §§ IV.1.9 (Benefits Evaluation), IV.1.10 (Cost Effectiveness Evaluation).

⁶⁵ *Id.*, attach. AY, § IV.1 (0.0.0), § IV.1.9.

⁶⁶ *Id.*, attach. AY, § IV.1 (0.0.0), § 1.10 (Cost Effectiveness Evaluation).

⁶⁷ *Id.*, attach. AY, § IV.1 (0.0.0), § IV.1.10.g. SPP defines a CPP upgrade as “a Network Upgrade identified in a Transmission Assessment that is approved for construction by the SPP Board of Directors.” SPP, Proposed Tariff, attach. AY, § II (Definitions) (0.0.0).

⁶⁸ Transmittal at 23, 85; SPP, Proposed Tariff, attach. AY, § IV.1 (0.0.0), § IV.1.12 (Reporting).

data will be posted on the SPP website. Under proposed Attachment AY, section 1.12, SPP will present preferred solutions and results of cost-effectiveness analysis, discuss alternatives considered, solicit feedback on solutions, and prepare an annual transmission assessment report that includes a draft list of projects for approval, as well as an explanation of which transmission needs driven by public policy requirements were and were not evaluated for potential solutions.⁶⁹ SPP explains that these reporting requirements are generally identical to existing ITP provisions.⁷⁰

42. SPP contends that the proposed CPP framework complies with the Commission's regional transmission planning requirements in Order No. 1000 because the proposed CPP framework will not change the structure of its existing Commission-approved regional transmission planning process in a way that would diminish compliance, including: (1) the scope of the SPP transmission planning region, (2) compliance with Order No. 890 transmission planning principles,⁷¹ (3) requirements to plan on a regional basis to identify more efficient or cost-effective transmission solutions, or (4) consideration of transmission needs driven by public policy requirements.⁷²

43. Additionally, in its Deficiency Response, SPP agrees to submit, on compliance, Tariff revisions to correct several drafting errors in the Transmission Assessment Procedures contained in proposed Attachment AY, section IV if so ordered by the Commission.⁷³ These include revisions to correct a formatting error in proposed section IV.1.7.1.1, to revise proposed section IV.1.10 to correct a reference from section V.9 to IV.1.9, to change several references in sections IV.1.7.1.1.2 and IV.1.12.3 to the CPP "Transmission Assessment" instead of the "Integrated Transmission Planning Assessment," and to correct a drafting error in proposed section IV.1.12 to clarify that the CPP-20 report will include a "determination" of the Network Resource Interconnection

⁶⁹ SPP, Proposed Tariff, attach. AY, § IV.1 (0.0.0), §§ IV.12.1, IV.12.2, IV.12.3.

⁷⁰ Transmittal at 85 (citing SPP, Tariff, attach. O, § III (ITP Assessment) (14.0.0), §§ III.7(e)-7(f)).

⁷¹ Order No. 890, 118 FERC ¶ 61,119.

⁷² Transmittal at 55-59 (citing *Sw. Power Pool, Inc.*, 144 FERC ¶ 61,059 (2013) (First Order No. 1000 Compliance Order), *order on reh'g & compliance*, 149 FERC ¶ 61,048 (2014) (Second Order No. 1000 Compliance Order), *order on reh'g & compliance*, 151 FERC ¶ 61,045 (2015) (Third Order No. 1000 Compliance Order), *order on compliance*, 152 FERC ¶ 61,106 (2015) (Fourth Order No. 1000 Compliance Order); Order No. 1000, 136 FERC ¶ 61,051).

⁷³ Deficiency Response at 7-8.

Service (NRIS) Region-wide and Subregional GRID-C rates, not an “estimation” of these rates.⁷⁴

ii. CPP-20

44. As noted above, the CPP-20 is performed in the first year of each three-year planning cycle and aims to proactively identify transmission solutions over a 20-year planning horizon.⁷⁵ Specifically, the CPP-20 will focus on specific representative future years, not each consecutive year, in the 20-year planning horizon as described in the CPP Manual.⁷⁶ Further, the scope for the CPP-20 will include at least three “plausible and diverse futures,” developed in consultation with the SPP Regional State Committee, and at least one sensitivity applied to each future to account for uncertain operational outcomes due to extreme weather events.⁷⁷ SPP explains that the insights and data produced from the CPP-20 will inform the subsequent two CPP-10 assessments by identifying potential system upgrades, long-term planning needs, and a strategic transmission expansion plan. SPP states that the transmission projects that result from CPP-20 (i.e., the CPP-20 Transmission Portfolio) represent a “conceptual” project portfolio that will then be considered for approval and inclusion in the CPP-10 recommended project portfolios.⁷⁸

45. Under the proposal, the CPP-20 will also determine PILs for the applicable CPP planning cycle. SPP states that PILs represent “strategically selected” locations where transmission system capability has been evaluated using prior studies, technical assessments from the generator interconnection queue, and stakeholder input to identify locations with sufficient existing or planned transmission capacity available to serve long-term generator interconnection needs.⁷⁹ More specifically, PILs will be based on

⁷⁴ *Id.* at 7-9.

⁷⁵ Transmittal at 23.

⁷⁶ *Id.* at 22; SPP, Proposed Tariff, attach. AY, § IV.1 (0.0.0), § IV.1.1.1 (CPP-20).

⁷⁷ SPP, Proposed Tariff, attach. AY, § IV.1 (0.0.0), § IV.1.1.1 (CPP-20). The proposed Tariff provides that, if the SPP Regional State Committee requests that SPP use additional futures to inform its consideration of cost allocation methods, SPP must develop a reasonable number of those futures. *Id.*

⁷⁸ Transmittal at 23.

⁷⁹ *Id.* at 25, 83. SPP proposes to define PILs as “the locations identified as part of the twenty (20) year planning horizon CPP Planning Cycle.” SPP, Proposed Tariff, attach. AY, § II (0.0.0).

one or more suitable points of interconnection ensuring transmission capability and feasibility for an amount of generation at each PIL, but they will not guarantee site control, permitting, or development activities.⁸⁰ SPP explains that PILs are fuel and resource neutral and that final PIL determinations and associated MW caps are subject to stakeholder review and approval.⁸¹ SPP also explains that each CPP-10 will review and update the available PILs, in accordance with the CPP Manual, as interconnection customers commit to pay the GRID-C charge.

46. SPP explains that the benefit of interconnecting at a PIL is that transmission capacity will have been proactively developed in that area to serve future needs, including generator interconnection needs. SPP states that, to the extent an interconnection customer elects to interconnect at a PIL, it generally will not be responsible for additional system network upgrade costs beyond its GRID-C charge.⁸²

iii. CPP-10

47. Under the proposal, in each year of the three-year planning cycle, SPP will conduct a CPP-10 transmission assessment. The CPP-10, like the CPP-20, will focus on representative future years, not each consecutive year in the 10-year planning horizon. In the event the CPP-10 and CPP-20 transmission assessments are scheduled concurrently, SPP may coordinate and, to the maximum extent possible, combine the stakeholder scoping efforts, technical assessments, and reporting activities for both assessments.⁸³ SPP explains that the CPP-10 is a near-term planning tool that will address reliability, economic, public policy-driven, and generator interconnection needs. SPP explains that the CPP-10 consists of three phases: (1) the ICS; (2) a single interconnection customer decision point (Decision Point);⁸⁴ and (3) a regional transmission planning assessment.⁸⁵

⁸⁰ Transmittal at 83-84; SPP, Proposed Tariff, attach. AY, § IV.1 (0.0.0), § IV.1.4 (Analysis of Prospective New Generation or Expanded Generation).

⁸¹ Transmittal at 25-26, 84; SPP, Proposed Tariff, attach. AY, § IV.1 (0.0.0), § IV.1.4 (Analysis of Prospective New Generation or Expanded Generation).

⁸² Exceptions are discussed below. *See infra* P 59.

⁸³ SPP, Proposed Tariff, attach. AY, § IV.1 (0.0.0), § IV.1.1.2 (CPP-10).

⁸⁴ The ICS and Decision Point are described further below in section IV.B.3.a.

⁸⁵ Transmittal at 27.

48. SPP explains that the regional transmission planning assessment portion of the CPP-10 will evaluate the transmission system's ability to meet regional transmission planning needs over a 10-year time horizon, based on SPP's existing ITP process. To conduct the regional transmission planning phase, the assumptions utilized in the CPP-20 will provide an initial futures forecast for the CPP-10 transmission assessments.⁸⁶ Each CPP-10 transmission assessment will be performed consistent with the Transmission Assessment Procedures outlined above and will consider the same factors, requirements, and forecasts that SPP uses in the CPP-20 transmission assessment.⁸⁷ The interconnection outcomes of the ICS Decision Point are also considered in the regional transmission planning assessment phase of the CPP-10, which will then recommend transmission system upgrades to be included in the plan for construction.⁸⁸ SPP asserts that the CPP-10 will result in a proposed portfolio of efficient and cost-effective transmission solutions addressing regional transmission and generator interconnection needs.⁸⁹ Transmission projects identified in the CPP-10 may be authorized for construction with approval of the SPP Board of Directors.⁹⁰

b. Comments

49. Multiple commenters contend that the CPP proposal will improve SPP's transmission planning and generator interconnection processes, enabling more efficient and cost-effective transmission planning and identification of network upgrades,⁹¹ although several commenters also request additional reporting on CPP implementation.⁹²

⁸⁶ SPP, Proposed Tariff, attach. AY, § IV.1 (0.0.0), § IV.1.2 (Transmission Assessment Scope Development).

⁸⁷ *Id.*, attach. AY, § IV.1 (0.0.0), §§ IV.1.2.1 (Future Development), IV.1.2.2 (Policy, Reliability, and Economic Input Requirements), IV.1.2.3 (Generation and Demand Response Considerations).

⁸⁸ *Id.*, attach. AY, § I (0.0.0).

⁸⁹ Transmittal at 27.

⁹⁰ SPP, Proposed Tariff, attach. AY, § IV.1 (0.0.0), § IV.1.11 (Determination for Construction).

⁹¹ Advanced Energy United Comments at 1; American Clean Power Association Comments at 1-2; ITC Great Plains Comments at 2; PIOs Comments at 18; SEIA Comments at 1; SPP TO Group Comments at 1, 6-8.

⁹² *See infra* PP 85, 124, 126.

Further, American Clean Power Association, Advanced Energy United, APA, ITC Great Plains, and PIOs commend SPP's stakeholder process for developing the CPP proposal.⁹³

50. SEIA states that the CPP will improve SPP's process and will completely change how a major transmission planning region approaches transmission planning and generator interconnection.⁹⁴ SEIA states that the GRID-C mechanism facilitates the development of multi-value transmission projects that address existing system, load, and future generator interconnection needs. ITC Great Plains and SEIA also support the consolidation of the transmission planning and generator interconnection processes under the CPP framework to enable faster, more reliable study timelines while providing greater stability and predictability across the entire interconnection process.⁹⁵ SPP TO Group states that the CPP proposal seeks to correct problems that have resulted from SPP's differing cost allocation methods for network upgrades in the ITP and GIP (such as unfair cost allocations, lack of cost certainty, and a "free rider" problem) by integrating the transmission planning and generator interconnection processes into a single, holistic planning process.⁹⁶ In addition, SEIA agrees with SPP that a holistic planning process that will identify optimal transmission solutions and consolidate transmission planning and generator interconnection under the CPP creates the unified, forward-looking planning framework envisioned by Order Nos. 1000 and 1920,⁹⁷ while ITC Great Plains also states that a holistic planning process is suitable for SPP's distinctive needs.⁹⁸

⁹³ Advanced Energy United Comments at 14; American Clean Power Association Comments at 3; APA Protest at 1; ITC Great Plains Comments at 2; PIOs Comments at 1.

⁹⁴ SEIA Comments at 1-2.

⁹⁵ ITC Great Plains Comments at 3; SEIA Comments at 5.

⁹⁶ SPP TO Group Comments at 1-7.

⁹⁷ SEIA Comments at 5 (citing Transmittal at 7, 47; Order No. 1000, 136 FERC ¶ 61,051; *Bldg. for the Future Through Elec. Reg'l Transmission Plan. & Cost Allocation*, Order No. 1920, 187 FERC ¶ 61,068, *order on reh'g & clarification*, Order No. 1920-A, 189 FERC ¶ 61,126 (2024), *order on reh'g & clarification*, Order No. 1920-B, 191 FERC ¶ 61,026 (2025)).

⁹⁸ ITC Great Plains Comments at 4-5.

51. American Clean Power Association states that the CPP proposal will break down the “artificial silos” between regionally planned transmission and interconnection-related network upgrades.⁹⁹ American Clean Power Association supports aligning system modeling, assumptions, and cost allocation for transmission planning and generator interconnection in the CPP.¹⁰⁰ American Clean Power Association asserts that the CPP will enable transmission system expansion to meet growing load and interconnection requests and will better serve both load and generation by proactively identifying optimal transmission solutions that simultaneously address multiple drivers.¹⁰¹

c. Commission Determination

52. We find SPP’s proposed CPP framework to be just and reasonable and not unduly discriminatory or preferential. We agree with SPP and various commenters that SPP’s proposal to integrate its regional transmission planning and generator interconnection processes under the CPP framework is an innovative approach to more efficiently and cost-effectively plan its transmission system. As outlined by SPP, the CPP framework, consisting of the CPP-20 and CPP-10 transmission assessments and integrated ICS, will allow SPP to more proactively and holistically identify transmission facilities that address the needs of both load and interconnection customers, provide greater upfront cost certainty to interconnection customers, and reduce interconnection study timelines.

53. In addition, we find that SPP’s proposal complies with the Commission’s existing Order No. 1000 regional transmission planning and cost allocation requirements.¹⁰² We

⁹⁹ American Clean Power Association Comments at 2.

¹⁰⁰ *Id.* at 2-3.

¹⁰¹ *Id.* at 3-4.

¹⁰² We note that SPP did not propose to change its Highway/Byway regional cost allocation method, which the Commission has found complies with Order No. 1000’s requirement that each public utility transmission provider have a method, or set of methods, for allocating the costs of any new transmission facility selected in the regional transmission plan for purposes of cost allocation that satisfies six regional cost allocation principles. *See* First Order No. 1000 Compliance Order, 144 FERC ¶ 61,059 at P 347; Second Order No. 1000 Compliance Order, 149 FERC ¶ 61,048 at P 276; *Sw. Power Pool, Inc.*, 193 FERC ¶ 61,244 at P 72. As such, we find that SPP continues to comply with this requirement of Order No. 1000. Likewise, we note that SPP did not propose to change the competitive transmission development process that the Commission found complies with the nonincumbent transmission developer reforms of Order No. 1000. *See* First Order No. 1000 Compliance Order, 144 FERC ¶ 61,059 at PP 162, 184, 195, 225,

note that the Commission previously found that SPP's existing regional transmission planning process satisfied each of the transmission planning principles of Order No. 890¹⁰³ and requirements contained in Order No. 1000 (including the requirement that public utility transmission providers amend their tariffs to describe procedures that provide for the consideration of transmission needs driven by public policy requirements in their regional transmission planning processes).¹⁰⁴ As SPP's proposed CPP Transmission Assessment Procedures are based, in part, on its existing regional transmission planning process contained in Attachment O of its Tariff, our focus in this proceeding is on the incremental changes to the SPP regional transmission planning process proposed in the instant filing. We agree with SPP that the proposed CPP framework will not change the structure of its regional transmission planning process in a manner that would diminish its compliance with the regional transmission planning requirements of Order No. 1000 and that many of its proposed CPP Transmission Assessment Procedures Tariff provisions, including Attachment AY, sections IV.1.1, IV.1.6, IV.1.7, and IV.1.12, are nearly identical to existing ITP provisions contained in Attachment O, section III.¹⁰⁵ Moreover, SPP proposes only limited changes to Attachment O itself, including to update references to the CPP and to replace references to the 20-Year Assessment with the CPP-20. Therefore, given the consistency between the existing Attachment O, section III (The Integrated Transmission Planning Assessment) and proposed Attachment AY, we find that SPP's proposed transmission planning requirements contained in Attachment AY comply with the transmission planning-related requirements of Order Nos. 890 and 1000.

241-242, 306-307, 322; Second Order No. 1000 Compliance Order, 149 FERC ¶ 61,048 at PP 128, 158-159, 166, 173, 180, 196, 263; Third Order No. 1000 Compliance Order, 151 FERC ¶ 61,045 at PP 59-60; Fourth Order No. 1000 Compliance Order, 152 FERC ¶ 61,106 at PP 15, 19. Nor did SPP propose to change its interregional transmission coordination procedures or interregional cost allocation method, which the Commission also found comply with the interregional transmission coordination and cost allocation requirements of Order No. 1000. *See Sw. Power Pool, Inc.*, 150 FERC ¶ 61,093, at PP 24, 29, 48, 66, 84, 148-149 (2015), *order on compliance filing*, 154 FERC ¶ 61,075, at P 10, 13, 27, 41, 58, 69 (2016); *Sw. Power Pool, Inc.*, 150 FERC ¶ 61,210, at PP 18, 24-25, 64, 92, 111, 178-179, *order on compliance filing*, 152 FERC ¶ 61,172, at PP 11, 18, 21, 26 (2015), *order conditionally accepting compliance filing*, 154 FERC ¶ 61,076, at P 11 (2016).

¹⁰³ *See Sw. Power Pool, Inc.*, 132 FERC ¶ 61,042, at PP 52-63 (2010).

¹⁰⁴ *See First Order No. 1000 Compliance Order*, 144 FERC ¶ 61,059 at P 20.

¹⁰⁵ Transmittal at 56-59, 81, 84.

54. However, we recognize SPP's agreement in its Deficiency Response to make the following corrections in the proposed Tariff language: (1) removing the bolded subheading language "Potential improvements to the Transmission" and instead including that language in the body of the Tariff in Attachment AY, section IV.1.7.1.1 to read "Potential improvements to the Transmission System submitted by a Transmission Owner that are intended to relieve a violation of Zonal Planning Criteria shall be studied as a potential solution in accordance with the CPP Manual;" (2) correcting the Tariff reference in Attachment AY, section IV.1.10 to read "[i]n addition to Section IV.1.9 of this Attachment AY requirement, the Transmission Provider shall assess the cost effectiveness of proposed solutions;" (3) correcting language in Attachment AY, sections IV.1.7.1.1.2 and IV.1.12.3 to reference the CPP "Transmission Assessment," instead of the "Integrated Transmission Planning Assessment;" and (4) replacing the word "estimation" with "determination" in Attachment AY, section IV.1.12 in reference to "the NRIS Region-wide and Subregional GRID Contribution rates." Therefore, we direct SPP to submit, within 30 days of the date of this order, a further compliance filing to revise Attachment AY to include these corrections.

2. Cost Allocation and Cost Recovery

a. SPP Proposal

i. Cost Allocation

55. As described above, SPP currently allocates to load the costs of new transmission facilities approved through the ITP process using its Highway/Byway cost allocation method under Attachment J and Schedule 11 of the Tariff.¹⁰⁶ In this filing, SPP does not propose to change its existing Highway/Byway cost allocation method, but rather proposes to use that method to share the costs of new transmission facilities among the generation and load that will benefit from CPP upgrades.¹⁰⁷ SPP proposes that interconnection customers will be allocated a share of those costs through the GRID-C mechanism, which is a per MW charge calculated to reflect the share of system network upgrade costs paid by generators, with the revenues credited to load paying for the same network upgrades under SPP's Highway/Byway cost allocation method.¹⁰⁸

¹⁰⁶ *Id.* at 52. Transmission customers pay base plan zonal charges, subregional charges, and region-wide charges pursuant to Schedule 11 of the Tariff. SPP, Tariff, sched. 11 (Base Plan Zonal Charge) (10.0.1).

¹⁰⁷ Transmittal at 8-9, 52-53.

¹⁰⁸ The GRID-C revenue collected by SPP will be credited directly to transmission customers under Schedule 11 of the Tariff, which will reduce transmission customers' net invoice for transmission service. *Id.* at 24, 90 (citing SPP, Proposed Tariff, attach. AY,

56. As discussed further below, each interconnection customer will be required to pay a share of the CPP-20 Transmission Portfolio costs based on the MW amount of its requested interconnection service—either Energy Resource Interconnection Service (ERIS) or NRIS—multiplied by the applicable GRID-C rates.¹⁰⁹ Thus, SPP states that the GRID-C framework is designed to reflect the transmission utilization of CPP upgrades by future generation, representing interconnection customers’ roughly commensurate share of the costs to construct transmission projects necessary to enable their interconnection.¹¹⁰

57. SPP explains that the GRID-C framework will identify interconnection customers’ share of those system network upgrade costs prior to entering the interconnection queue and, thereby, provide interconnection customers with increased cost certainty.¹¹¹ SPP states that, in exchange for the CPP’s cost certainty, interconnection customers will be required to provide greater upfront cost commitment, meet stricter commercial readiness requirements, and be subject to risk of greater financial penalties for withdrawing from the queue, as outlined further below.¹¹² SPP asserts that the increased cost certainty and financial commitments at the beginning of the interconnection process should reduce the number of speculative projects entering the interconnection queue and the need for restudies, to the benefit of all interconnection customers. SPP states that although it expects that interconnection customers will pay more under CPP than they currently pay to interconnect to the SPP transmission system, the GRID-C charge will be more evenly assessed across the many interconnection customers that are similarly benefiting from the

§ IV.3 (GRID Contribution Cost Allocation from Transmission Assessments) (0.0.0), § IV.3.5 (Distribution of GRID Contribution Revenues)); SPP, Proposed Tariff, sched. 11 (Base Plan Zonal Charge) (10.0.5); *id.*, addendum 3 (Addendum 3 to Schedule 11) (0.0.0).

¹⁰⁹ Transmittal at 53. Under SPP’s GIP, when an interconnection customer submits its interconnection request, it must request one of two primary types of interconnection service: ERIS or NRIS. ERIS makes the interconnection customer “eligible to deliver the Generating Facility’s electric output using the existing firm or non-firm capacity of the Transmission System on an as available basis.” NRIS allows an interconnection customer in SPP “to integrate its Generating Facility with the Transmission System in the same manner as all other Network Resources.” SPP, Tariff, attach. V, § 1 (Definitions) (21.0.1). Neither ERIS nor NRIS, in and of themselves, conveys transmission service. *Id.*

¹¹⁰ Transmittal at 23-24.

¹¹¹ *Id.* at 20, 25.

¹¹² See *infra* PP 99, 102, 104.

shared transmission investment, will allocate costs roughly commensurate with benefits, and will result in greater upfront cost certainty.¹¹³

58. SPP asserts that, like the Highway/Byway cost allocation method, the GRID-C method reasonably aligns the costs of transmission expansions with the usage of the transmission system, and by distinguishing between the types of facilities that are used on a regional and subregional basis, it ensures that allocations of costs are roughly commensurate with associated benefits.¹¹⁴ SPP acknowledges that the proposed provisions related to the GRID-C mechanism and PILs reflect a change from the proportional impact cost allocation method for necessary system network upgrades contained in its Order No. 2023-compliant GIP.¹¹⁵ Nevertheless, SPP argues that the proposal is just and reasonable and satisfies the independent entity variation standard for variations from the Commission's *pro forma* Large Generator Interconnection Procedures (LGIP), as the proposal will not only enable planning of more efficient and cost-effective transmission solutions, but also provide interconnection customers with greater certainty regarding cost and viability of interconnecting a particular generating facility, which will, in turn, reduce the number of withdrawals and restudies and speed up the entire interconnection process.¹¹⁶

59. SPP states that, in addition to paying the GRID-C charge, interconnection customers that request to interconnect at an unplanned interconnection location (UPIL)—which is a location other than a PIL or a PIL where available capacity has been exceeded by interconnection requests—will be directly assigned the cost of any additional network upgrades identified during the ICS that are necessary for their interconnection.¹¹⁷ Specifically, if multiple interconnection customers request to interconnect at the same PIL such that the total requested MWs of interconnection service are above the designated MW of capacity at the PIL, the PIL will be considered oversubscribed. In that

¹¹³ Transmittal at 44; SPP, Filing, Ex. SPP-004 (Testimony of Charles Locke) at 25-26 (Locke Test.).

¹¹⁴ Transmittal at 53.

¹¹⁵ *Id.* at 69.

¹¹⁶ *Id.* SPP notes that, in Order No. 2023, the Commission stated that methods other than the proportional impact method could be justified under the independent entity variation standard. *Id.* (citing Order No. 2023, 184 FERC ¶ 61,054 at P 464).

¹¹⁷ *Id.* at 26; SPP, Proposed Tariff, attach. AY, § V.8 (Interconnection Cluster Study) (0.0.0), § V.8.3 (ICS Review Period); *id.* § V.3 (Interconnection Requests) (0.0.0), § V.3.3A.1.2 (Planned Interconnection Location); *id.* § V.4 (0.0.0), § V.4.2.2 (Cost Allocation for Interconnection Facilities and Network Upgrades).

case, SPP will request that each interconnection customer reduce its interconnection request by a *pro rata* percentage. Interconnection customers that choose not to reduce their interconnection request will be considered to be interconnecting at a UPIL and will pay additional directly assigned network upgrade costs (DAUC) for any additional system network upgrade costs identified in the ICS. Under the proposal, an interconnection customer's DAUC may be reduced if some of the additional network upgrades are identified in the CPP-10 as providing sufficient benefit to load or eliminated entirely if all of the additional network upgrades provide sufficient benefit to load.¹¹⁸ Further, SPP explains that interconnection customers at PILs may be assigned DAUC for network upgrades with a nominal operating voltage less than or equal to 100 kV because such costs are not included in the calculation of GRID-C rates.¹¹⁹ SPP also notes that all interconnection customers will remain responsible for the cost of interconnection-related facilities.¹²⁰

ii. GRID-C Calculation

60. SPP explains that GRID-C rates will be calculated based on the estimated network upgrade engineering and construction costs of the network upgrades identified in the applicable CPP-20 and will account for the relative use of those planned transmission facilities by prospective interconnection customers.¹²¹

61. Specifically, SPP explains that there will be four GRID-C rates, divided by interconnection type (ERIS or NRIS) and geography: (1) region-wide ERIS GRID-C, (2) subregional ERIS GRID-C, (3) region-wide NRIS GRID-C, and (4) subregional NRIS GRID-C. Under the proposal, ERIS GRID-C rates will apply to all interconnection customers, and interconnection customers that request NRIS service will pay both the ERIS and NRIS GRID-C rates. Each interconnection customer will pay the region-wide

¹¹⁸ SPP, Proposed Tariff, attach. AY, § V.3 (0.0.0), § V.3.3A.1 (Planned Interconnection Location); *see also* Deficiency Response at 14-15 (explaining that to determine whether such a network upgrade provides “sufficient benefit to load,” SPP will employ a benefit-to-cost ratio of 1.0 for justifying beneficial upgrades from the production cost simulation).

¹¹⁹ Transmittal at 26; Locke Test. at 7-8.

¹²⁰ Transmittal at 68-69; Raheem Test. at 19. SPP states that interconnection-related facilities include transmission owner's interconnection facilities, interconnection customer's interconnection facilities, and other point of interconnection upgrades such as discrete substation network upgrades at the point of interconnection directly related to the interconnection request. Raheem Test. at 19.

¹²¹ Transmittal at 53.

GRID-C rates and the subregional GRID-C rates that correspond to its subregion. SPP explains that, mirroring SPP's Highway/Byway cost allocation method, the region-wide GRID-C rates will be derived based on 100% of the costs of EHV facilities and 33% of the costs of the region's total HV facilities. The subregional GRID-C rates will be based on 67% of the costs of the HV facilities in the subregion where the interconnection request is located.¹²²

62. The proposed GRID-C framework also includes an inflation adjustment mechanism to account for inflation during the years following each CPP-20 in each planning cycle, with the GRID-C rates in those years updated to reflect a cost escalation factor using an index that measures inflation in the electric utility industry.¹²³ Further, SPP will monitor differences between the upgrade cost estimates underlying each set of GRID-C rates and the final actual costs of the upgrades upon completion. While the GRID-C rates for interconnection customers with executed GIAs will remain fixed, the proposed GRID-C framework includes a mechanism to update the GRID-C rates for future interconnection customers in future CPP planning cycles based upon the monitored differences in costs.¹²⁴ SPP proposes that generator interconnection customers will be eligible for ILTCRs for the incremental available transfer capability created by the portion of the CPP upgrades for which they pay through GRID-C charges.¹²⁵ SPP asserts this is consistent with Commission policy and, given that interconnection customers are

¹²² SPP's recently accepted subregional cost allocation filing established five subregions: Southwest, Southeast, Central, Nebraska, and North. *See Sw. Power Pool, Inc.*, 193 FERC ¶ 61,244 at P 14. SPP explains that these subregions are configured, among other purposes, to ensure that the large majority of designated resources associated with network loads are located in the same subregion as those loads. SPP argues that this provides a means to align the interconnection customers, the cost of upgrades necessary to furnish network transmission service from those interconnection customers, and the network loads benefiting from such service. Transmittal at 54.

¹²³ SPP, Proposed Tariff, attach. AY, § IV.3 (0.0.0), §§ IV.3.8 (Cost Changes), IV.3.8.1 (Inflation Adjustment).

¹²⁴ When the average actual cost of CPP upgrades approved through a prior CPP-10 assessment exceeds a 10% variation over or under the estimated amount, SPP will develop an escalation or de-escalation factor for the purpose of establishing more accurate cost estimates, which will be applied in estimating the CPP upgrade costs and calculating the GRID-C rate in the next CPP-20. Transmittal at 35-36; Locke Test. 27; SPP, Proposed Tariff, attach. AY, § IV.3 (0.0.0), § IV.3.8.2 (GRID Contribution Cost True-Up).

¹²⁵ Transmittal at 77; Locke Test. at 21; SPP, Proposed Tariff, attach. Z2, § IV (Incremental LTCRs) (5.0.0).

already eligible for ILTCRs related to DAUC under its Tariff, will help ensure comparable treatment for interconnection customers as the level of DAUC is expected to diminish and be replaced by GRID-C charges under the CPP framework.

(a) ERIS GRID-C Rate Calculation

63. SPP proposes to calculate the ERIS GRID-C rates as the product of: (1) the CPP-20 portfolio's engineering and construction costs, adjusted for inflation, that are specific to the region-wide or subregional categories using the Highway/Byway cost allocation method described above, excluding the cost of those CPP upgrades necessary for furnishing only NRIS;¹²⁶ (2) the Transmission Utilization Factor;¹²⁷ and (3) the Future Generation Non-Accredited Factor (Energy Factor).¹²⁸ This product, for the region and each subregion, is then divided by the weighted nameplate MWs of projected future generation, in the region and each subregion, to derive a region-wide and subregional rate per MW, respectively.¹²⁹

64. SPP explains that the Transmission Utilization Factor accounts for the relative utilization of existing and planned EHV and HV facilities in the transmission system by current and prospective interconnection customers.¹³⁰ By quantifying relative usage of

¹²⁶ Transmittal at 35-36, 88; SPP, Proposed Tariff, attach. AY, § IV.3 (0.0.0), §§ IV.3.4 (GRID Contribution Calculation), IV.3.4.1.1 (CPP-20 Transmission Portfolio Cost Determination).

¹²⁷ SPP will calculate a separate Transmission Utilization Factor value for HV facilities and EHV facilities. SPP, Proposed Tariff, attach. AY, § IV.3 (0.0.0), § IV.3.4.1.2 (Transmission Utilization Factor).

¹²⁸ SPP explains that the Future Generation Non-Accredited Factor is also referred to as the Energy Factor in its transmittal and testimonies. Deficiency Response, app. A, n.2. See, e.g., Transmittal at 37-38, 89; Locke Test. at 14-15; SPP, Proposed Tariff, attach. AY, § IV.3 (0.0.0), §§ IV.3.4.2 (ERIS GRID Rate Calculation), IV.3.4.1.3 (Future Generation Non-Accredited Factor).

¹²⁹ SPP, Proposed Tariff, attach. AY, § IV.3 (0.0.0), §§ IV.3.4.1.1 (CPP-20 Transmission Portfolio Cost Determination), IV.3.4.2 (ERIS GRID Rate Calculation), IV.3.4.1.2 (Transmission Utilization Factor), IV.3.4.1.3 (Future Generation Non-Accredited Factor), IV.3.4.1.4 (Prospective Generation Megawatts Determination).

¹³⁰ Transmittal at 37-38 (citing SPP, Proposed Tariff, attach. AY, § IV.3 (0.0.0), § IV.3.4.1.2 (Transmission Utilization Factor)).

the transmission system by future interconnection customers, SPP states that the factor is intended to reflect the benefit derived from the system by future generation.¹³¹

65. SPP explains that the Energy Factor is intended to quantify the portion of transmission usage not required for meeting accredited capacity requirements.¹³² SPP notes that the Energy Factor is only applicable to generating facilities interconnecting under ERIS because ERIS does not guarantee deliverability service.¹³³

66. SPP explains that the ERIS GRID-C denominator is based on the average total MW of future generation in the region at years 10 and 20 and is weighted by the proportion of transmission portfolio costs required in years 10 and 20, respectively.¹³⁴

¹³¹ *Id.* at 88; SPP, Proposed Tariff, attach. AY, § II (0.0.0). SPP states that the Transmission Utilization Factor will be determined through an economic model simulating conditions in the twentieth year of the study horizon and will be applied to reflect the proportion of EHV and HV portfolio costs attributed to prospective interconnection customers based on their expected usage of the transmission system. The simulation will be conducted on an hourly basis, with results summarized in a ratio comparing the prospective generating facility's MWh usage of the EHV and HV facilities to total MWh usage. Transmittal at 37, 88; Deficiency Response at 6-7; Deficiency Response, app. A at 3. SPP further explains that the Transmission Utilization Factor is calculated based on the single, consolidated set of transmission facilities in the CPP-20 portfolio, which reflects transmission needs identified across the multiple futures included in the study scope. SPP states that the Transmission Utilization Factor is not calculated separately by future and therefore is not optimized to any single futures forecast but instead reflects the expected use of the consolidated portfolio over time and across a range of plausible system conditions. Deficiency Response at 6-7.

¹³² Transmittal at 37; SPP December 9 Answer at 15; SPP, Proposed Tariff, attach. AY, § IV.3 (0.0.0), § IV.3.4.1.3 (Future Generation Non-Accredited Factor). SPP states that the Energy Factor is calculated as one minus the ratio of the total regional accredited capacity of future generation resources to the nameplate capacity of those future resources. Transmittal at 37. SPP clarifies that it determines the Energy Factor by averaging the non-accredited generation outcomes across the multiple futures included in the CPP-20 study scope. Deficiency Response at 7. SPP explains that the Energy Factor factors out the estimated accredited capacity needed to address peak hour resource adequacy requirements in order to identify the portion of future generation expected to provide "energy-only" service. Deficiency Response, app. A at 3 (citing Draft CPP Manual, § 9.2.1.3).

¹³³ Deficiency Response, app. A at 3.

¹³⁴ SPP, Proposed Tariff, attach. AY, § IV.3 (0.0.0), § IV.3.4.1.4 (Prospective Generation Megawatts Determination); Deficiency Response, app. A at 4-5. SPP

SPP contends that this weighting aligns the allocation of ERIS GRID-C costs with the magnitude and timing of transmission facilities buildout.¹³⁵ SPP asserts that weighting the future generation nameplate MW by CPP-20 portfolio costs will improve cost causation by aligning near-term investments and long-term portfolio buildout with the corresponding levels of generation deliverability assumed in planning.¹³⁶

(b) NRIS GRID-C Rate Calculation

67. SPP states that the NRIS region-wide and subregional GRID-C rates are based on the incremental costs, as allocated on a region-wide and subregional basis, respectively, for projected network upgrades in the CPP-20 transmission portfolio necessary to provide NRIS deliverability.¹³⁷ Similar to the ERIS GRID-C, the NRIS GRID-C calculation will include regional and sub-regional components and follow the Highway/Byway cost allocation method.¹³⁸ Specifically, the region-wide NRIS GRID-C calculation will sum 100% of the EHV CPP-20 portfolio costs and 33% of the HV CPP-20 portfolio costs needed to enable NRIS deliverability.¹³⁹ This value will then be divided by a MW value of projected accredited generation weighted by costs, as described below.¹⁴⁰ The subregional NRIS GRID-C calculation will divide 67% of the subregion's

provides that the proportional costs at years 10 and 20 will be the incremental costs divided by total costs at year 20. Deficiency Response, app. A at 4.

¹³⁵ Deficiency Response at 10.

¹³⁶ *Id.* at 11.

¹³⁷ Transmittal at 39-40, 89-90; SPP, Proposed Tariff, attach. AY, § IV.3 (0.0.0), §§ IV.3.4.1.1 (CPP-20 Transmission Portfolio Cost Determination), IV.3.4.3 (NRIS GRID Contribution).

¹³⁸ Transmittal at 39; SPP, Proposed Tariff, attach. AY, § IV.3 (0.0.0), § IV.3.4.3 (NRIS GRID Contribution).

¹³⁹ SPP, Proposed Tariff, attach. AY, § IV.3 (0.0.0), § IV.3.4.3 (NRIS GRID Contribution).

¹⁴⁰ *Id.*, attach. AY, § IV.3 (0.0.0), § IV.3.4.1.4 (Prospective Generation Megawatts Determination).

HV CPP-20 NRIS portfolio costs by a MW value of projected accredited generation weighted by costs, as described below.¹⁴¹

68. SPP explains that the NRIS GRID-C denominator is the total MW of future accredited generation in the region at years 10 and 20 weighted by the proportion of NRIS transmission portfolio costs required in years 10 and 20, respectively.¹⁴² SPP states that weighting the future generation accredited MWs by transmission portfolio costs in the same manner as the ERIIS GRID-C denominator creates consistency between the transmission investment in each time horizon and the level of accredited deliverable generation capacity for which transmission investment will be necessary to ensure deliverability.¹⁴³

69. SPP explains that, if a transmission owner identifies an NRIS generating facility as a designated resource prior to the commercial operation date, the interconnection customer's NRIS GRID-C charge is eligible to be base plan funded (i.e., paid by load), subject to existing eligibility rules and safe harbor cost limits in Attachment J.¹⁴⁴ SPP argues that this eligibility is consistent with the treatment of designated resources under SPP's existing aggregate transmission service study.

iii. Cost Allocation Justification

70. SPP notes that the Commission and the courts have held that the costs of jurisdictional transmission facilities must be allocated in a manner that satisfies the cost causation principle, which requires that "all approved rates reflect to some degree the costs actually caused by the customer who must pay them."¹⁴⁵ SPP states that, as a result, a cost allocation method can satisfy the cost causation principle if the Commission "has an articulable and plausible reason to believe that the benefits are at least roughly

¹⁴¹ *Id.*, attach. AY, § IV.3 (0.0.0), §§ IV.3.4.3 (NRIS GRID Contribution), IV.3.4.1.4 (Prospective Generation Megawatts Determination).

¹⁴² *Id.*, attach. AY, § IV.3 (0.0.0), § IV.3.4.1.4 (Prospective Generation Megawatts Determination); Deficiency Response, app. A at 6-7.

¹⁴³ Deficiency Response at 12.

¹⁴⁴ Transmittal at 34-35 (citing Locke Test. at 19-20); SPP, Tariff, attach. Z1 (Aggregate Transmission Service Study Procedures and Cost Allocation and Recovery for Service Upgrades) (0.0.0), § V (Cost Recovery for Service Upgrades) (3.0.0)).

¹⁴⁵ Transmittal at 47 (citing *KN Energy, Inc. v. FERC*, 968 F.2d 1295, 1300 (D.C. Cir. 1992)).

commensurate with” the allocation of the costs.¹⁴⁶ SPP also highlights that, while the Commission has traditionally applied its longstanding “but for” cost causation approach to generator interconnection, the Commission has recognized that it is not the only way to evaluate cost causation in the generator interconnection context.¹⁴⁷ SPP concludes that the legal standard for evaluating cost causation in the generator interconnection context is “the FPA’s broad and flexible ‘just and reasonable’ standard, which the cost causation and beneficiary pays principles effectuate.”¹⁴⁸ SPP argues that the proposed CPP cost allocation and cost recovery method is consistent with these established cost causation principles and precedent.¹⁴⁹

71. SPP explains that the CPP cost allocation method is designed to allocate the costs of new transmission facilities in a manner that is roughly commensurate with the benefits realized by load and generation for CPP upgrades developed to serve both load and generator interconnection.¹⁵⁰ SPP explains that the CPP proposal does not modify SPP’s existing Highway/Byway cost allocation method for allocating the cost of transmission facilities to load. However, SPP states, because generation in addition to load will significantly benefit from the CPP upgrades, generation will be allocated a portion of the costs of new transmission facilities in the form of GRID-C charges, which SPP will collect from interconnection customers and use to offset load’s obligations under Attachment J and Schedule 11 of its Tariff.

72. In addition, SPP contends that its existing Highway/Byway cost allocation method, as well as the proposed CPP cost allocation method, comply with the regional cost allocation requirements and six cost allocation principles the Commission established in Order No. 1000 because: (1) the CPP proposal and its implementation of GRID-C charges as an offset to Schedule 11 transmission charges meets the “roughly commensurate” standard; (2) the CPP reasonably aligns the costs associated with transmission expansion with load and generation’s usage of the transmission system; (3) neither the Highway/Byway cost allocation method nor the GRID-C method use a

¹⁴⁶ *Id.* at 48 (citing *Ill. Com. Comm’n v. FERC*, 576 F.3d 470, 477 (7th Cir. 2009) (“We do not suggest that the Commission has to calculate benefits to the last penny, or for that matter to the last million or ten million or perhaps hundred million dollars.”) (citations omitted)).

¹⁴⁷ *Id.* (citing *Midcontinent Indep. Sys. Operator, Inc.*, 189 FERC ¶ 61,108 (2024) (JTIQ I), *order on reh’g*, 191 FERC ¶ 61,231, at P 34 (2025) (JTIQ II)).

¹⁴⁸ *Id.* (citing *JTIQ II*, 191 FERC ¶ 61,231 at P 34 & n.139).

¹⁴⁹ *Id.* at 49.

¹⁵⁰ *Id.* at 51-53.

benefit-to-cost ratio greater than 1.25 to allocate costs; (4) the CPP proposal does not materially change the Tariff, which is already compliant; (5) the CPP proposal is not changing the Highway/Byway method; and (6) the CPP evaluates projects holistically and allocates costs based on voltage level in a manner that is roughly commensurate with benefits, based on use of the transmission system.¹⁵¹

b. Comments and Protests

73. Several supportive commenters contend that the proposed CPP cost allocation framework will allocate the cost of transmission facilities to load and interconnection customers in a manner at least “roughly commensurate” to benefits, as well as provide greater upfront cost certainty for interconnection customers.¹⁵²

74. SPP TO Group asserts that the existing cost allocation methods create incentives for load and interconnection customers to seek to place the responsibility for network upgrades on others.¹⁵³ According to SPP TO Group, the CPP proposal corrects this issue, recognizing that all transmission projects are mutually impactful, and is designed to identify multi-driver transmission solutions that benefit both load and generation and that can be jointly funded. Similarly, American Clean Power Association claims that network upgrade costs in SPP’s subregions have often been so expensive that interconnection requests were commercially unviable, which is due in part to a failure to address transmission issues in the ITP.¹⁵⁴ American Clean Power Association argues that the CPP proposal will address misalignments in the current cost allocation methods through the GRID-C rate because interconnection customers will contribute a fair share of the cost of new regional transmission upgrades. American Clean Power Association argues that interconnection customers will therefore help fund major transmission expansions that were previously not addressed in a coordinated manner between the current ITP and DISIS processes in return for a faster and more predictable interconnection study process with fewer network upgrades to fund on a purely “but for” basis.

¹⁵¹ *Id.* at 59-63 (citing Order No. 1000, 136 FERC ¶ 61,051).

¹⁵² American Clean Power Association Comments at 7; ITC Great Plains Comments at 5; PIOs Comments at 11-12; SEIA Comments at 3-4; SPP TO Group Comments at 10-13.

¹⁵³ SPP TO Group Comments at 7-8.

¹⁵⁴ American Clean Power Association Comments at 7-8.

75. PIOs aver that the GRID-C framework will create transparent, roughly commensurate cost allocation in proportion to the benefits that interconnection customers receive.¹⁵⁵ PIOs believe that the ERIS GRID-C rate will ensure that all interconnection customers contribute fairly to foundational network upgrades and that the NRIS GRID-C rate will ensure that only those interconnection customers seeking NRIS service pay for the incremental costs of transmission required to ensure deliverability. PIOs argue that the CPP's proposed "beneficiary pays" principle is logical, will create more equitable outcomes, and will consistently and fairly share transmission costs between generation and load.

76. ITC Great Plains, SEIA, and SPP TO Group contend that the GRID-C method will establish a predictable rate for prospective interconnection customers before the queue cluster window opens, thereby providing greater cost certainty for developers and enabling more accurate assessments of project viability.¹⁵⁶ Additionally, SEIA notes a recent study indicating that although GRID-C rates may produce higher fees than were assigned under the GIP, "most power plant developers believe the higher fees are justified, provided the process makes it more likely that new power plants are interconnected."¹⁵⁷ SEIA claims that the reduced barriers to competition will benefit ratepayers through increased resource development and more efficient market outcomes. Further, SEIA asserts that the more coordinated planning process can lead to more cost-effective transmission development.¹⁵⁸ For example, SEIA claims that the Elm Creek-Pauline/Mark Moore 345 kV line repeatedly fell short of the benefit-to-cost threshold required for approval under the ITP process, and when its costs were assigned entirely to interconnection customers through the DISIS process, those interconnection customers withdrew due to the high costs. SEIA states that a consolidated planning structure would help avoid similar missed opportunities by evaluating potential upgrades in a unified process.

¹⁵⁵ PIOs Comment at 11, 13-14.

¹⁵⁶ ITC Great Plains Comments at 5; SEIA Comments at 3-4; SPP TO Group Comments at 7-8.

¹⁵⁷ SEIA Comments at 3-4 (citing Solar and Storage Industries Institute, *Interconnection Reform: How One Grid Operator is Changing the Game* 5 (Nov. 24, 2025), <https://www.ssii.org/wp-content/uploads/2025/11/SI2-Game-Changing-Reform-In-Practice-FINAL.pdf>).

¹⁵⁸ *Id.* at 5-6.

77. SPP TO Group argues that replacing the “but for” cost allocation with the new GRID-C *ex ante* approach is fully consistent with cost causation principles and is just and reasonable.¹⁵⁹ SPP TO Group claims that the Commission has explained that the “but for” approach is not required by the FPA and that SPP is not obligated to evaluate costs and benefits on a project-by-project basis.¹⁶⁰ Consistent with precedent, SPP TO Group argues that SPP cannot “feasibly” meet the challenges of interconnecting critically needed new generating facilities to its transmission system as long as interconnection studies are performed on a unit-by-unit basis to determine responsibility for network upgrade costs.¹⁶¹ Additionally, SPP TO Group argues that the GRID-C method satisfies the cost causation principle by assigning transmission costs based on factors such as the type of transmission project and location, accounting for the type of interconnection service, and including a mechanism that reasonably allocates costs to the SPP region as a whole and to subregions on a “roughly commensurate” basis. Moreover, SPP TO Group argues that the CPP-20 is consistent with the Commission’s determination in Order No. 1920 that “a time horizon that covers, at a minimum, 20 years” is reasonable because “the useful life of transmission assets generally far exceeds even 20 years, so a 10-year transmission planning horizon is much too short to capture all of the benefits that regional transmission facilities can provide.”¹⁶² Further, SPP TO Group contends that by using the same percentage allocation factors previously approved for SPP’s Highway/Byway cost allocation, the GRID-C’s subregional allocation method mechanism will result in closer correlation between the costs and benefits associated with interconnection customers that situate their projects in a particular area.

78. SPP TO Group also argues that, consistent with the treatment of upgrades to provide long-term transmission service under existing Attachment Z1 of the Tariff, if a transmission owner identifies a given NRIS generating facility as a designated resource prior to reaching commercial operation, the NRIS GRID-C rate for the interconnection customer is reduced or eliminated because the upgrades qualify as base plan upgrades.¹⁶³

¹⁵⁹ SPP TO Group Comments at 9-10.

¹⁶⁰ *Id.* at 10 (citing *JTIQ II*, 191 FERC ¶ 61,231 at P 34; *Long Island Power Auth. v. FERC*, 27 F.4th 705, 715 (D.C. Cir. 2022)).

¹⁶¹ *Id.* (citing *Sithe/Indep. Power Partners, L.P. v. FERC*, 285 F.3d 1, 5 (D.C. Cir. 2002) (explaining that when “feasibility concerns” arise, the Commission “is not bound to reject any rate mechanism that tracks the cost-causation principles less than perfectly”)).

¹⁶² *Id.* at 12 (citing Order No. 1920, 187 FERC ¶ 61,068 at PP 116, 225).

¹⁶³ *Id.* at 14.

79. Additionally, SPP TO Group avers that imposing DAUC for network upgrades needed for interconnection customers interconnecting at UPILs, in addition to the GRID-C charge, is reasonable because an interconnection customer choosing to locate at a UPIL will still realize benefits from the network upgrades associated with GRID-C even with the addition of any network upgrades associated with DAUC.¹⁶⁴

80. However, several commenters raise concerns that GRID-C rates may become too high to be commercially viable.¹⁶⁵ American Clean Power Association asserts that exceptionally high-cost transmission projects could cause very high GRID-C charges.¹⁶⁶ American Clean Power Association contends that the first CPP-20 and CPP-10 studies are likely to identify EHV facilities to meet long-term needs, which may make the first GRID-C charges significantly higher than the network upgrade costs under the DISIS.¹⁶⁷ American Clean Power Association avers that cost certainty should not come at the cost of cost realism, given that high GRID-C charges may be cost prohibitive for interconnection customers, which would undermine the CPP's goal of an efficient queue. Advanced Energy United argues that while the CPP offers greater planning and cost certainty, its success will be undermined if the all-in costs of GRID-C exceed commercial viability.¹⁶⁸ Advanced Energy United argues that maintaining the CPP's value proposition will require close attention to the scale and pacing of transmission portfolios feeding into GRID-C rates and possible cost containment measures on transmission portfolios. Additionally, while SEIA states that the CPP proposal is consistent with the Commission's cost causation principle and agrees that the proposed framework is a more cost-effective way to plan the transmission system as noted above, SEIA also avers that it is essential that the GRID-C rate be implemented transparently and consistently to ensure it does not inadvertently disadvantage independent power producers by embedding upgrade costs at levels that could limit competition.¹⁶⁹

¹⁶⁴ *Id.* at 13.

¹⁶⁵ Advanced Energy United Comments at 14-16; American Clean Power Association Comments at 8-9; PIOs Deficiency Response Comments at 2; SEIA Comments at 6.

¹⁶⁶ American Clean Power Association Comments at 8.

¹⁶⁷ *Id.* at 9.

¹⁶⁸ Advanced Energy United Comments at 14-16.

¹⁶⁹ SEIA Comments at 6.

81. APA argues that, in order to ensure that the GRID-C rate is just and reasonable and consistent with cost causation, SPP must clarify that it interprets the proposed Transmission Utilization Factor to be “subject to a check” to ensure that the relative proportion of costs allocated to load compared to interconnection customers is roughly commensurate with the benefits each receives.¹⁷⁰ APA notes that the Transmission Utilization Factor is not an actual measure of usage, but rather a projection based on modelling and expectations of future system conditions. APA further notes that the Transmission Utilization Factor will be a ratio comparing the prospective generator MWh usage of the EHV and HV transmission system to total MWh usage and is thus intended to account for the relative utilization of the existing and planned EHV and HV facilities by both current and prospective customers.¹⁷¹ However, APA argues that the relative utilization of transmission infrastructure between new and existing generation does not speak to the relative benefits of that transmission between load and interconnection customers. Specifically, APA argues that while a higher Transmission Utilization Factor may signify that new, rather than existing generation, is expected to make predominant use of the new transmission capacity, it does not signify that load is somehow benefiting less from the CPP upgrades. APA asserts that, if the Transmission Utilization Factor becomes high enough, there is a risk that load will end up not paying its “fair share,” relative to the benefits it receives.¹⁷²

82. APA argues that SPP should therefore clarify that it will include a check to ensure that the selected Transmission Utilization Factor does not result in either new generation or load paying a share of costs that are not roughly commensurate with the expected benefits of CPP upgrades.¹⁷³ APA asserts that SPP could clarify in the CPP Manual the specific mechanism by which it would complete this check, which could entail using the benefits estimated pursuant to proposed Attachment AY, section IV.1.9 (Benefits Evaluation) as a benchmark to ensure that the charges to load remain roughly commensurate with those benefits. In addition, APA argues that SPP should clarify how it reconciles differences in generation in the multiple futures used in the CPP-20 study scope when determining the Transmission Utilization Factor and Energy Factor in the GRID-C calculation.¹⁷⁴

¹⁷⁰ APA Protest at 1, 5-6.

¹⁷¹ *Id.* at 6 (citing Transmittal at 37-38; Raheem Test. at 13).

¹⁷² *Id.* at 6-7.

¹⁷³ *Id.* at 7.

¹⁷⁴ APA Deficiency Response Protest at 9.

83. APA also expresses concern that, without a mechanism to cap costs or to estimate benefits to interconnection customers, there is a substantial risk that the GRID-C will be unjust and unreasonable.¹⁷⁵ APA avers that the ERIS GRID-C rates are highly dependent on the size of the CPP-20 portfolio, regardless of its benefits to generation, and that the projected GRID-C rates are likely to produce notably higher interconnection costs than most historical interconnection costs for successful generation in the SPP footprint.¹⁷⁶ While APA states that it is aware of the Tariff provision that indicates that the cost-to-benefit analysis for CPP upgrades may confer additional benefits to interconnection customers, APA asserts that the mechanism to identify and track such benefits has yet to be developed, which is problematic for the transition to the CPP.¹⁷⁷ According to APA, SPP presented formulas during stakeholder meetings that utilized rate caps based on highest costs that historically resulted in successful interconnections in a sensitivity analysis.¹⁷⁸ APA asserts that the cap presented to stakeholders provided a surrogate for helping to ensure that the GRID-C rate was not prohibitively high, but APA contends that neither this nor any other cap was included in the CPP.¹⁷⁹

84. APA also argues that interconnection customers that connect at UPILs should not be directly assigned the entire cost of additional needed network upgrades.¹⁸⁰ Instead, APA argues that the assessed DAUC should only be at the level of cost necessary to push the benefit-to-cost ratio for load of the particular network upgrade beyond the minimum 1.0 benefit-to-cost ratio.

85. Some commenters also request that the Commission establish reporting requirements for CPP implementation.¹⁸¹ Advanced Energy United urges the Commission to monitor the cost trajectory of the GRID-C and recommends that the

¹⁷⁵ *Id.* at 4.

¹⁷⁶ *Id.* at 3, 4 (citing *Sw. Power Pool, Inc.*, CPP Entry Fee Presentation at Slide 9, RSC Education Session, (Mar. 14, 2025)).

¹⁷⁷ *Id.* at 3 (citing SPP, Proposed Tariff, attach. AY, § IV.1 (0.0.0), § IV.1.1.10g (Cost Effectiveness Evaluation)).

¹⁷⁸ *Id.* at 4 (citing *Sw. Power Pool, Inc.*, Consolidated Planning Process Task Force, (Nov. 18, 2024), Slide 21, Entry Fee (Network Upgrade Contribution: NUC)).

¹⁷⁹ *Id.*

¹⁸⁰ *Id.* at 8-9 (citing Deficiency Response at 25).

¹⁸¹ Advanced Energy United Comments at 15-16; American Clean Power Association Comments at 9-10; APA Protest at 8-9; SEIA Comments at 6-7.

Commission require SPP to provide periodic reporting on GRID-C costs and cost drivers, including which CPP upgrades were selected for inclusion and how costs were allocated between load and generation, in order to confirm that all-in costs of interconnection remain within commercially viable ranges.¹⁸² SEIA likewise requests that the Commission leverage its oversight authority by requiring SPP to file annual reports identifying which CPP upgrades have been reflected in the GRID-C rate and how those CPP upgrades were selected through the CPP process.¹⁸³ SEIA asserts that while CPP has the potential to streamline and provide certainty to the transmission planning and generator interconnection processes, the CPP is a new and novel process, and a reporting requirement will ensure that the Commission, stakeholders, and customers have visibility into how costs are being allocated and whether the CPP is delivering the efficiency and cost-effectiveness it is designed to achieve. American Clean Power Association and APA assert that the Commission should require SPP to provide compliance reports for the first two cycles utilizing GRID-C rates no later than 60 days after the determination of the GRID-C charge.¹⁸⁴ American Clean Power Association and APA argue that the reporting should include: (1) the amount of GRID-C charged; (2) the estimated cost of network upgrades to interconnect the generation at PILs based upon a “but for” analysis; (3) the total cost of interconnecting new NRIS/ERIS generation at PILs on a nameplate and accredited capacity basis; (4) the relative cost share of load and interconnection customers; (5) the number and associated MWs of interconnection customers that will pay the GRID-C rate on a zonal basis; and (6) the estimated benefits to load and interconnection customers of the CPP upgrades included in the GRID-C rate.¹⁸⁵ American Clean Power Association asserts that the Commission has previously required that RTOs submit status reports when implementing significant market design or interconnection reforms,¹⁸⁶ and that transparent data will both support resource development in the SPP footprint and help SPP to adjust the framework in the multi-phase, iterative CPP effort.¹⁸⁷

¹⁸² Advanced Energy United Comments at 15-16.

¹⁸³ SEIA Comments at 1, 6-7.

¹⁸⁴ American Clean Power Association Comments at 9; APA Protest at 8-9.

¹⁸⁵ American Clean Power Association Comments at 10.

¹⁸⁶ *Id.* at 10-12 (citing *Sw. Power Pool, Inc.*, 190 FERC ¶ 61,030, at P 37 (2025) (“[W]e direct SPP to submit a joint informational report every six months during the implementation period, as well as every six months for a period of three years after the Markets+ Tariff effective date.”)).

¹⁸⁷ *Id.* at 11-12.

c. Answers

86. In response to commenters, SPP argues that the GRID-C mechanisms ensure that cost allocation between load and generation is roughly commensurate with benefits.¹⁸⁸ SPP reiterates that the ERIIS GRID-C mechanism is intended to provide upfront cost certainty to interconnection customers and is designed to account for the relative MWh utilization of existing and planned EHV and HV facilities in the transmission system by current and prospective interconnection customers.¹⁸⁹ Further, SPP asserts that, contrary to APA's arguments, the proposed ERIIS GRID-C rate design already provides reductions for usage by load.¹⁹⁰ SPP explains that the ERIIS GRID-C rate reflects a direct measure of transmission utilization, which, SPP contends, is the benefit derived from the transmission system by future generation. SPP states that to align usage with ERIIS, SPP further adjusts transmission usage by a factor that "quantifies the portion of usage not required for meeting generation capacity requirements."¹⁹¹ SPP argues that this approach reduces anticipated utilization by generation to account for load's requirements and need for generation, which allows the ERIIS GRID-C rate to reflect the nature of ERIIS as an "as-available" service. SPP states that adjusting the Transmission Utilization Factor by the percentage of transmission services used by load to meet resource adequacy needs further reduces the ERIIS GRID-C rate to ensure that interconnection customers are not paying cost associated with benefits to load.¹⁹² In addition, SPP emphasizes that if a transmission owner identifies a given NRIS generating facility as a designated resource prior to reaching commercial operation, its NRIS GRID-C charge is eligible to be base plan funded (i.e., paid by load) subject to the existing requirements of Attachment J, section III.B.¹⁹³ Thus, SPP argues that protections are already in place to ensure that costs are allocated to generation and load in a manner at least roughly commensurate to the benefits each receives and that, therefore, no further clarification as requested by APA is required. Furthermore, SPP states that, consistent with its cost allocation reporting practices, it intends to monitor on an ongoing basis the CPP and its benefits to both load and generation to help ensure that benefits remain reasonably commensurate

¹⁸⁸ SPP December 9 Answer at 12.

¹⁸⁹ *Id.* (citing SPP, Proposed Tariff, attach. AY, § IV.3 (0.0.0), § IV.3.4.1.2 (Transmission Utilization Factor)).

¹⁹⁰ *Id.* at 14 (citing Transmittal at 37-40).

¹⁹¹ *Id.* at 14-15 (citing Raheem Test. at 14-16).

¹⁹² *Id.* at 15 (citing SPP, Proposed Tariff, attach. AY, § IV.3 (0.0.0), § IV.3.4.1.3 (Future Generation Non-Accredited Factor)).

¹⁹³ *Id.* at 15-16.

with allocated costs.¹⁹⁴ SPP also notes that stakeholders will have the opportunity to work with SPP to develop a detailed and transparent methodology for identifying generator benefits under the CPP for incorporation into the CPP Manual.

87. SPP argues that commenters' requests for reporting are unnecessary, duplicative of already available information, and burdensome.¹⁹⁵ SPP contends that its existing and proposed Tariff provides extensive transparency and meaningful participation for interested parties through stakeholder processes and Tariff-mandated reporting requirements.¹⁹⁶ SPP outlines that, among other things, reporting on transmission system planning will include: (1) public posting of CPP-10 and CPP-20 study schedules and process information, including timelines and processes for stakeholder submission of transmission needs, potential generator interconnection locations, and solutions to such needs; (2) posting of the CPP-10 and CPP-20 transmission assessment scopes; (3) specification of methodology, criteria, assumptions, and data to be used in transmission assessments in the CPP Manual; (4) collection and reporting of data related to the yearly SPP Transmission Expansion Plan, which will also provide data and results from each annual CPP transmission assessment; and (5) public posting of transmission assessment reports summarizing findings.¹⁹⁷ In particular, SPP notes that each CPP-20 report will include a determination of the ERIS Region-wide, ERIS Subregional, NRIS Region-wide, and NRIS Subregional GRID-C rates, with related studies and criteria, assumptions, and data underlying the reports available on SPP's website.¹⁹⁸ Further, SPP states that PILs will be updated each CPP-20 and posted on SPP's website, with PIL identification also subject to stakeholder review and approval. Finally, SPP argues that APA and American Clean Power Association's requests that SPP provide "but for" analysis are unsupported and unnecessary to make the proposed GRID-C rate just and reasonable.¹⁹⁹

¹⁹⁴ SPP January 29 Answer at 11.

¹⁹⁵ SPP December 9 Answer at 6.

¹⁹⁶ *Id.* at 6-7.

¹⁹⁷ *Id.* at 7-8.

¹⁹⁸ *Id.* at 8 (citing SPP, Proposed Tariff, attach. AY, § IV.1 (0.0.0), § IV.1.12 (Reporting)).

¹⁹⁹ *Id.* at 10 (citing APA Protest at 8; American Clean Power Association Comments at 10).

d. Commission Determination

i. GRID-C Mechanism

88. We find that SPP’s proposed GRID-C mechanism is just and reasonable and not unduly discriminatory or preferential. SPP’s proposed CPP framework presents a novel approach where SPP, as the transmission provider, will analyze the projected needs of future interconnection customers, incorporate that analysis into its regional transmission planning process, and then allocate a share of the costs of the transmission upgrades identified in that planning process to interconnection customers. Under this framework, unlike under typical generator interconnection procedures where the Commission has applied the “but for” principle, the specific interconnection customers and exact network upgrades needed to effectuate their interconnection are not definitively known before the CPP-20 portfolio is identified and the GRID-C rate is calculated. In that regard, we find that SPP’s CPP proposal is more akin to a transmission planning process that identifies effective regional transmission solutions to address transmission needs than to a traditional, reactive generator interconnection process that identifies only those network upgrades needed to accommodate a specific interconnection request or cluster of interconnection requests.²⁰⁰ As such, we apply the Commission’s “beneficiary pays” application of the cost causation principle to the proposed GRID-C mechanism to determine whether it is just and reasonable and not unduly discriminatory or preferential.

89. Under Commission precedent, costs must be allocated according to the cost causation principle, which requires that “all approved rates reflect to some degree the costs actually caused by the customer who must pay them.”²⁰¹ Courts have further explained that, to “the extent that a utility benefits from the costs of new facilities, it may be said to have ‘caused’ a part of those costs to be incurred, as without the expectation of its contributions the facilities might not have been built, or might have been delayed.”²⁰² As a result, a cost allocation method can satisfy the cost causation principle if the Commission “has an articulable and plausible reason to believe that the benefits are at

²⁰⁰ For this reason, we decline to apply the Commission’s participant funding precedent for interconnection-related network upgrades in RTOs/ISOs to this proposal. Thus, it is unnecessary to apply the independent entity variation standard to evaluate the GRID-C mechanism.

²⁰¹ *KN Energy, Inc. v. FERC*, 968 F.2d 1295, 1300 (D.C. Cir. 1992).

²⁰² *Ill. Commerce Comm’n v. FERC*, 576 F.3d at 476.

least roughly commensurate with” the allocation of the costs.²⁰³ In this order, we refer to this application of the cost causation principle as “beneficiary pays.”

90. We find that SPP’s proposed GRID-C mechanism satisfies the Commission’s “beneficiary pays” application of the cost causation principle because it will allocate costs in a manner that is at least roughly commensurate with the estimated benefits. SPP’s proposal to use the CPP-20 planning process to identify projected transmission upgrades and to require interconnection customers to contribute toward CPP upgrade costs through payment of the GRID-C charge is just and reasonable because the CPP will identify transmission facilities that, while benefitting load, are also necessary to enable the future interconnection of generating facilities to SPP’s transmission system. Accordingly, interconnection customers in SPP will benefit from CPP upgrades, and it is thus consistent with the “beneficiary pays” application of the cost causation principle for SPP to allocate them a portion of the costs of such upgrades. Further, we note that interconnection customers will be eligible to receive compensation in the form of ILTCRs related to the incremental available transfer capability created by the portion of the CPP upgrades for which they pay through GRID-C charges.²⁰⁴ As a result, we find that SPP’s proposed cost allocation method, including the GRID-C mechanism, will ensure that the costs of anticipated network upgrades identified to meet the needs of future generation and load are allocated to both prospective generator interconnection customers and to load in a manner that is at least roughly commensurate to benefits.

91. Next, we find that SPP’s proposed ERIIS GRID-C charge will allocate costs to interconnection customers requesting ERIIS in a manner that is at least roughly commensurate with estimated benefits because the incorporation of the Transmission Utilization Factor and the Energy Factor into the proposed ERIIS GRID-C rates calculation reflects both the relative MWh utilization of transmission facilities by future interconnection customers (as opposed to existing interconnection customers) and the portion of that transmission system usage not required for meeting accredited capacity requirements, respectively. As such, we agree with SPP that the proposed calculation reasonably reflects the nature of ERIIS as an “as available” interconnection service by identifying the portion of future generation expected to provide energy-only service rather than accredited capacity for peak hour resource adequacy.²⁰⁵ APA argues that certain components of the ERIIS GRID-C calculation render the proposed GRID-C rates unjust and unreasonable. Specifically, APA argues that further clarification is necessary regarding the incorporation of the multiple futures contained in the CPP-20 study scope

²⁰³ *Id.* at 477.

²⁰⁴ Transmittal at 77; Locke Test. at 21; SPP, Proposed Tariff, attach. Z2, § IV (Incremental LTCRs) (5.0.0).

²⁰⁵ Deficiency Response, app. A at 3; SPP December 9 Answer at 14-15.

into the GRID-C calculation.²⁰⁶ However, we note that SPP has clarified that the Energy Factor is determined by averaging non-accredited generation outcomes across the futures included in the CPP-20 study scope and that the Transmission Utilization Factor is not calculated separately by future but instead reflects the expected use of the CPP-20 portfolio over time.²⁰⁷

92. We also disagree with APA's argument that the proposed cost allocation framework, including the GRID-C mechanism, is unjust and unreasonable unless the Transmission Utilization Factor, a component of the ERIIS GRID-C rate calculation, is further "subject to a check" to ensure that costs are allocated to both load and interconnection customers in a manner at least roughly commensurate to benefits. As SPP explains, the Transmission Utilization Factor is not the only component of the ERIIS GRID-C formula. Specifically, as noted above, the ERIIS GRID-C rate is further adjusted by the Energy Factor, which quantifies the portion of transmission system usage not required for meeting accredited capacity requirements to account for the limited nature of ERIIS, under which the interconnection customer may use the transmission system only on an "as available" basis. We find that SPP has demonstrated that its proposed ERIIS GRID-C charge reasonably reflects the benefits of CPP upgrades to interconnection customers requesting ERIIS by accounting for the limited nature of such service, such that the proposed ERIIS GRID-C charge allocates the costs of CPP upgrades to such interconnection customers in a manner that is at least roughly commensurate with the benefits that they will receive from CPP upgrades. And since SPP has met its burden to demonstrate that its proposal is just and reasonable, we need not consider whether its proposal is "more or less reasonable" than alternatives APA suggests.²⁰⁸

93. We also find that the NRIS GRID-C rate will allocate costs of CPP upgrades to interconnection customers that request NRIS in a manner that is at least roughly commensurate with estimated benefits because it accounts for the costs of only those incremental upgrades in the CPP-20 portfolio needed to enable NRIS deliverability of future NRIS generating facilities. Moreover, under SPP's proposal, if an NRIS generating facility is determined to be a designated resource for load within the resource's deliverability area prior to the commercial operation date, the interconnection customer's NRIS GRID-C charge is eligible for base plan funding (i.e., paid by load)

²⁰⁶ APA Deficiency Response Protest at 9.

²⁰⁷ Deficiency Response at 6-7.

²⁰⁸ *Cities of Bethany v. FERC*, 727 F.2d 1131, 1136 (D.C. Cir. 1984) (finding that, when determining whether a rate was just and reasonable, the Commission properly did not consider "whether a proposed rate schedule is more or less reasonable than alternative rate designs").

subject to the existing requirements of Attachment J, section III.B of the Tariff, further ensuring that costs are allocated in a manner at least roughly commensurate to benefits.

94. SPP also proposes to calculate both subregional and regional ERIS and NRIS GRID-C charges, which is a mechanism that mirrors SPP's existing Highway/Byway cost allocation method by allocating the costs of CPP upgrades based on their voltage level, which the Commission has previously found to be consistent with the cost causation principle because it reflects the benefits that transmission facilities in the SPP region provide.²⁰⁹ Consistent with the Highway/Byway cost allocation method, 100% of the costs of CPP upgrades that are EHV facilities will be allocated on a regional basis through the regional GRID-C charge, while 33% of the costs of CPP upgrades that are HV facilities will be allocated on a regional basis through the regional GRID-C charge and 67% of their costs will be allocated on a subregional basis through the subregional GRID-C charge. As such, we find that SPP's proposed regional and subregional ERIS and NRIS GRID-C charges are just and reasonable and not unduly discriminatory or preferential because they reasonably reflect the benefits that CPP upgrades that are EHV facilities and those that are HV facilities, respectively, will provide to interconnection customers based on the subregion in which an interconnection customer is requesting to interconnect its generating facility.

ii. Directly Assigned Network Upgrade Costs

95. We find that SPP's proposal to directly assign to interconnection customers the cost of interconnection facilities, substation network upgrades at the point of interconnection, and any needed sub-100 kV network upgrades as determined in the ICS process, as well as the cost of any additional network upgrades needed for interconnections at UPILs, is just and reasonable and not unduly discriminatory or preferential and accomplishes the purposes of the Commission's final rules on generator interconnection, including Order Nos. 2003 and 2023, by helping to ensure that interconnection customers are able to interconnect to the transmission system in a

²⁰⁹ *Sw. Power Pool, Inc.*, 131 FERC ¶ 61,252, at PP 73, 94 (2010) (concluding that SPP had demonstrated that EHV facilities tend to support regional power flows among the SPP zones and that lower voltage facilities tend to support local power flows within a single SPP zone), *order on reh'g*, 137 FERC ¶ 61,075 (2011); *Sw. Power Pool, Inc.*, 193 FERC ¶ 61,244 at PP 73-76 (concluding that SPP demonstrated that replacing zonal allocation with a subregional allocation for Byway facilities satisfies the cost causation principle and will allocate costs in a manner that is at least roughly commensurate with the benefits they provide).

reliable, efficient, transparent, and timely manner.²¹⁰ These facilities are neither studied in the CPP-20 transmission assessment nor included in the CPP-20 portfolio costs that are the basis for the GRID-C rates. In other words, these facilities would not be needed “but for” the requested interconnection of the specific interconnection customer to whom the costs will be directly assigned. Accordingly, we evaluate SPP’s proposal to directly assign these interconnection-related costs to interconnection customers by applying our precedent concerning cost assignment for interconnection facilities and interconnection-related network upgrades.

96. As discussed above, under the Commission’s pricing policy for interconnection-related network upgrades adopted in the Order No. 2003 *pro forma* large generator interconnection agreement, the costs of network upgrades that would not be needed but for the interconnection (i.e., “but for” costs) are funded initially by the interconnection customer as construction costs are incurred, unless the transmission provider elects to fund the construction itself, and then reimbursed to the interconnection customer, over time, as credits for transmission service or cash repayments.²¹¹ However, the Commission in Order No. 2003 allowed RTO/ISOs flexibility to propose alternative interconnection pricing mechanisms, subject to Commission approval, under the independent entity variation standard.²¹² Specifically, an RTO/ISO could propose to directly assign network upgrade costs to the interconnection customer where well-defined rights to capacity made available by such network upgrades are provided to the interconnection customer.²¹³ As noted above, the Commission has previously approved the use of participant funding for interconnection-related network upgrades in SPP, with interconnection customers eligible to receive ILTCR as compensation.²¹⁴ Here, SPP proposes to directly assign an interconnection customer’s “but for” costs – namely, the costs of additional network upgrades needed for interconnections at UPILs, and the costs of interconnection facilities and sub-100 kV network upgrades for interconnections at both UPILs and PILs. Accordingly, consistent with the Commission’s prior approval of the use of participant funding for network upgrades in SPP, with interconnection

²¹⁰ Order No. 2003, 104 FERC ¶ 61,103 at PP 26, 827; Order No. 2023, 184 FERC ¶ 61,054 at P 1.

²¹¹ Order No. 2003, 104 FERC ¶ 61,103 at PP 21, 22.

²¹² *Id.* P 698.

²¹³ *Id.* PP 699-700.

²¹⁴ *See supra* P 5.

customers eligible to receive ILTCRs as compensation,²¹⁵ we find that SPP's proposal is just and reasonable and not unduly discriminatory or preferential and accomplishes the purposes of Order No. 2003.²¹⁶

97. We disagree with APA's argument that SPP should directly assign to interconnection customers at UPILs only the costs necessary to raise the benefit-to-cost ratio of the particular network upgrade beyond the minimum 1.0 benefit-to-cost ratio for load.²¹⁷ As discussed above, we find that it is just and reasonable and not unduly discriminatory or preferential for SPP to continue to apply the "but for" principle with respect to: (1) additional network upgrades needed for interconnections at UPILs; and (2) interconnection facilities, substation network upgrades at the point of interconnection, and sub-100 kV network upgrades for interconnections at both UPILs and PILs. Given that these facilities would not be needed "but for" the interconnection customer's interconnection and are not identified through a transmission planning process, we find that it is just and reasonable and not unduly discriminatory or preferential for SPP to directly assign all of their costs to the interconnection customer, consistent with the Commission's approval of participant funding for interconnection-related network upgrades in SPP. As such, we need not consider whether SPP's proposal is "more or less reasonable" than other alternatives.²¹⁸ Moreover, we note that, to the extent that an interconnection-related network upgrade whose costs are directly assigned to one or more interconnection customers is identified in the CPP-10 as providing sufficient benefit to load, the interconnection customer's DAUC may be reduced or eliminated.²¹⁹

²¹⁵ See *Sw. Power Pool, Inc.*, 122 FERC ¶ 61,060 at P 30; *Sw. Power Pool, Inc.*, 152 FERC ¶ 61,034 at P 48.

²¹⁶ We note that SPP's proposed GCP provisions outlining the proportional impact cost allocation approach for assessing additional network upgrade costs to interconnection customers with interconnection requests at UPILs incorporates SPP's existing Order No. 2023-compliant proportional impact cost allocation method. See SPP, Proposed Tariff, attach. AY, § 4 (0.0.0), § 4.2.2 (Cost Allocation for Interconnection Facilities and Network Upgrades); see also *Sw. Power Pool, Inc.*, 191 FERC ¶ 61,230 at P 88.

²¹⁷ APA Deficiency Response at 8-9 (citing Deficiency Response at 25).

²¹⁸ *Cities of Bethany v. FERC*, 727 F.2d at 1136.

²¹⁹ SPP, Proposed Tariff, attach. AY, § V.3 (0.0.0), § V.3.3A.1 (Planned Interconnection Location). See also Deficiency Response at 14-15 (explaining that to determine whether such a network upgrade provides "sufficient benefit to load,"

iii. Reporting

98. While we acknowledge potential concerns about escalating transmission and generator interconnection-related costs, as well as concerns that GRID-C rates could potentially become too high to be commercially viable, generator interconnection cost concerns predate the CPP proposal, and SPP has stated its intention to monitor the CPP to help ensure that costs and benefits remain aligned.²²⁰ We also note that the proposed CPP framework provides transparency and opportunity for stakeholder participation in the transmission planning process. Moreover, we agree with SPP that not only does the CPP proposal include sufficient reporting requirements throughout the CPP-10 and CPP-20 and the SPP Transmission Expansion Plan, but also that any additional reporting may be duplicative.²²¹ For these reasons, we deny requests for further reporting.

3. Generator Connection Procedures

a. SPP Proposal

99. SPP proposes to study CPP interconnection requests under its proposed ICS process contained in the new GCP, which is based on SPP's existing GIP with revisions to reflect the CPP framework.²²² SPP states that the annual ICS process will begin with a 60-day queue cluster window for submission of interconnection requests that will run each year from December 15 to February 15 of the following year.²²³ SPP explains that it will post the GRID-C rates and PILs for the applicable ICS on its website prior to the opening of the queue cluster window, providing interconnection customers with upfront cost certainty and optimal locations to interconnect before interconnection customers

SPP will employ a benefit-to-cost ratio of 1.0 for justifying beneficial upgrades from the production cost simulation).

²²⁰ SPP December 9 Answer at 17; SPP January 29 Answer at 11.

²²¹ SPP December 9 Answer at 6-10.

²²² Transmittal at 27, 67. The GCP will not apply to requests for small generating facilities no larger than 2 MW, generating facility replacement, generating facility modifications for an existing generating facility, surplus interconnection service, and interim interconnection service, which will remain under SPP's GIP. See SPP, Proposed Tariff, attach. AY, § V.2 (Scope and Application of this GCP) (0.0.0), § V.2.1 (Application of Generator Connection Procedures).

²²³ Transmittal at 28; SPP, Proposed Tariff, attach. AY, § V.3 (0.0.0), § V.3.4.1 (ICS Queue Cluster Window). As described further below, the first 60-day queue cluster window will begin after an initial CPP transition period.

submit interconnection requests. SPP explains that interconnection customers must submit all required items including, among other things, a non-refundable \$10,000 application fee, a study deposit, site control demonstration for 100% of the generating facility and 50% of the generating facility tie-line or financial security in lieu of demonstrating site control, and financial security in the amount equal to the greater of 20% of the GRID-C charge or \$8,000/MW of the requested ERIS or NRIS maximum injection capability (Financial Security One).²²⁴ SPP notes that the financial security amount is higher at this stage than under the current DISIS process because, under the CPP, interconnection customers have more cost certainty, which should lessen the need for interconnection customers to submit multiple, speculative interconnection requests.²²⁵ SPP states that the queue cluster window is followed by a 60-day review period, during which an interconnection customer may resolve any deficiencies in its interconnection request.²²⁶ SPP states that it will consider all validated interconnection requests from a single queue cluster window to be equally queued.

100. SPP states that during the 180-day ICS, it will conduct a cluster study of the impacts of the interconnection requests at their requested point of interconnection.²²⁷ During the ICS, SPP will also conduct a facilities analysis to identify the equipment requirements and estimated cost to interconnect a generating facility to the transmission system.²²⁸ The resulting ICS report will identify any DAUC allocated to interconnection

²²⁴ Transmittal at 27-28; SPP, Proposed Tariff, attach. AY, § V.3 (0.0.0), § V.3.1 (Study Deposits), § V.8 (0.0.0), § V.8.2 (Execution of CPP Generator Interconnection Study Agreement).

²²⁵ Transmittal at 29.

²²⁶ *Id.*; SPP, Proposed Tariff, attach. AY, § V.8 (0.0.0), § V.8.3 (ICS Review Period).

²²⁷ SPP states that it may elect not to perform certain studies described in proposed Attachment AY, section V.8.4 if the point of interconnection included in an interconnection request is at a PIL, if those studies were already performed during the CPP-20 transmission assessment identifying the PIL. Transmittal at 29, n.104 (citing SPP, Proposed Tariff, attach. AY, § V.8 (0.0.0), § V.8.4 (ICS Study)).

²²⁸ SPP, Proposed Tariff, attach. AY, § II (0.0.0); *id.*, attach. AY, § V.8 (0.0.0), § V.8.4.4 (Facilities Analysis). The facilities analysis will identify the electrical switching configuration of the connection equipment, including: the transformer, switchgear, meters, and other station equipment; the nature and estimated cost of any transmission owner's interconnection facilities and network upgrades necessary to accomplish the interconnection; and an estimate of the time required to complete the construction and installation of such facilities. Transmittal at 29, n.107.

customers.²²⁹ For interconnection customers with interconnection requests at PILs, the results of the facilities analysis provided with the ICS report will serve as the interconnection facilities study. For interconnection customers with interconnection requests at UPILs, the results of the facilities analysis will be incorporated into the interconnection facilities study, which will be completed after the Decision Point.

101. SPP states that once interconnection customers have received the results of the ICS, they have 20 business days to review the results of the ICS to determine whether to proceed past the Decision Point.²³⁰ SPP explains that interconnection customers can also make non-material modifications to their interconnection requests during this time.²³¹ If an interconnection customer elects to proceed past the Decision Point, they must provide: (1) Financial Security Two, equal to 100% of their GRID-C charge less Financial Security One (GRID FS), plus 20% of the total DAUC allocated to the request (DAUC FS); (2) evidence of site control for 75% of the generating facility tie-line; and (3) evidence of having satisfied at least one of 10 development milestones.²³² SPP states that interconnection customers with interconnection requests at PILs are able to proceed to CPP GIA negotiations after the Decision Point unless a 30-day ICS “refresh” is required due to withdrawals or allowed modifications during the Decision Point. Interconnection requests at UPILs will be assessed to determine whether they require a restudy due to withdrawals of higher- or equally-queued interconnection requests or whether they can continue to the interconnection facilities study to determine the costs and timing of the interconnection facilities and network upgrades needed to

²²⁹ As noted above, SPP explains that although interconnection customers connecting at PILs will generally not be responsible for network upgrade costs beyond their GRID-C charges, they are still responsible for the cost of interconnection facilities, substation upgrades at the point of interconnection, and any sub-100 kV system network upgrades identified in the ICS. Transmittal at 68-69; Raheem Test. at 19; Deficiency Response at 17; SPP, Proposed Tariff, attach. AY, § IV.3 (0.0.0), § IV.3.3.3 (Other Upgrades Not Planned for in the CPP-20 Transmission Portfolio).

²³⁰ Transmittal at 30-31; SPP, Proposed Tariff, attach. AY, § V.8 (0.0.0), § V.8.5.1 (Decision Point). SPP states that the Decision Point deadline can be extended if cost estimates change during the 20 business days. Transmittal at 31, n.110.

²³¹ Transmittal at 31, n.111; Deficiency Response at 19-20; SPP, Proposed Tariff, attach. AY, § V.4 (Interconnection Request Evaluation Process) (0.0.0), § V.4.4.1 (Modifications).

²³² Transmittal 31-32; SPP, Proposed Tariff, attach. AY, § V.8 (0.0.0), § V.8.5.1 (Decision Point); Deficiency Response at 19-20.

accommodate their interconnection, before proceeding to GIA negotiations.²³³ SPP states that the interconnection facilities study will be completed within 60 days of the completion of any ICS restudy, with a cost estimate with a $\pm 20\%$ level of accuracy, and will be followed by a 10-day review period and a final interconnection facilities study report issued within five days after the close of the review period.²³⁴ Interconnection customers with interconnection requests at UPILs will be directly assigned any additional system network upgrade costs based on the proportional impact of each interconnection request, which is the cost allocation method currently used in the existing DISIS process.²³⁵

102. SPP proposes that if an interconnection request is withdrawn after the Decision Point, the interconnection customer forfeits its GRID FS, to be credited to transmission customers.²³⁶ Further, SPP proposes that the interconnection customer will also forfeit any applicable DAUC FS and financial security in lieu of demonstrating site control to the extent that the interconnection customer's withdrawal subjects equally-queued interconnection requests to material timing and cost impacts, unless both of the following conditions exist: (1) the total allocated costs for the withdrawn interconnection request increased by 35% or more from final posted study results at the end of the Decision Point or restudy to the interconnection facilities study; and (2) the allocated cost per MW of requested capacity increased by \$15,000 per MW or more from the end of the Decision Point to the interconnection facilities study. SPP argues that these financial security forfeiture provisions are necessary to ensure that only commercially viable projects continue in the interconnection queue and to recover the GRID-C charge in case of an interconnection customer's withdrawal after the Decision Point but before fulfillment of its GRID-C obligation. SPP contends that these forfeiture requirements are necessary because transmission owners and load are factoring the outcomes of the Decision Point in the CPP-10 transmission assessment. However, SPP states that, if the interconnection request is withdrawn before the effective date of the CPP GIA, the proposed GCP allows for a one-time transfer of the GRID FS from the withdrawn interconnection request to an

²³³ SPP, Proposed Tariff, attach. AY, § V.8 (0.0.0), § V.8.13 (Restudy of Interconnection Facilities Study). SPP states that restudies will take no longer than 60 days from the date of notice, with cost of restudy borne by the interconnection customer. Transmittal at 32.

²³⁴ Transmittal at 33-34; SPP, Proposed Tariff, attach. AY, § V.8 (0.0.0), § V.8.11.c (Interconnection Facilities Study Procedures).

²³⁵ SPP, Proposed Tariff, attach. AY, § V.4 (0.0.0), § V.4.2.2 (Cost Allocation for Interconnection Facilities and Network Upgrades).

²³⁶ Transmittal at 32-33, 73-74; SPP, Proposed Tariff, attach. AY, § V.8 (0.0.0), § V.8.14.c (Financial Security Refund Eligibility).

active interconnection request in a lower-queued ICS cluster within the same deliverability area.²³⁷

103. SPP states that at the end of the Decision Point it will also evaluate any potential available capacity at PILs due to downward modifications or withdrawals, and to the extent any additional capacity is available, SPP may consider requests previously exceeding the PIL's maximum associated MWs.²³⁸ SPP states that an interconnection customer with a capacity request that previously exceeded the planned capacity amounts may be eligible to receive its previously requested level of interconnection service at the PIL if: (1) the interconnection customer did not reduce its capacity request because of the prior over-subscription; and (2) the full capacity amount previously requested by such interconnection customer, and any other customer satisfying the first criterion, is available as a result of the modified or withdrawn request.²³⁹ SPP states that these criteria are necessary to avoid the need for restudies, prevent gamesmanship, and ensure the ICS's overall efficiency. SPP will also determine whether the results of the modified or withdrawn requests alleviate the need for incremental DAUC.

104. Further, SPP proposes to assess withdrawal penalties to interconnection customers that withdraw after the start of the ICS whose withdrawal impacts the timing of any interconnection request in the same cluster, which SPP states is consistent with the requirements of Order No. 2023 and comparable to the withdrawal penalty provision in the Commission's *pro forma* LGIP.²⁴⁰ The proposed withdrawal penalty will be equal to any unused portion of the study deposit plus two times the actual allocated cost of all studies performed for the interconnection customer's interconnection request up until that point in the study process. Additionally, consistent with the requirements of Order No. 2023, SPP proposes to implement study delay penalties should it fail to complete studies by the applicable deadlines, beginning in the third ICS cycle.²⁴¹

²³⁷ Transmittal at 32; SPP, Proposed Tariff, attach. AY, § V.8 (0.0.0), § V.8.14.b (Financial Security Refund Eligibility).

²³⁸ Transmittal at 31; SPP, Proposed Tariff, attach. AY, § V.8 (0.0.0), § V.8.5.1 (Decision Point). *See also supra* P 59.

²³⁹ Deficiency Response at 20.

²⁴⁰ Transmittal at 74-75; SPP, Proposed Tariff, attach. AY, § V.3 (0.0.0), §§ V.3.7.1 (Withdrawal Penalty), V.3.7.2 (Calculation of the Withdrawal Penalty).

²⁴¹ Transmittal at 36-37; Raheem Test. at 36 (citing Order No. 2023, 184 FERC ¶ 61,054 at PP 962-964); SPP, Proposed Tariff, attach. AY, § V.3 (0.0.0), § V.3.9(6) (Penalties for Failure to Meet Study Deadlines).

105. SPP states that the CPP GIA tender, negotiation, execution, and filing process is substantially similar to the current process in the DISIS.²⁴² Further, SPP proposes to include, as attachments to the GCP, *pro forma* study agreements, *pro forma* CPP GIAs, and other *pro forma* agreements that replicate most of the terms and conditions of these existing *pro forma* agreements in Attachment V.²⁴³ SPP explains that the *pro forma* CPP GIAs also determine when payment of the GRID-C components will be due.²⁴⁴ Interconnection customers will make monthly ERIS GRID-C payments beginning 30 days after the effective date of their CPP GIA and terminating 30 days prior to the expected commercial operation date of their generating facilities. Similarly, the NRIS GRID-C charge will be collected as monthly payments, but NRIS GRID-C payments will begin no later than the expected commercial operation date and will be paid over a minimum of 12 months. SPP explains that the reason for the later payment for the NRIS GRID-C is because an interconnection customer's generating facility may become a designated resource, in which case its NRIS GRID-C is eligible to be base plan funded subject to Attachment J, section III.B. Additionally, SPP proposes to include, as an attachment, an ILTCR compensation agreement for CPP interconnection customers.²⁴⁵

106. In addition, SPP explains that CPP interconnection requests will be subject to the same affected system study requirements as under the existing GIP, including being assessed for cost responsibilities under the JTIQ, if applicable.²⁴⁶ SPP also proposes to

²⁴² Transmittal at 34; see SPP, Proposed Tariff, attach. AY, § V.11 (Generator Interconnection Agreement) (0.0.0), § V.11.1 (Tender) (0.0.0).

²⁴³ Transmittal at 101-102; SPP, Proposed Tariff, attach. AY, app. 3 (Consolidated Planning Process Generator Interconnection Study Agreement) (0.0.0); *id.*, app. 6 (CPP Generator Interconnection Agreement (CPP GIA)) (0.0.0); *id.* app. 12 (Consent to Assignment of CPP GIA)) (0.0.0); *id.*, app. 13 (CPP Generator Interconnection Agreement (For use when Western-UGP is a Party to the CPP GIA, as the Transmission Owner)) (0.0.0). SPP similarly proposes to incorporate appendices regarding procedures for wind generating plants and certification codes and standards. SPP, Proposed Tariff, attach. AY, app. 7 (Interconnection Procedures for Wind Generating Plant) (0.0.0); *id.*, app. 9 (Certification Codes and Standards) (0.0.0).

²⁴⁴ Transmittal at 34, 87-88; SPP, Proposed Tariff, attach. AY, § IV.3 (0.0.0), § IV.3.3.5 (Term).

²⁴⁵ Transmittal at 101; SPP, Proposed Tariff, attach. AY, app. 4 (Compensation Agreement for Interconnection Customer with CPP Generator Interconnection Agreement) (0.0.0).

²⁴⁶ Transmittal at 26. The JTIQ framework enables Midcontinent Independent System Operator, Inc. (MISO) and SPP to develop a portfolio of "backbone network

include *pro forma* affected system study agreements and *pro forma* affected system facilities construction agreements for use when SPP is acting as the affected system operator, which largely replicate the *pro forma* affected system study agreements and *pro forma* affected system construction agreements contained in the GIP.²⁴⁷

107. SPP contends that the proposed GCP is just and reasonable and consistent with the purposes of Order Nos. 2003 and 2023.²⁴⁸ SPP argues that while the GCP deviates from some of the requirements of Order No. 2023, it accomplishes the purposes of Order No. 2023 “to ensure that interconnection customers are able to interconnect to the transmission system in a reliable, efficient, transparent, and timely manner.”²⁴⁹ SPP argues that while the proposed ICS timeline contains variations from the Commission’s *pro forma* LGIP, the proposed ICS timelines provide more time for interconnection customers to submit requests while still providing a single annual open window.²⁵⁰ Additionally, SPP states that the stricter commercial readiness and financial security requirements in the proposed GCP reduce the submission of commercially non-viable interconnection requests and discourage late-stage withdrawals.²⁵¹ Lastly, SPP states that the withdrawal penalty structure helps mitigate issues caused by speculative interconnection requests, including study delays and the harm caused by withdrawals from the interconnection queue at various stages of the study process.²⁵² SPP argues that by combining and streamlining the regional transmission planning and generator

upgrades” in both MISO and SPP to facilitate the interconnection of large amounts of generation near the seam between the RTOs to serve load in both regions. *See* JTIQ I, 189 FERC ¶ 61,108 at P 8.

²⁴⁷ SPP, Proposed Tariff, attach. AY, app. 1 (Two-Party Affected System Study Agreement) (0.0.0); *id.*, app. 2 (Multi-Party Affected System Study Agreement) (0.0.0); *id.*, app. 17 (Affected System Facilities Construction Agreement) (0.0.0); *id.*, app. 18 (Multi-Party Affected System Facilities Construction Agreement) (0.0.0).

²⁴⁸ Transmittal at 63.

²⁴⁹ *Id.* at 67 (citing Order No. 2023, 184 FERC ¶ 61,054 at P 37).

²⁵⁰ *Id.* at 70.

²⁵¹ *Id.* at 71-72.

²⁵² *Id.* at 75.

interconnection processes, the CPP addresses the Commission's concerns regarding interconnection queue backlogs and study delays identified in Order No. 2023.²⁵³

108. In its Deficiency Response, SPP agrees to revise its Tariff to correct several drafting errors in the proposed GCP, if directed by the Commission. First, SPP states that proposed language regarding the allocation of system network upgrade costs to interconnection customers at UPILs in Attachment AY, section V.4.2.2(3)(c) should use the plural "Unplanned Interconnection Locations," instead of "the Unplanned Interconnection Location."²⁵⁴ SPP explains that this revision would reflect that, consistent with the cost allocation under SPP's current GIP, interconnection customers at different UPILs in the same cluster cost allocation assessment group may be assessed a portion of the costs of system network upgrades.

109. Second, SPP states that, in proposed Attachment AY, section V.8.5.1, it inadvertently failed to include language providing that, to proceed past the Decision Point, an interconnection customer at a PIL is expected to provide SPP with a written indication of the interconnection customer's intent to withdraw or proceed in the ICS.²⁵⁵

110. Third, SPP states that proposed Attachment AY, section V.8.5.1 outlining the DAUC FS should be revised to state that the DAUC FS is calculated as "Twenty percent (20%) of the total Directly Assigned Upgrade Costs allocated to the Interconnection Request in accordance with Section V.4.2.2 of this Attachment AY" and remove the subsequent clause "less the amount of Financial Security One that was previously provided to enter the ICS."²⁵⁶

111. Finally, SPP states that proposed Attachment AY, section V.8.14(c), which lists the material timing impacts or increased costs to equally-queued interconnection customers that could trigger forfeiture of the DAUC FS and financial security in lieu of demonstrating site control by a withdrawing CPP interconnection customer, should not include the capitalized terms "Affected Systems Study" or "Affected System Network Upgrade."²⁵⁷ SPP explains this provision should instead use non-capitalized terms, as this provision is intended to account for any material timing impacts or increased costs related to SPP interconnection customers' affected system studies conducted by

²⁵³ *Id.* at 67 (citing Order No. 2023, 184 FERC ¶ 61,054 at P 27).

²⁵⁴ Deficiency Response at 16-17.

²⁵⁵ *Id.* at 18-19.

²⁵⁶ *Id.* at 19-20.

²⁵⁷ *Id.* at 22-23.

neighboring transmission providers. Further, SPP states that this proposed language on material timing and cost impacts should apply to lower-queued, as well as equally-queued, interconnection requests consistent with Order No. 2023. While SPP states that it does not anticipate that impacts to lower-queued interconnection customers will be relevant given the proposed single Decision Point framework of the GCP, SPP states that it will revise this provision on compliance if directed by the Commission.

b. Comments and Protests

112. Commenters generally support SPP's proposed GCP. Advanced Energy United, American Clean Power Association, ITC Great Plains, PIOs, and SPP TO Group contend that the proposed GCP provides interconnection customers with greater upfront cost certainty and transparency and allows for a faster interconnection process.²⁵⁸ PIOs argue that the current DISIS framework, in contrast, has imbedded uncertainty and financial risk that incentivizes developers to submit speculative interconnection requests to search for the most cost-effective interconnection locations, thereby increasing the volume of the interconnection requests, leading to cycles of withdrawals and repeated restudies and delays.²⁵⁹

113. ITC Great Plains and PIOs assert that SPP's CPP proposal increases transparency and certainty through use of established PILs that send clear signals to interconnection customers regarding optimal interconnection locations.²⁶⁰ In addition, Advanced Energy United, American Clean Power Association, PIOs, and SPP TO Group contend that adoption of the CPP's proposed cost allocation method allows generation developers to more effectively plan by providing greater upfront transparency regarding network upgrade costs at prospective sites for new generation.²⁶¹ American Clean Power Association and PIOs point specifically to the GRID-C mechanism as a valuable method for providing greater upfront cost certainty and transparency for generation developers and discouraging speculative requests.²⁶²

²⁵⁸ Advanced Energy United Comments at 12-13; American Clean Power Association Comments at 6; ITC Great Plains Comments at 5; PIOs Comments at 4; SPP TO Group Comments at 14.

²⁵⁹ PIOs Comments at 3.

²⁶⁰ ITC Great Plains Comments at 5; PIOs Comments at 5.

²⁶¹ Advanced Energy United Comments at 12-13; American Clean Power Association Comments at 5-6; PIOs Comments at 6; SPP TO Group Comments at 14.

²⁶² American Clean Power Association Comments at 6; PIOs Comments at 6.

114. Advanced Energy United and American Clean Power Association contend that the CPP allows interconnection customers to better anticipate full costs so that they can move forward in the interconnection process with less risk of unexpected network upgrade costs.²⁶³ SPP TO Group asserts that greater transparency will facilitate a speedier interconnection process that enables developers to bring their interconnection requests online more quickly.²⁶⁴ Advanced Energy United and PIOs aver that a better anticipation of full costs and timelines for the interconnection process will also reduce the need for restudies and allows for a more efficient interconnection process.²⁶⁵

115. PIOs and SPP TO Group additionally contend that the reduced number of interconnection requests in SPP will reduce administrative challenges.²⁶⁶ SPP TO Group also asserts that the CPP will reduce administrative overhead costs for generation developers associated with pursuing permitting and acquisition activities at numerous prospective sites.²⁶⁷

116. Advanced Energy United and American Clean Power Association aver that the CPP process avoids upgrade costs becoming contingent on any single interconnection request, which Advanced Energy United argues leads to a high chance of cascading restudies if that interconnection request withdraws.²⁶⁸ Similarly, PIOs assert that upfront cost certainty under the CPP will prevent interconnection customers from holding onto financially risky projects until late stages because it will remove any benefit interconnection customers might gain by waiting on the behavior of other interconnection customers with requests that could change total upgrade costs assigned to a given interconnection customer.²⁶⁹ PIOs contend that, under the CPP proposal, one interconnection customer's actions do not affect the costs assigned to another, and thus there is no advantage to be gamed or gained by late withdrawal.

²⁶³ Advanced Energy United Comments at 12; American Clear Power Association Comments at 6.

²⁶⁴ SPP TO Group Comments at 14.

²⁶⁵ Advanced Energy United Comments at 12; PIOs Comments at 4.

²⁶⁶ PIOs Comments at 6; SPP TO Group Comments at 14.

²⁶⁷ SPP TO Group Comments at 14.

²⁶⁸ Advanced Energy United Comments at 12-13; American Clean Power Association Comments at 6.

²⁶⁹ PIOs Comments at 7 (citing Raheem Test. at 21-22).

117. Advanced Energy United, ITC Great Plains, and PIOs contend that, in addition to greater upfront cost certainty, a single Decision Point with aligned financial requirements gives interconnection customers a clearly defined point to commit to an interconnection location or withdraw, reducing restudies and delay.²⁷⁰ PIOs assert that the multiple decision points in the current DISIS process allow for cycles of withdrawals, restudies, and delays, impeding the timely integration of new resources.²⁷¹ Advanced Energy United argues that a single cluster with a single Decision Point provides for a simplified and consistent interconnection queue.²⁷²

118. Advanced Energy United, American Clean Power Association, and PIOs also contend that the CPP will streamline the administrative study process and expedite the interconnection study timeline from the current expected 12-18 months to approximately 180 days.²⁷³ American Clean Power Association argues that this means that new generating facilities can be built sooner, improving resource adequacy and putting downward pressure on energy prices by getting low-cost generation online faster.²⁷⁴ PIOs assert that this consolidation will reduce administrative burdens, resulting in a faster, more efficient study process that in turn will accelerate the actual integration of new resources onto the SPP transmission system.²⁷⁵

119. Several commenters, including SPP TO Group, Advanced Energy United, and PIOs, contend that SPP's revisions to its generator interconnection process under the CPP are consistent with the Commission's requirements in Order No. 2023.²⁷⁶ SPP TO Group argues that SPP's proposed withdrawal penalty under the CPP, for example, aligns with

²⁷⁰ Advanced Energy United Comments at 12-13; ITC Great Plains Comments at 5; PIOs Comments at 7.

²⁷¹ PIOs Comments at 5.

²⁷² Advanced Energy United Comments at 12-13.

²⁷³ Advanced Energy United Comments at 13; American Clear Power Association Comments at 4-5; PIOs Comments at 7.

²⁷⁴ American Clean Power Association Comments at 4-5.

²⁷⁵ PIOs Comments at 7.

²⁷⁶ Advanced Energy United Comments at 11; PIOs Comments at 18; SPP TO Group Comments at 9.

the goals of Order No. 2023 to disincentivize speculative generation and does not meaningfully deviate from the requirements under Order No. 2023.²⁷⁷

120. PIOs note that while changes made to the DISIS process in the CPP will change certain elements of the existing DISIS process approved under the Order No. 2023 compliance filings, those changes are explicitly designed to further the Commission's objectives in Order No. 2023 to streamline the interconnection study process, reduce timelines and implement study delay penalties, increase financial commitments and commercial readiness requirements, evaluate alternative transmission technologies, and provide developers with upfront cost certainty to reduce speculative requests, in turn reducing withdrawal and restudies.²⁷⁸ PIOs contend that the CPP interconnection process is superior to the minimum requirements established in Order No. 2023.

121. Advanced Energy United contends that the Commission should accept the CPP under the independent entity variation standard from the Commission's *pro forma* LGIP.²⁷⁹ Advanced Energy United asserts that SPP's proposed two-stage financial security framework, which ties financial security amounts to the GRID-C charge plus any DAUC, satisfies the independent entity variation standard because it reduces speculative requests and late-stage withdrawals. Advanced Energy United states that the enhanced financial security requirements are just and reasonable because they balance increased upfront financial commitment with increased upfront cost certainty and transparency, better ensuring that only viable projects enter the queue, and are aligned with the intent in Order No. 2023 to offer interconnection customers more certainty and better access to information to prevent delays.²⁸⁰ Additionally, Advanced Energy United notes that, should SPP fail to meet study timelines, it must pay penalties consistent with Order No. 2023.²⁸¹ Advanced Energy United contends that these timelines and non-compliance penalties will incentivize timely completion, are just and reasonable, and meet the Commission's objectives in Order No. 2023 by ensuring that interconnection customers

²⁷⁷ SPP TO Group Comments at 9 (citing SPP, Proposed Tariff, attach. AY, § V.3 (0.0.0), § V.3.7.1 (Withdrawal Penalty); Order No. 2023, 184 FERC ¶ 61,054 at P 781).

²⁷⁸ PIOs Comments at 16-18.

²⁷⁹ Advanced Energy United Comments at 11 (citing Order No. 2023, 184 FERC ¶ 61,054).

²⁸⁰ *Id.* at 12 (citing Order No. 2023, 184 FERC ¶ 61,054 at P 5).

²⁸¹ *Id.* at 13 (citing Transmittal at 36).

are able to interconnection to the transmission system in a reliable, efficient, transparent, and timely manner.²⁸²

122. Further, Advanced Energy United asserts that the CPP proposal upholds the Commission's open-access principles and is not unduly discriminatory or preferential because it establishes a transparent and uniform framework that applies equally to all interconnection customers, regardless of technology type, ownership structure, or business model.²⁸³

123. Conversely, Savion argues that SPP's proposed requirement that interconnection customers who request to interconnect at UPILs provide the GRID FS payment before receiving their interconnection facilities study results is unjust and unreasonable and unduly discriminatory and preferential.²⁸⁴ Savion explains that interconnection customers with interconnection requests at PILs receive their final interconnection facilities study results as part of the facilities analysis, before the close of the Decision Point and thus before submission of the GRID FS, whereas interconnection customers with interconnection requests at UPILs will not receive their final interconnection facilities study results until after the Decision Point and thus after submission of the GRID FS. Savion asserts that this aspect of SPP's proposed GCP will result in unduly discriminatory treatment of interconnection customers requesting to interconnect at a UPIL, as compared to an interconnection customer requesting to interconnect at a PIL. Savion further asserts that interconnection customers with interconnection requests at PILs that are directly assigned costs of sub-100 kV network upgrades will similarly not know their full interconnection costs until receiving the results of an interconnection facilities study after the Decision Point, creating an unjust and unreasonable process that discriminates *between* interconnection customers with interconnection requests at PILs.²⁸⁵ Savion proposes options for revising the CPP proposal to address this issue, including: (1) allowing interconnection customers with interconnection requests at UPILs to post GRID FS within 20 days after receipt of their interconnection facilities study results; (2) allowing interconnection customers with interconnection requests at UPILs to withdraw and receive a full refund of their GRID FS payment if their total cost allocation increases 20% or more above their allocated amount prior to the study; or (3) requiring interconnection customers with interconnection requests at both PILs and UPILs to post

²⁸² *Id.*

²⁸³ *Id.* at 13-14 (citing Order No. 2023, 184 FERC ¶ 61,054 at P 177).

²⁸⁴ Savion December 8 Protest at 6-7; Savion January 26 Protest at 4-5.

²⁸⁵ Savion January 26 Protest at 11.

their GRID FS after all interconnection customers have received their interconnection facilities study results.²⁸⁶

124. Savion also contends that the proposed generator tie-line site control requirements in the GCP will incentivize interconnection customers to prevent other interconnection customers from accessing PILs. Specifically, Savion asserts that SPP's proposed requirement that interconnection customers must demonstrate 75% site control for the generating facility's tie-line at the Decision Point will create a "perverse incentive" for generation developers to secure all the land around each PIL to prevent other developers from also interconnecting at the PIL.²⁸⁷ Savion asserts that competition for PIL access will become unduly discriminatory or preferential if a single developer buys, leases, or secures easements or other forms of rights-of-way for all the land around a PIL to close out competing generation developers. Savion suggests that the Commission thus require that SPP provide periodic reporting on site control, land access, and PIL access.

125. Savion further contends that certain clarifications provided by SPP do not accord with proposed Tariff provisions.²⁸⁸ First, Savion argues that SPP's statement that, under the CPP proposal, interconnection customers at PILs may be required to pay for system network upgrades at an operating voltage of 100 kV or less conflicts with proposed language in Attachment AY, section V.4.2.2.1 stating that "[n]o DAUC for any System Network Upgrades will be assessed if the Interconnection Customer interconnects its Generating Facility at a [PIL] where the available capacity has not been exceeded."²⁸⁹ Further, Savion asserts that SPP has not explained why an interconnection customer at a PIL would need to provide a written indication of intent to bypass the interconnection facilities study given that proposed Attachment AY, section V.4.2.2.1 states that an interconnection customer at a PIL cannot be assessed DAUC for system network upgrades.²⁹⁰ Savion also argues that the proposed Tariff does not address what would happen if the facilities analysis results in the need for network upgrades with a nominal operating voltage of 100 kV or less for an interconnection customer with an interconnection request at a PIL, which would then need to be studied in an interconnection facilities study subsequent to the Decision Point.

²⁸⁶ Savion December 8 Protest at 8.

²⁸⁷ *Id.* at 11-12.

²⁸⁸ Savion January 26 Protest at 7-10 (citing Deficiency Response at 17-19).

²⁸⁹ *Id.* at 8-9 (citing Deficiency Response at 17-19; SPP, Proposed Tariff, attach AY, § V.4 (0.0.0), § V.4.2.2.1 (GRID Contribution)).

²⁹⁰ *Id.* at 9.

126. Several commenters request that the Commission require SPP to provide reporting on implementation of the interconnection process.²⁹¹ SPP TO Group suggests that SPP should provide periodic reports on transfers of GRID FS to active interconnection requests in subsequent ICS clusters, which the CPP proposal allows for when an interconnection customer withdraws between the Decision Point and the GIA effective date.²⁹² SPP TO Group asserts that periodic information reports on the use of such transfers would prevent gaming and discourage disruptive withdrawals. Similarly, Advanced Energy United states that the Commission may wish to consider requiring updates on CPP implementation to create a public record of its performance by documenting success metrics, such as time to interconnection, queue-length reductions, cost savings, withdrawal rates, and frequency of restudies. Advanced Energy United argues that any measures reported could provide a public record for other regions to follow to improve interconnection queues and fortify the transmission system even if the Commission does little with the reported information.²⁹³

c. Answers

127. In response to SPP TO Group's request for reporting on GRID FS transfers, SPP notes that SPP TO Group does not explain how allowing an interconnection customer to transfer its GRID FS to a future interconnection request, allowed under the proposed GCP, would constitute "gaming" or how periodic informational reports on the use of such transfers would prevent such gaming without exposing the confidential information of interconnection customers taking advantage of this accommodation.²⁹⁴

128. In response to Savion's concerns regarding financial security requirements, SPP argues that its proposed financial security and forfeiture requirements reduce speculative interconnection requests and late-stage withdrawals and ensure that the GRID-C funding will materialize, which is fundamental to the CPP design.²⁹⁵ SPP explains that it is necessary for all interconnection customers to commit to pay the GRID-C charge through the non-refundable GRID FS at the Decision Point in order for SPP to conduct the CPP-10 transmission assessment with any level of certainty. SPP contends that the proposed CPP financial security and forfeiture requirements are not unduly discriminatory or

²⁹¹ Advanced Energy United Comments at 15-16; SPP TO Group Comments at 14-15.

²⁹² SPP TO Group Comments at 14-15.

²⁹³ Advanced Energy United Comments at 15-16.

²⁹⁴ SPP December 9 Answer at 11-12 (citing SPP TO Group Comments at 15).

²⁹⁵ SPP December 18 Answer at 7-9.

preferential because interconnection customers that elect to interconnect at UPILs are not similarly situated to those that elect to interconnect at PILs. SPP contends that interconnection customers that elect to interconnect at UPILs accept the potential risks of greater cost uncertainty. SPP also asserts that an interconnection customer seeking to interconnect at a PIL is electing to interconnect at a location where existing or planned transmission capacity will be sufficient to accommodate new generation and, as a result, it generally will not be responsible for additional network upgrade costs beyond its GRID-C because the transmission system will be able to accommodate its interconnection at that location with existing and planned transmission capacity.²⁹⁶ SPP thus argues that such interconnection customer will cause less transmission expansion costs than an interconnection customer that elects to interconnect at a location where there may not be sufficient transmission capacity to accommodate the interconnection and may require additional upgrades.

129. SPP TO Group similarly disagrees with Savion and argues that it is not unduly discriminatory to provide interconnection customers with interconnection requests at PILs with greater cost certainty relative to interconnection customers with interconnection requests at UPILs because the latter voluntarily choose to interconnect at locations that have not been previously studied and, therefore, bear the burden of their interconnection in the form of additional studies and less upfront cost certainty.²⁹⁷ Further, SPP TO Group argues that, even though total DAUC for interconnection customers with interconnection requests at UPILs are not “absolutely certain” at the time of GRID FS payment, the facilities analysis provides a general idea of DAUC prior to the Decision Point.²⁹⁸ SPP TO Group also highlights that SPP has built flexibility into the CPP proposal for interconnection customers with interconnection requests at UPILs by allowing such interconnection customers the one-time opportunity to transfer their GRID FS for their withdrawn requests to an active interconnection request under certain circumstances.²⁹⁹ SPP TO Group further contends that it is necessary for interconnection customers with interconnection requests at UPILs to pay the GRID FS prior to the end of the Decision Point to confirm their commitment to interconnect, lest SPP risk incentivizing speculative interconnection requests, thereby undermining one of the central purposes of the CPP.³⁰⁰ Finally, SPP TO Group asserts that the Commission

²⁹⁶ *Id.* at 11-12.

²⁹⁷ SPP TO Group December 19 Answer at 11-12 (citing Transmittal at 25; SPP, Proposed Tariff, attach. AY, § IV.1.4).

²⁹⁸ SPP TO Group December 19 Answer at 8.

²⁹⁹ *Id.* at 9-11 (citing Transmittal at 32, 74).

³⁰⁰ SPP TO Group December 19 Answer at 12 (citing Transmittal at 13).

should reject Savion's alternative proposals, which SPP TO Group contends would constitute a major modification to the CPP.³⁰¹

130. Further, SPP argues that Savion's concerns regarding site control requirements are speculative and notes that its existing GIP contains a requirement for interconnection customers to demonstrate 75% site control for the generating facility tie-line at the Decision Point.³⁰² SPP asserts that Savion does not explain why use of PILs would create a "perverse incentive" regarding land acquisition and site control, how periodic reporting would prevent such incentives, or why reporting potentially confidential information would be appropriate. SPP TO Group similarly states that Savion's request is unnecessary and burdensome.³⁰³

131. In addition, SPP rebuts Savion's arguments that the proposed Tariff provisions conflict with SPP's explanation regarding the assignment of DAUC to interconnection customers at PILs for network upgrades with a nominal voltage less than or equal to 100 kV.³⁰⁴ SPP states that, when read together, proposed sections IV.3.3 and V.4.2.2.1 of Attachment AY make clear that interconnection customers with interconnection requests at PILs will generally not be responsible for DAUC associated with system network upgrades *except* for those that are not included in the calculation of the GRID-C rate (i.e., upgrades operating at 100 kV and below).³⁰⁵ In addition, SPP clarifies that for interconnection customers connecting at PILs, network upgrades operating at or below 100 kV will be identified during the facilities analysis, which occurs before the Decision Point, and such customers will not be subject to an interconnection facilities study.³⁰⁶ SPP argues that this addresses Savion's concern that interconnection customers with

³⁰¹ *Id.* at 12-14.

³⁰² SPP December 18 Answer at 15-16 (citing SPP, Tariff, attach. V, § 8 (26.0.0), §§ 8.5.1 (Decision Point One), 8.5.2 (Decision Point Two)).

³⁰³ SPP TO Group December 19 Answer at 2.

³⁰⁴ SPP January 29 Answer at 3-7 (citing Savion January 26 Protest at 7-9).

³⁰⁵ *Id.* at 4-5 (citing SPP, Proposed Tariff, attach. AY, § IV.3 (0.0.0), §§ IV.3.3 (Grid Contribution Structure), IV.3.3.1 (Region-Wide GRID Rate Components), IV.3.3.2 (Subregional GRID Rate Components), and IV.3.3.3 (Other Upgrades Not Planned for in the CPP-20 Transmission Portfolio)).

³⁰⁶ SPP January 29 Answer at 6.

interconnection requests at PILs that are directly assigned the cost of network upgrades at 100 kV or below will be subject to discriminatory treatment.³⁰⁷

132. Finally, SPP argues that the Commission should deny commenters' requests for additional reporting requirements because such requirements are unnecessary, duplicative, and burdensome.³⁰⁸ SPP explains that, pursuant to its proposed Tariff, reporting on generator interconnection will include, among other things: (1) maintenance of quarterly updates and statistics related to processing of interconnection studies on its website, including ICS, ICS restudy, and interconnection facilities studies processing times; (2) statistics on queue withdrawal; and (3) statistics on any penalties assessed to SPP for failure to meet study deadlines.³⁰⁹

d. Commission Determination

133. As noted above, the Commission applies an independent entity variation standard to evaluate RTO/ISO proposals for deviations from the Commission's *pro forma* generator interconnection procedures and *pro forma* interconnection agreements. Under the independent entity variation standard, SPP must demonstrate that its proposed variations are just and reasonable and not unduly discriminatory or preferential and accomplish the purposes of Order No. 2003 and the Commission's subsequent final rules on generator interconnection, including, as relevant here, Order No. 2023.³¹⁰ As

³⁰⁷ *Id.* at 7.

³⁰⁸ SPP December 9 Answer at 6.

³⁰⁹ *Id.* at 9-10 (citing SPP, Proposed Tariff, attach. AY, § V.3 (0.0.0), §§ V.3.5 (OASIS Posting), V.3.5.2 (Requirement to Post Interconnection Study Metrics), V.3.5.2.1 (ICS Process Time), V.3.5.2.2 (ICS Restudies Processing Time), V.3.5.2.3 (Interconnection Facilities Studies Processing Time), V.3.5.2.4 (Interconnection Service Requests Withdrawn from Interconnection Queue), V.3.9 (Penalties for Failure to Meet Study Deadlines)).

³¹⁰ *See, e.g., Sw. Power Pool, Inc.*, 183 FERC ¶ 61,215, at P 30 (2023). SPP proposes to maintain provisions for surplus interconnection service and provisional (termed "interim") interconnection service in its GIP, as required by Order No. 845. *See Reform of Generator Interconnection Procs. & Agreements*, Order No. 845, 163 FERC ¶ 61,043, at PP 438, 477 (2018), *order on reh'g*, Order No. 845-A, 166 FERC ¶ 61,137, *order on reh'g*, Order No. 845-B, 168 FERC ¶ 61,092 (2019). *See also supra* P 99, n.224. *See also* SPP Tariff, attach. V, § 3 (27.0.0), § 3.3 (Utilization of Surplus Interconnection Service), app. 15 (Surplus Interconnection Service Impact Study Agreement), app. 16 (Surplus Interconnection Service Facilities Study Agreement); *id.* § 11A (14.0.0) (Interim Generator Interconnection Agreement (Interim GIA)),

discussed further below, we find that SPP's proposed GCP satisfies the independent entity variation standard because it is just and reasonable and not unduly discriminatory or preferential and accomplishes the purposes of Order Nos. 2003 and 2023 by helping to ensure that interconnection customers are able to interconnect to the transmission system in a reliable, efficient, transparent, and timely manner.³¹¹ We specifically address below two significant aspects of SPP's proposed GCP that deviate from the Commission's *pro forma* LGIP and SPP's existing GIP.

134. First, SPP's proposed GCP deviates in part from the interconnection study timing requirements set forth in Order No. 2023 and reduces the overall timing of the interconnection process compared to its existing DISIS process by: (1) condensing its queue cluster window from 11 months to 2 months; (2) providing a 60-day ICS review period to resolve any deficiencies in interconnection requests; (3) condensing its two-phased DISIS cluster study into a single, 180-day ICS study period with a single Decision Point; (4) using the results of the facilities analysis contained in the ICS study report as the interconnection facilities study results for interconnection customers with interconnection requests at PILs and shortening the interconnection facilities study for interconnection customers with interconnection requests at UPILs to 60 days; and (5) updating, or "refreshing," the ICS study report for interconnection customers with interconnection requests at PILs as well as performing up to one ICS restudy for interconnection customers with interconnection requests at UPILs, if necessary. These provisions, in combination with increased financial security requirements and withdrawal penalties, discussed further below, will create a more streamlined and efficient interconnection study process with reduced potential for restudies and attendant delays. Accordingly, we find that SPP's interconnection study timelines under the CPP accomplish the purposes of Order No. 2023 to ensure an efficient and timely interconnection process.

135. Second, SPP's proposed financial security requirements, based on the interconnection customer's GRID-C charge and DAUC, are higher and more stringent than those required in Order No. 2023, as well as the financial security requirements the

app. 5 (Interim Availability Interconnection System Impact Study Agreement), app. 8 (Interim Generator Interconnection Agreement).

³¹¹ See Order No. 2003, 104 FERC ¶ 61,103 at PP 26, 827; Order No. 2023, 184 FERC ¶ 61,054 at P 1. We note that many of SPP's proposed deviations from the requirements of Order Nos. 2023 and 2023-A in the GCP mirror existing language in SPP's GIP for which SPP was previously granted an independent entity variation in its Order No. 2023 compliance proceeding.

Commission accepted in SPP's Order No. 2023 compliance proceeding.³¹² However, as SPP explains, under the CPP framework, interconnection customers are provided greater upfront cost certainty before entering the ICS. Given this additional certainty, we find that it is just and reasonable to require interconnection customers to provide greater financial security. At the same time, we find that the higher financial security requirements will reduce speculative interconnection requests and help to ensure that only commercially viable interconnection requests enter the interconnection queue. Further, we find that SPP's proposal to make the GRID FS non-refundable for all interconnection customers after the Decision Point is just and reasonable and not unduly discriminatory or preferential because SPP incorporates information about both the interconnection customers and the GRID-C contribution amounts from the Decision Point into the transmission assessment under the CPP-10. Allowing interconnection customers to proceed past the Decision Point without committing to the non-refundable GRID FS would thus undermine SPP's ability to streamline and integrate regional transmission planning and generator interconnection processes in the CPP-10. Therefore, we find that these provisions accomplish the purposes of Order No. 2023 by deterring speculative interconnection requests and late-stage withdrawals. Similarly, we find that SPP's proposed inclusion of a withdrawal penalty under the CPP will further disincentivize late-stage withdrawals.³¹³

136. We disagree with Savion that the proposed financial security requirements are unduly discriminatory toward interconnection customers that request to interconnect at UPILs compared to those at PILs. Rather, we believe SPP has sufficiently explained that, for the CPP to be effective, it is necessary for all interconnection customers – both those seeking to interconnect at PILs and those seeking to interconnect at UPILs – to provide the GRID FS at the Decision Point so that it can conduct the CPP-10 transmission assessment with sufficient certainty. Moreover, interconnection customers seeking to interconnect at UPILs will require additional study after the Decision Point as a result of their choice to seek to interconnect at locations that SPP has not studied through its CPP. By electing to interconnect at a UPIL rather than at a PIL, interconnection customers knowingly and voluntarily forego greater cost certainty in exchange for greater flexibility in their point of interconnection or requested maximum interconnection capacity. As such, we find that interconnection customers seeking to interconnect at UPILs are not

³¹² Order No. 2023, 184 FERC ¶ 61,054 at PP 691-693; *see also pro forma LGIP*, §§ 1, 3.4.2, 7.5, 8.1, 11.3.; *see also Sw. Power Pool, Inc.*, 191 FERC ¶ 61,230, at P 119 (2025); *see also* SPP, Tariff, attach. V, § 8 (19.0.2), §§ 8.2 (Execution of Generator Interconnection Study Agreement), 8.5.1 (Decision Point One), 8.5.2 (Decision Point Two).

³¹³ Order No. 2023, 184 FERC ¶ 61,054 at P 781; *see also pro forma LGIP* § 3.7.1.

similarly situated to those seeking to interconnect at PILs, and therefore that requiring interconnection customers at UPILs to provide the GRID FS at the Decision Point despite having comparatively less certainty about their ultimate cost responsibility than interconnection customers at PILs is not unduly discriminatory.

137. We also disagree with Savion that SPP's proposed financial security requirements unduly discriminate against those interconnection customers with interconnection requests at PILs that are assigned DAUC for interconnection-related network upgrades at a nominal operating voltage of 100 kV or below. We find this argument unpersuasive because, as SPP states, Savion misunderstands SPP's proposal. As SPP explains, for interconnection customers interconnecting at PILs, any necessary interconnection-related network upgrades at a nominal operating voltage of 100 kV or below will be identified during the facilities analysis, prior to the Decision Point, and will not be subject to an additional interconnection facilities study.³¹⁴ Therefore, these interconnection customers will not be treated any differently than interconnection customers interconnecting at PILs whose interconnection requests do not require any necessary interconnection-related network upgrades at a nominal operating voltage of 100 kV or below and, similarly, will not be subject to an additional interconnection facilities study.

138. However, we agree with Savion that proposed Attachment AY, section V.4.2.2.1 does not reflect that, under the CPP, interconnection customers at PILs may be assigned DAUC for needed network upgrades with a nominal operating voltage of 100 kV or below.³¹⁵ Despite SPP's contention that proposed Attachment AY, sections V.4.2.2.1 and IV.3,³¹⁶ when read together, reflect that interconnection customers with interconnection requests at PILs may be assigned DAUC for needed network upgrades with a nominal operating voltage of 100 kV or below,³¹⁷ we find that the proposed language in section V.4.2.2.1 may create confusion because it explicitly states that "[n]o DAUC for any System Network Upgrades will be assessed if the Interconnection Customer interconnects its generating facility at a [PIL] where the available capacity has not been exceeded." Therefore, we direct SPP to submit, within 30 days of the date of

³¹⁴ SPP January 29 Answer at 5-7.

³¹⁵ Savion January 26 Protest at 7-9.

³¹⁶ SPP January 29 Answer at 3-4. Proposed Attachment AY, section IV.3.3.3 provides that network upgrades driven solely by interconnection customer needs may be subject to direct assignment of costs, including "Interconnection Facilities and Network Upgrades with a nominal operating voltage level less than or equal to 100 kV." SPP, Proposed Tariff, attach. AY, § IV.3 (0.0.0), § IV.3.3.3 (Other Upgrades Not Planned for in the CPP-20 Transmission Portfolio).

³¹⁷ SPP January 29 Answer at 4.

this order, a further compliance filing to revise Attachment AY, section V.4.2.2.1 of its Tariff to clarify that interconnection customers with interconnection requests at PILs may be assigned DAUC for needed network upgrades with a nominal operating voltage of 100 kV or below, consistent with SPP's explanation in its Deficiency Response and January 29 Answer.³¹⁸

139. We disagree with Savion that the requirement for interconnection customers to demonstrate 75% site control for the generating facility tie-line at the Decision Point will create a "perverse incentive" for generation developers to secure land around each PIL to close out competition. Further, we believe that Savion's concern is speculative and is sufficiently mitigated by the fact that SPP anticipates identifying hundreds of PILs.³¹⁹ We note that this site control requirement currently exists in SPP's GIP and find that this requirement remains just and reasonable as applied to the proposed GCP.³²⁰ Specifically, we find that the requirement helps ensure that interconnection customers that elect to proceed beyond the Decision Point are not speculative and have acquired appropriate site control.

140. We deny commenters' requests for further reporting requirements. While we acknowledge the importance of transparency in interconnection study processes, the Commission requires posting of certain statistics related to the timing and processing of interconnection studies as well as reporting on delays, which are reflected in SPP's existing GIP as well as its proposed GCP.³²¹ We agree with SPP that the CPP proposal includes ample reporting requirements via interconnection study metrics reporting, penalty summary statistics, and other data, and that additional reporting may be burdensome and duplicative.³²²

141. Further, we recognize SPP's commitment in its Deficiency Response to correct on compliance several errors in proposed Attachment AY, section V by: (1) replacing

³¹⁸ Deficiency Response at 17; SPP January 29 Answer at 3-4.

³¹⁹ Transmittal at 26; Raheem Test. at 19 (explaining that the CPP transition study has identified over 680 potential PILs that could accommodate upwards of 250 GWs of new interconnection requests).

³²⁰ SPP Tariff, attach. V, § 8 (26.0.0), § 8.5.2 (Decision Point Two).

³²¹ Order No. 845, 163 FERC ¶ 61,043 at P 305. *See* SPP, Tariff, attach. V, § 3 (Interconnection Requests) (27.0.0), § 3.5.2 (Requirement to Post Interconnection Study Metrics); SPP, Proposed Tariff, attach. AY, § V.3 (0.0.0), §§ V.3.5.2 (Requirement to Post Interconnection Study Metrics).

³²² SPP December 9 Answer at 6-10.

certain references to a single UPIL with references to multiple UPILs in Attachment AY, section V.4.2.2(3)(c) to clarify that interconnection customers with interconnection requests at different UPILs in the same cluster cost allocation assessment group may be assessed a portion of the costs of system network upgrades; (2) adding Tariff language providing that, to proceed past the Decision Point, an interconnection customer with an interconnection request at a PIL is expected to provide SPP with a written indication of the interconnection customer's intent to withdraw or proceed in the ICS; (3) removing the clause "less the amount of Financial Security One" in Attachment AY, section V.8.5.1, such that the sentence will read "DAUC FS: Twenty percent (20%) of the total Directly Assigned Upgrade Costs allocated to the Interconnection Request in accordance with Section V.4.2.2 of this Attachment AY;" and (4) replacing the capitalized terms "Affected Systems Study" and "Affected System Network Upgrade" with non-capitalized terms in Attachment AY, section V.8.14(c).³²³ We find that these revisions will help clarify the GCP. Accordingly, we direct SPP to submit, within 30 days of the date of this order, a further compliance filing to revise Attachment AY to make these corrections. However, we decline to require SPP to revise the financial security forfeiture provisions in Attachment AY, section V.8.14(c) to apply to impacts to lower-queued, in addition to equally-queued, interconnection requests given SPP's explanation that it does not anticipate impacts to lower-queued interconnection requests, as the ICS framework uses a single Decision Point and provides for limited restudy.³²⁴

142. In addition, we direct SPP to further clarify when it will post GRID-C rates. As noted above, SPP states that posting GRID-C rates and PILs for the applicable ICS prior to the opening of the queue cluster window will provide interconnection customers with upfront cost certainty and optimal locations to interconnect before interconnection customers submit their interconnection requests.³²⁵ Proposed Attachment AY, section V.4.2.2.1 reflects this timing requirement for the GRID-C posting.³²⁶ However, proposed Attachment AY, section IV.3.3 states that GRID-C rates are set "before the closing of" the queue cluster window to which they apply.³²⁷ Accordingly, we direct SPP to submit, within 30 days of the date of this order, a further compliance filing to revise Attachment

³²³ See *supra* PP 108-111; see also Deficiency Response at 16-23.

³²⁴ Deficiency Response at 23.

³²⁵ See *supra* P 99; see also Transmittal at 28, 95.

³²⁶ SPP, Proposed Tariff, attach. AY, § V.4 (0.0.0), § V.4.2.2.1 (Grid Contribution) ("The calculation method for the GRID Contribution is detailed in Section IV.3 of this Attachment AY of the Tariff and the results shall be posted *prior to the opening* of the annual ICS Queue Cluster Window." Emphasis added).

³²⁷ *Id.*, attach. AY, § IV.3 (0.0.0), IV.3.3 (Grid Contribution Structure).

AY, section IV.3.3 to require that, consistent with Attachment AY, section V.4.2.2.1, SPP will post GRID-C rates prior to the opening of the relevant ICS queue cluster window.

4. Transition

a. SPP Proposal

143. SPP proposes a transition period for implementing the Transmission Assessment Procedures under the CPP.³²⁸ SPP states that the first CPP planning cycle will be limited to two years, with CPP-10 transmission assessments performed in each year and no initial CPP-20 transmission assessment. SPP explains that the initial GRID-C rates will be calculated, and initial PILs identified, in a CPP “transition study” to be completed by SPP prior to the first CPP planning cycle and posted on SPP’s website.³²⁹ SPP explains that the purpose of the transition study is to align technical assumptions between the previous ITP Assessment processes, the 20-Year Assessment, and the new CPP. SPP states that it has already commenced the transition study as part of its current 20-Year Assessment process, which is expected to be completed by the end of 2026, to enable work to begin on GRID-C rate and PIL identification in an expedited manner.

144. SPP states that, assuming a March 1, 2026 effective date for the proposed Tariff provisions in this filing, SPP anticipates commencing the first CPP planning cycle on March 1, 2026, and concluding the first CPP-10 in 2028, with the initial ICS queue cluster window opening 30 days after the requested effective date (i.e., April 1, 2026), and closing 60 days after the date that SPP posts the initial GRID-C rate.³³⁰ SPP states that it expects to post the initial GRID-C rate by the end of 2026. However, SPP explains that, under the proposed transition procedures, if a DISIS queue cluster window has commenced prior to the effective date of the Tariff provisions in the instant filing, and the DISIS queue cluster window has not yet closed, all interconnection customers with requests in that DISIS queue cluster window may either transition their requests to the

³²⁸ Transmittal at 40; SPP, Proposed Tariff, attach. AY, § IV.1 (0.0.0), § IV.1.13 (Transition from ITP Assessment to CPP).

³²⁹ Transmittal at 40; SPP, Proposed Tariff, attach. AY, § IV.3 (0.0.0), § IV.3.9 (Initial GRID Contribution).

³³⁰ Transmittal at 40; SPP, Proposed Tariff, attach. AY, § V.5 (Transition to GCP Procedures) (0.0.0). Under the proposed transition provisions, SPP may extend the initial queue cluster window for the ICS by 60 days beyond its originally scheduled closure date. Transmittal at 40 (citing SPP, Proposed Tariff, attach. AY, § V.5 (0.0.0), § V.5.1.2 (Current Open Cluster Windows)).

ICS or withdraw from the DISIS interconnection process without any forfeiture of study deposits or financial securities.³³¹

b. Comments and Protests

145. APA asserts that the CPP transition and transition study may result in a portfolio that far exceeds the cost estimates used in vetting the CPP GRID-C formula in the stakeholder process without any additional generation being added to the study.³³² Specifically, APA asserts that the CPP transition study has deviated from what stakeholders approved by deferring some 765 kV transmission projects, potentially exceeding \$30 billion in costs, that were identified in the ITP 2025 to the CPP transition. APA argues that these 765 kV transmission projects will increase initial GRID-C rates without providing corresponding benefits. APA requests that SPP commit to explore means of addressing unintended consequences of the transition study and its impacts on the GRID-C rate.³³³ APA additionally requests that SPP continue to identify reliability and cost effectiveness benefits after the transition study, develop a mechanism to track GRID-C payments, and measure benefits to those paying the GRID-C charge to ensure that interconnection customers continue to receive benefits.³³⁴

146. Further, APA argues that as SPP transitions from the ITP and DISIS frameworks to the CPP, existing interconnection customers in either the DISIS or the Expedited Resource Adequacy Study (ERAS)³³⁵ queues may interconnect at some planned PILs prior to the CPP start and, thus, be able to access the PILs without paying GRID-C charges.³³⁶ Thus, APA argues that CPP interconnection customers will pay GRID-C rates based on an assumed transmission capacity that will, in reality, be lower due to interconnection customers in the ERAS and 2024 DISIS.³³⁷ APA contends that either the

³³¹ Transmittal at 41; SPP, Proposed Tariff, attach. AY, § V.5 (0.0.0), § V.5.1.2 (Current Open Cluster Windows). SPP states that the next DISIS queue cluster window would open the earlier of April 1, 2026, or the completion of Decision Point Two for the DISIS-2024 interconnection cluster.

³³² APA Protest at 7-8; APA Deficiency Response Protest at 5-6.

³³³ APA Deficiency Response Protest at 7.

³³⁴ *Id.* at 7-8.

³³⁵ SPP, Tariff, attach. AW (ERAS Procedures) (0.0.0).

³³⁶ APA Protest at 8; APA Deficiency Response Protest at 5.

³³⁷ APA Deficiency Response Protest at 5.

GRID-C rates should be adjusted to account for the PILs “taken” by interconnection customers that are not subject to the GRID-C charge, or SPP should be required to update the sites that are no longer available and ensure that the costs of the CPP upgrades needed to facilitate those PILs are not passed on to CPP interconnection customers.³³⁸ As discussed above, APA urges the Commission to require SPP to periodically report on how transition costs will be managed, segmented, and allocated by providing compliance reports for the first two CPP cycles.³³⁹

147. PIOs similarly note that challenges in the CPP transition study include establishing an initial set of PILs that remain unaffected by the parallel interconnection studies currently underway in SPP and ensuring that the initial GRID-C rate does not exceed commercial viability thresholds.³⁴⁰ PIOs urge the Commission to accept the CPP proposal but also to “exert heightened oversight during the transitionary period and direct SPP to implement robust safeguards to ensure that it is as efficient and successful as possible.”³⁴¹

c. Answers

148. SPP argues that concerns that the recent deferrals of potential transmission upgrades from the ITP 2025 will increase GRID-C rates for the first CPP cycle are speculative.³⁴² Further, SPP argues that APA does not explain why the costs of 765 kV transmission projects that will benefit interconnection customers in addition to load should not be included in the GRID-C rate. SPP also notes that it has implemented protections to ensure that certain pre-existing issues are not reflected in the GRID-C rate, such as the stability-related upgrades necessary to accommodate ERAS interconnection requests, which were deferred to the ITP. Further, SPP emphasizes that the transition study process provides ample transparency and allows for robust stakeholder involvement in both designing the study scope and identifying potential solutions. In addition, as noted above, SPP also states that, consistent with its cost allocation reporting practices, it intends to monitor on an ongoing basis the CPP and its benefits to both load and generation to help ensure that benefits remain reasonably commensurate with allocated

³³⁸ APA Protest at 8; APA Deficiency Response Protest at 5.

³³⁹ See *supra* P 85; APA Protest at 8.

³⁴⁰ PIOs Deficiency Response Comments at 2.

³⁴¹ *Id.* at 1-3.

³⁴² SPP December 9 Answer at 16 (citing APA Protest at 8); SPP January 29 Answer at 9-10.

costs.³⁴³ SPP notes that stakeholders will have the opportunity to work with SPP to develop a detailed and transparent methodology for identifying generator benefits under the CPP, including the transition phase, for incorporation into the CPP Manual.

149. SPP also disagrees with commenters' concerns that interconnection customers in SPP's ERAS or 2024 DISIS process will "take away" benefits to interconnection customers by interconnecting at PILs.³⁴⁴ SPP argues that such criticisms are speculative and unavailing, as the initial PILs will be based on the results of the CPP transition study and, thus, have not yet been determined, and the transition study process provides for stakeholder participation. SPP further argues that commenters do not explain or provide any evidence to support how the ERAS or DISIS interconnection processes have or will "take away" PILs that have yet to be identified.

d. Commission Determination

150. We find that SPP's proposed process to transition from its existing transmission planning and generator interconnection processes to the CPP is just and reasonable and not unduly discriminatory or preferential. As SPP explains, the CPP transition study will align the existing ITP Assessment processes and the existing 20-Year Assessment with the new CPP and identify initial GRID-C rates and PILs. Furthermore, while interconnection customers participating in the initial ICS will not receive information on GRID-C rates prior to the commencement of the queue cluster window, as they would under the regular CPP process, SPP will post GRID-C rates at least 60 days in advance of the close of the queue cluster window, allowing time for interconnection customers to incorporate this information into their decision-making.

151. In response to APA's concerns about the potential inclusion of certain deferred and new 765 kV network upgrades in the CPP transition study,³⁴⁵ we note that SPP will evaluate the benefits and cost effectiveness of transmission projects prior to selection under the CPP-20 transmission assessment process, and SPP intends to monitor on an ongoing basis to help ensure that benefits remain reasonably commensurate with allocated costs.³⁴⁶ Further, as SPP explains, the inclusion of specific transmission facilities in the transition study is speculative, and the transition study process provides for transparency and stakeholder participation in scope development and solution

³⁴³ SPP January 29 Answer at 11.

³⁴⁴ *Id.* at 9-10 (citing APA Deficiency Response Protest at 5; PIOs Deficiency Response Comments at 2).

³⁴⁵ APA Protest at 7-8; APA Deficiency Response Protest at 4-5.

³⁴⁶ SPP January 29 Answer at 9-11.

identification.³⁴⁷ SPP also explains that stakeholders will have the opportunity to work with SPP to develop a detailed method that will identify generator benefits under the CPP, including the transition phase, for incorporation into the CPP Manual. Additionally, as noted above, the CPP proposal includes reporting on the outcome of all transmission assessments.

152. In addition, regarding concerns that interconnection customers in SPP's existing DISIS processes may request to interconnect at PILs identified in the transition study prior to the start of the CPP, we find that such concerns are speculative because SPP explains that the transition study has not yet determined an initial set of PILs. Further, those existing interconnection customers already have established queue positions for their interconnection requests, while potential CPP interconnection customers do not yet have established queue positions for their interconnection requests. Thus, the fact that some existing interconnection customers in SPP's ERAS and DISIS queues may interconnect at a certain location before CPP interconnection customers is a natural consequence of the Commission's longstanding queue priority requirements. Further, in any event, we note that interconnection customers in SPP's existing interconnection queues will pay the "but for" cost of the interconnection facilities and network upgrades necessary to enable their interconnection pursuant to the Tariff. As such, these interconnection customers do not rely on CPP upgrades to enable interconnection to the SPP transmission system.

The Commission orders:

(A) SPP's proposal is hereby accepted, effective March 1, 2026, as requested, as discussed in the body of this order.

(B) SPP is hereby directed to submit a compliance filing within 30 days of the date of this order, as discussed in the body of this order.

By the Commission. Commissioner Rosner is concurring with a separate statement attached.

Commissioner Chang is concurring with a separate statement attached.

(S E A L)

Debbie-Anne A. Reese,
Secretary.

³⁴⁷ SPP December 9 Answer at 16.

Appendix – Tariff Records

Southwest Power Pool, Inc.
Open Access Transmission Tariff, Sixth Revised Volume No. 1

Docket No. ER26-414-000

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Docket No. ER26-414-001

- [Attachment AY, Attachment AY Consolidated Planning Process \(0.1.0\)](#)

UNITED STATES OF AMERICA
FEDERAL ENERGY REGULATORY COMMISSION

Southwest Power Pool, Inc.

Docket Nos. ER26-414-000
 ER26-414-001

(Issued March 13, 2026)

ROSNER, Commissioner, *concurring*:

1. Today the Commission approves the Southwest Power Pool’s (SPP) Consolidated Planning Process (CPP), marking a major step forward for improved speed and efficiency in generator interconnection and transmission planning that promises to deliver the electrons our country so badly needs. Faced with electric demand growth at levels not seen in 25 years,¹ SPP and its stakeholders have risen to the occasion with one of the most innovative, common-sense proposals presented to the Commission since the inception of open access transmission service. This proposal will get transmission built *smarter* and connect new generation *faster*, helping to make energy more reliable and affordable in the SPP region. And it has done so with the unanimous support of both its member states and stakeholders.

2. CPP delivers these benefits by eliminating the silos between the transmission planning process and the generator interconnection process, synthesizing and streamlining them into one recurring three-year planning cycle. These two processes are inextricably linked: generators need transmission to sell the electricity they produce, and transmission companies build the grid and sell the transmission services that generators depend on to get their power to customers. CPP recognizes that generation and load share one transmission system, and plans for both of their needs holistically. As a result, SPP can reduce interconnection study costs by millions of dollars, potentially avoid over \$100 million in duplicative transmission costs every planning cycle,² and at the same time deliver some of the shortest generator interconnection timelines in the country.

¹ Press Release, EIA, EIA Forecasts Strongest Four-Year Growth in U.S. Electricity Demand Since 2000, Fueled by Data Centers (Jan. 13, 2026), <https://www.eia.gov/pressroom/releases/press582.php>.

² Press Release, SPP, SPP Consolidated Planning Process to Reduce Costs and Help Meet Nation’s Growing Energy Needs (Aug. 5, 2025), <https://www.spp.org/news-list/spp-consolidated-planning-process-to-reduce-costs-and-help-meet-nation-s-growing-energy-needs/>.

3. Understanding how CPP delivers these benefits requires that we review the status quo planning process in a typical region (*see Figure titled “Status Quo Transmission Planning”*). First, the grid operator plans the new transmission lines needed to keep the grid reliable and economically efficient given demand forecasted over the next ten to twenty years. Although planning processes include forecasted *demand*, by design, they typically only reflect generators that have completed the interconnection process and don’t always identify the transmission upgrades needed to integrate future, forecasted *generation* growth. Instead, there is a separate generator interconnection study process that identifies only the incremental grid upgrades needed to integrate each individual power plant, often resulting in studying and restudying what is needed until all prospective generators are willing to accept the cost of the transmission upgrades they need to get their individual facilities online. Because the costs of incremental transmission upgrades are unknown until the generator interconnection process is complete, over 70% of generators end up dropping out of the queues.³ And because so many generators drop out, interconnection studies and cost estimates frequently become stale, and the grid operator has to run study after study to reevaluate what transmission will be needed, dragging out the process for three to six years.⁴ As a result, it takes too long and costs too much to get a generator connected, ultimately making energy *more* expensive and *less* reliable for customers.

4. Enter CPP. Unlike the status quo, CPP begins with a holistic plan that identifies the new transmission lines needed to meet forecasted demand *and* forecasted generation over the next 20 years (*see Figure titled “Consolidated Planning Process (CPP)”*). Importantly, the CPP will identify planned interconnection locations (PILs), which are places on the grid with existing or planned transmission capacity available for new generators to connect to. In other words, CPP signals to generators on the front end—rather than years later—where they should interconnect to minimize costs and maximize benefits to the entire grid. SPP will then annually run a second pass of its transmission planning cycle that looks 10 years forward and allows generators to secure their spots if they want to interconnect to a PIL. Generators are required to pay their fair share into the transmission planning pot via a one-time, per-MW, upfront entry fee—the “GRID-C” charge. No power plant can obtain financing when the transmission costs are either unknown or subject to significant revision based on “that next study.” CPP solves that conundrum.

5. Critically, SPP publishes the GRID-C charge *before* interconnection requests are submitted annually. For the first time, SPP’s interconnection customers can know what

³ J. Rand et al., *Queued Up: 2025 Edition*, Lawrence Berkeley National Laboratory, at 31 (2025), https://eta-publications.lbl.gov/sites/default/files/2025-12/queued_up_2025_edition_12.15.2025.pdf.

⁴ *Id.* at 40.

they will pay to connect to the grid *before entering the interconnection queue*, turning the page on never-ending studies, restudies, and cost uncertainty that ultimately lead to generators withdrawing. Frankly, this shift is more than an evolution, it's a revolution. It enables a series of other reforms in SPP's new Interconnection Cluster Study (ICS), including: a higher up-front entry fee, one single Decision Point for generators to withdraw or move forward (instead of three today), shorter restudy times, and ultimately, an interconnection agreement within 9-10 months from the close of the application window. This timeline is *more than 65% faster* than the average interconnection waitlist across the country, because SPP is doing a comprehensive system analysis *before* fielding interconnection requests, offering generators certainty and reducing speculation - in exchange for paying fixed fees up front and allowing fewer opportunities for generators to withdraw. The record overwhelmingly illustrates that this is a trade all stakeholders are happy to make.

6. It is also important to note that the CPP-20 study is exactly the type of smart, efficient long-term transmission planning that the Commission intended when we developed Order No. 1920.⁵ Assessing transmission needs holistically and proactively will help SPP build the backbone grid infrastructure needed to bring new power and customers online in a way that maximizes benefits and minimizes costs for consumers.

7. Further, none of CPP's accelerated study processes could be achieved without modern, automated engineering study processes that leverage cutting-edge software. I have repeatedly emphasized the crucial importance of automating interconnection studies so we can connect new generation to the grid faster.⁶ It is truly exciting that CPP will take another leap forward by automating long-term transmission planning *along with* interconnection studies.

8. In sum, CPP represents the innovation that America needs to facilitate cost-effective transmission buildout and generator interconnection, reduce costs, and enhance system reliability. Today's order is a step toward building a grid that can win the AI race, bring back American manufacturing, and deliver the abundant, reliable, and

⁵ *Bld'g for the Future Through Elec. Reg'l Transmission Planning & Cost Allocation*, Order No. 1920, 187 FERC ¶ 61,068, at PP 1625-48, *order on reh'g & clarification*, Order No. 1920-A, 189 FERC ¶ 61,126 (2024), *order on reh'g & clarification*, Order No. 1920-B, 191 FERC ¶ 61,026 (2025).

⁶ See David Rosner, Comm'r., Letters to ISOs/RTOs Regarding Interconnection Automation (Mar. 17, 2025), <https://www.ferc.gov/news-events/news/commissioner-rosners-letters-isosrtos-regarding-interconnection-automation>; see also David Rosner, Written Testimony of David Rosner, Commissioner, Federal Energy Regulatory Commission (United States House of Representatives Subcommittee on Energy, Feb. 3, 2026).

affordable energy we need. I strongly encourage other transmission providers to take note of the innovative approach the CPP promises, and to consider developing similar integrated solutions tailored to meet the pressing needs within their own footprints.

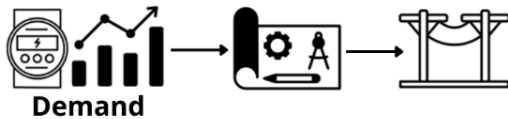
For these reasons, I respectfully concur.

David Rosner
Commissioner

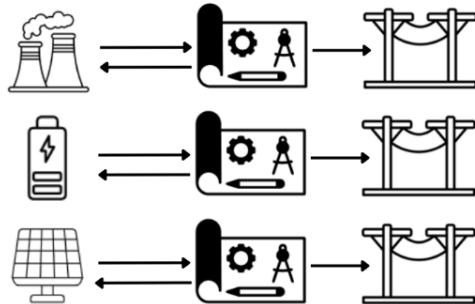
Figures

Status Quo Transmission Planning

Plan Transmission for Demand Growth



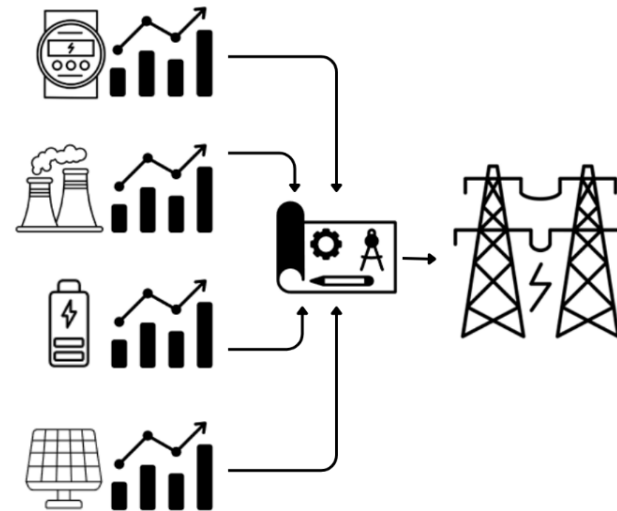
Plan Generator Grid Connections Separately through Interconnection Queue



- Grid planning for forecasted load growth
- Separate, piecemeal generator connections
- Interconnection process takes 3-6 years
- Uncertainty → 70% of developers abandon

Consolidated Planning Process (CPP)

Plan Transmission for Demand Growth *and* Forecasted Generator Additions



- Plan for *both* forecasted load & generation
- Generators can connect for flat, upfront fee
- Interconnection process takes under 1 year
- Developers receive cost & timing certainty



FEDERAL ENERGY REGULATORY COMMISSION
Office of Commissioner Rosner

UNITED STATES OF AMERICA
FEDERAL ENERGY REGULATORY COMMISSION

Southwest Power Pool, Inc.	Docket Nos.	ER26-414-000 ER26-414-001
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(Issued March 13, 2026)

CHANG, Commissioner, *concurring*:

1. Today's order approves SPP's Consolidated Planning Process, a proposal grounded in a recognition of the integrated nature of the transmission planning and generator interconnection processes. I write separately to commend SPP on taking a bold step to address the needs of its system and to encourage other regional transmission operators (RTOs) and independent system operators (ISOs) to explore comparable reforms.
2. Currently, the adequacy of the nation's transmission system is being tested. Rapid and accelerating load growth, backlogged interconnection queues, and limited regional and interregional transmission capabilities are among the challenges exacerbating reliability concerns and raising electricity bills for consumers. We cannot meet these challenges without effective and efficient buildout of the transmission system. SPP's proposal recognizes that transmission planning and generator interconnection processes search for the same solution: ensuring that the transmission system reliably delivers affordable power to consumers.
3. I have written about the need to integrate the generator interconnection process with transmission planning¹ and am glad to see that SPP is taking the first step down this path with the CPP proposal. The single biggest bottleneck to getting needed new generation online to serve the dramatic increase in load growth is the interconnection process. The Commission and many of the nation's transmission providers have been working to improve that process² but it will take actions like the one that SPP has taken

¹ Judy Chang, et. al., *It's All One System: Integrate Transmission and Interconnection Planning to Support Load Growth*, Utility Dive (Sept. 26, 2025) <https://www.utilitydive.com/news/its-all-one-system-integrate-transmission-and-interconnection-planning-Judy-Chang/761240/>.

² See, e.g., *Improvements to Generator Interconnection Procs. & Agreements*, Order No. 2023, 184 FERC ¶ 61,054, at P 814, *order on reh'g*, 185 FERC ¶ 61,063

here to redesign how the transmission system is planned and paid for to truly accommodate the needed new generation to serve load.

4. SPP's CPP proposal addresses the core issue that has been delaying the interconnection of new generation: transmission upgrade cost uncertainties. Currently, interconnection customers must make difficult financial choices at many points in the interconnection process. They face requirements to submit large, non-refundable deposits, subjecting themselves to significant withdrawal penalties without sufficient confidence regarding their network upgrade cost exposure. As we have seen in multiple examples over the years, generators may not find out that they must pay for expensive network upgrades until late stages in the interconnection process.³ These cost assignments can significantly reduce the financial viability of some generation projects, resulting in their withdrawal from the queue, which in turn can cause time-consuming restudies of the other generators in the queue, adding even greater uncertainties. We have already witnessed cascading restudies and delays that undermine our ability to get needed generation online.

5. SPP addresses this issue by redesigning a component of its interconnection process: how cost assignments are provided to interconnecting generators. SPP's proposal advances its transmission planning process and applies the Commission's cost causation principle to determine the transmission upgrade costs and make them available to the generators that would like to interconnect at certain pre-identified locations on the SPP system. The cost information is available to generators so that they can make their location and financing decisions before entering the interconnection queue, which should streamline and significantly increase the pace of the buildout of new generation.

6. SPP's proposal also addresses another pressing challenge: affordability. The transmission network should be developed with an eye toward the long-term needs of the system, not leaning too heavily on network upgrades triggered by new generation. SPP's proposal rightfully focuses on planning the backbone system that will be needed to support rapidly growing load and the resources needed to serve it. With a focus on the longer term, the system will cost less for consumers because a well-planned system will require fewer piecemeal network upgrades and meet system needs more efficiently.

7. With today's order, SPP can move forward with its innovative proposal and customers can begin receiving the benefits of an integrated transmission and

(2023), *order on reh'g*, Order No. 2023-A, 186 FERC ¶ 61,199, *errata notice*, 188 FERC ¶ 61,134 (2024).

³ See, e.g. *Tenaska Clear Creek Wind, LLC v. Southwest Power Pool, Inc.*, 177 FERC ¶ 61,200 (2021).

interconnection planning process.⁴ As other regions continue to grapple with the same underlying challenges that led SPP to develop CPP, I encourage other RTOs/ISOs to explore similar reforms to break the pernicious cycles that undermine generation development and lead to inefficient transmission system buildout. Facing rapid load growth and the need for new resources, we must meet this moment, and proposals like SPP's put us on the path to do so.

8. For these reasons, I respectfully concur.

A handwritten signature in black ink, appearing to read "Judy Chang", with a long horizontal flourish extending to the right.

Judy W. Chang
Commissioner

⁴ While I support SPP's proposal, I want to highlight one part of the CPP that is extremely important and will warrant continued monitoring. SPP has committed to publish information on the detailed calculations and assumptions that will form the cost new interconnection customers will face to enter the CPP. These are critical to how SPP's proposal works because they establish how SPP determines what portion of the transmission buildout will be assigned to new generation. I will be watching, with interest, how these numbers turn out and what assumptions SPP makes along the way.